

CHAPTER 46

Transport Act, 1962

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An Act to provide for the re-organisation of the nationalised transport undertakings now carried on under the Transport Act, 1947, and for that purpose to provide for the establishment of public authorities as successors to the British Transport Commission, and for the transfer to them of undertakings, parts of undertakings, property, rights, obligations and liabilities; to repeal certain enactments relating to transport charges and facilities and to amend in other respects the law relating to transport, inland waterways, harbours and port facilities; and for purposes connected with the matters aforesaid. [1st August, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

THE BOARDS AND THE HOLDING COMPANY

Preliminary

1.—(1) For the purposes of this Act there shall be four public The four
Boards.
authorities to be called—

the British Railways Board (in this Act referred to as the “Railways Board”);

the London Transport Board (in this Act referred to as the “London Board”);

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the British Transport Docks Board (in this Act referred to as the "Docks Board"); and

the British Waterways Board,

among whom the functions and (subject to the provisions of this Act relating to the Holding Company) the property of the British Transport Commission (hereinafter referred to as "the Commission") shall be divided in accordance with this Act.

(2) The chairman of each Board shall be appointed by the Minister, and the other members of each Board (including any vice chairman) shall be appointed by the Minister after consultation with the chairman of that Board.

(3) The British Railways Board shall consist of a chairman, a vice chairman, or two vice chairmen, and not more than sixteen nor less than ten other members; the chairmen and other members of the Board shall be appointed from among persons who appear to the Minister to have had wide experience of, and to have shown capacity in, transport, industrial, commercial or financial matters, administration, applied science, or the organisation of workers, and the Minister in appointing them shall have regard to the desirability of having members who are familiar with the special requirements and circumstances of particular regions and areas served by the Board.

(4) The London Transport Board shall consist of a chairman, a vice chairman and not more than nine nor less than four other members; the chairmen and other members of the Board shall be appointed from among persons who appear to the Minister to have had wide experience of, and to have shown capacity in, urban transport, industrial, commercial or financial matters, administration, applied science, or the organisation of workers.

(5) The British Transport Docks Board shall consist of a chairman, a vice chairman and not more than nine nor less than four other members; the chairmen and other members of the Board shall be appointed from among persons who appear to the Minister to have had wide experience of, and to have shown capacity in, the operation, management or administration of docks, or transport, industrial, commercial or financial matters, administration, applied science, or the organisation of workers, and the Minister in appointing them shall have regard to the desirability of having members who are familiar with the special requirements and circumstances of particular regions and areas served by the Board.

(6) The British Waterways Board shall consist of a chairman, a vice chairman and not more than nine nor less than four other members; the chairmen and other members of the Board shall be appointed from among persons who appear to

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the Minister to have had wide experience of, and to have shown capacity in, the operation, management or administration of inland navigations or related matters or who appear to him to have special knowledge relating to some important aspect of the Board's work or to have had wide experience of, and to have shown capacity in, transport, industrial, commercial or financial matters, administration, applied science or the organisation of workers, and the Minister in appointing them shall have regard to the desirability of having members who are familiar with the special requirements and circumstances of particular regions and areas served by the Board.

(7) Part I of the First Schedule to this Act shall have effect as regards the constitution and proceedings of the Boards, and as regards their members.

2.—(1) The Railways Board shall set up Boards (hereafter in this Act referred to as “Regional Railway Boards”) which shall, in accordance with the provisions of this section, share between them responsibility for all parts of the national railway system.

(2) In the first instance there shall be six Regional Railway Boards to be known as—

the Eastern Railway Board,
the London Midland Railway Board,
the North Eastern Railway Board,
the Scottish Railway Board,
the Southern Railway Board,
the Western Railway Board,

but the Minister may, after consulting the Railways Board, by order alter the number of Regional Railway Boards or give them names or new names.

An order made under this subsection may vary a previous order so made and shall be made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

(3) Part II of the First Schedule to this Act shall have effect as regards the constitution and proceedings of Regional Railway Boards, and as regards their members.

(4) Each Regional Railway Board shall, on behalf of the Railways Board, exercise such functions of the Railways Board as respects the part of the national railway system for the management of which that Regional Railway Board is to be responsible as are for the time being delegated to them by the Railways

PART I

Board ; and the Railways Board shall, in determining what functions are to be so delegated by them, act on lines settled from time to time with the approval of the Minister.

(5) The Railways Board shall from time to time determine the parts of the national railway system for the management of which the Regional Railway Boards are to be responsible.

The Railways Board shall publish in the London and Edinburgh Gazettes notice of any determination made by them under this subsection, stating the places at which copies of the maps, plans and other documents which implement the determination may be inspected by the public, and shall at all times afford reasonable facilities in appropriate places for inspection by the public of such maps, plans and other documents authenticated by a certificate in writing by the Railways Board.

The Railways Board

Duty and
powers of
Railways
Board.

3.—(1) It shall be the duty of the Railways Board in the exercise of their powers under this Act to provide railway services in Great Britain and, in connection with the provision of railway services, to provide such other services and facilities as appear to the Board to be expedient, and to have due regard, as respects all those railway and other services and facilities, to efficiency, economy and safety of operation.

(2) The Railways Board shall co-operate with the London Board for the purpose of ensuring that the railway services provided by the Railways Board in the London Passenger Transport Area are properly co-ordinated with the services provided by the London Board, and shall afford to the London Board such information of proposed changes in their railway services in the said Area, and such opportunities for consultation, as the London Board may reasonably require for that purpose.

(3) Subject to this Act, the Railways Board shall have power—

- (a) to carry goods and passengers by rail within Great Britain,
- (b) in the circumstances specified in the next following section, to carry goods and passengers by road,
- (c) to operate the harbours owned or managed by the Railways Board, and to provide port facilities at those harbours,
- (d) to consign goods on behalf of other persons from any place in Great Britain, or from any place to which the Railways Board have themselves carried the goods in question to any other place, whether in Great Britain or elsewhere,

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(e) to store within Great Britain goods which have been or are to be carried by the Railways Board, and, so far as any premises provided for the purposes of that or any other part of their business are not required for those purposes, to use them to provide facilities for the storage of other goods,

(f) to enter into and carry out agreements—

(i) with carriers outside Great Britain for the through carriage of goods and passengers under one contract or at a through charge or in the same vehicles or containers, and

(ii) with any person engaged in coastal shipping for co-ordinating the activities of that person with those of the Board, and in particular for facilitating the through carriage of goods, for the quoting of through rates and for the pooling of receipts or expenses.

(4) Subsections (1) and (2) of this section shall not be construed as imposing, either directly or indirectly, any form of duty or liability enforceable by proceedings before any court to which the Board would not otherwise be subject.

4.—(1) Subject to this section, the Railways Board shall have power— Railways Board's road services.

(a) to provide transport services by road—

(i) for the carriage of goods which have been or are to be carried by rail or water by the Railways Board, and

(ii) for the carriage of goods where a railway service has been temporarily interrupted, and

(iii) for the carriage of passengers where a railway service has been temporarily interrupted, or has been discontinued,

and to carry goods and passengers by those services ;

(b) to exercise the powers conferred by the Railway Road Transport Acts of 1928 (which relate to the provision of road transport services).

(2) The Railways Board shall not in exercise of the powers conferred by the said Acts of 1928 without the consent of the Minister—

(a) enter into any agreement for the provision of services for the carriage of passengers by road, whether or not by way of varying an existing agreement, or

(b) except in pursuance of an agreement under the said Acts (whether entered into before or after the passing of this Act) provide any service for the carriage of passengers by road which was not being provided by

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the Commission immediately before the vesting date,
or

(c) carry any goods by road for hire or reward.

(3) The foregoing provisions of this section shall not empower the Railways Board to run any public service vehicle as a contract carriage, but the Board shall have power to use any public service vehicle as a contract carriage to carry a pleasure party consisting of persons employed by the Board, with or without their families or friends.

(4) Notwithstanding the last foregoing subsection, the Railways Board may carry any party by contract carriage on a journey which begins or ends within the city of Sheffield, the county borough of Halifax, the county borough of Huddersfield or the borough of Todmorden.

(5) Nothing in this section shall authorise the Railways Board to carry passengers by road in a hackney carriage adapted to carry less than eight passengers and used in plying or standing for hire in the street.

(6) Except as provided by this section the Railways Board shall not have power to provide services for the transport of goods or passengers by road.

(7) In this section "the Railway Road Transport Acts of 1928" has the meaning assigned by paragraph 1 of Part II of the Second Schedule to this Act.

Railways
Board's
shipping
services and
power to
provide air
services.

5.—(1) The Railways Board shall have the powers conferred by the Railway Shipping Acts but shall not without the consent of the Minister exercise those powers to provide any regular shipping service for the carriage of passengers or goods to or from a port or place outside Great Britain which is not a service which was being provided by the Commission or by one of the bodies listed in Part I of the Fourth Schedule to this Act in the period from the first day of June, nineteen hundred and sixty, to the vesting date, or in some part of that period.

(2) The Railways Board shall have the powers conferred by the Railway Air Transport Acts of 1929 but shall not exercise those powers without the consent of the Minister.

(3) Except as provided by this section the Railways Board shall not have power to provide—

(a) shipping services for the carriage of goods or passengers to or from any port or place outside Great Britain,
or

(b) air transport services.

(4) In this section "the Railway Shipping Acts" and "the Railway Air Transport Acts of 1929" have the meanings assigned by paragraphs 2 and 3 of Part II of the Second Schedule to this Act.

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6. The Railways Board shall have power to provide hotels in places where those using the railway services provided by the Board may require them, for use both by those and other persons, and shall have power to manage hotels, but the Board shall not exercise their power of managing hotels without the consent of the Minister.

Railways Board's power to provide hotels.

The London Board

7.—(1) It shall be the duty of the London Board in the exercise of their powers under this Act to provide or secure the provision of an adequate and properly co-ordinated system of passenger transport for the London Passenger Transport Area, and to have due regard to efficiency, economy and safety of operation as respects the services and facilities provided by them.

Duty and powers of London Board.

(2) The London Board shall co-operate with the Railways Board for the purpose of ensuring that the services provided by the London Board are properly co-ordinated with the railway services of the Railways Board in the London Passenger Transport Area, and shall afford to the Railways Board such information of proposed changes in their services, and such opportunities for consultation, as the Railways Board may reasonably require for that purpose.

(3) Subject to this Act, the London Board shall have power to carry passengers by rail and road inside the London Passenger Transport Area and, in the circumstances specified in the next following section, to carry passengers by road outside that Area.

(4) The London Board shall have the powers conferred by section twenty-six of the London Passenger Transport Act, 1933 (which relates to the carriage of goods on public service vehicles), and, as respects each of the railways vesting in the London Board under Part II of this Act, the powers of carrying goods on that railway conferred by any local enactment in force immediately before the vesting date.

(5) Subject to the next following subsection, the London Board shall have power to let motor vehicles on hire to other persons who hold public service vehicle licences under Part III of the Road Traffic Act, 1960, for use by them for the carriage of passengers.

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(6) The London Board shall not keep for operation as public service vehicles more vehicles than are in their opinion required for the purpose of providing such transport services as they have power to provide under subsection (3) of this section and under the next following section and, accordingly, they shall not keep for operation as public service vehicles more vehicles than they would keep if they did not possess the power conferred by the last foregoing subsection.

(7) The London Board shall not have power to let motor vehicles on hire to other persons for use by them for the carriage of goods.

(8) The London Board shall not have power to carry passengers by road in a hackney carriage adapted to carry less than eight passengers and used in plying or standing for hire in the street.

(9) Subsections (1) and (2) of this section shall not be construed as imposing, either directly or indirectly, any form of duty or liability enforceable by proceedings before any court to which the Board would not otherwise be subject.

London
Board's road
services outside
London.

8.—(1) The London Board shall have power to carry passengers outside the London Passenger Transport Area by stage or express carriage—

- (a) on roads within a radius of ten miles, or in the county of Kent five miles, from any point on the boundary of the London Passenger Transport Area, and
- (b) on the London Transport Executive's routes (so far as they extend beyond the limits specified in paragraph (a) of this subsection), and
- (c) with the consent of the Minister, by any service beyond the limits specified in paragraphs (a) and (b) of this subsection.

The Minister shall not give his consent under paragraph (c) of this subsection unless he is satisfied that there are exceptional circumstances which make it desirable that the Board should carry passengers on a particular route outside the said limits.

(2) The London Board shall have power to carry passengers outside the London Passenger Transport Area by contract carriage—

- (a) on roads within a radius of ten miles, or in the county of Kent five miles, from any point on the boundary of the London Passenger Transport Area, and
- (b) where the passengers consist of a pleasure party of persons employed by the Board, with or without their families or friends, on roads within a radius of one hundred miles from Charing Cross.

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(3) Nothing in this section shall be taken as exempting the London Board from any of the requirements of Part III of the Road Traffic Act, 1960, or of those requirements as extended by Part IV of this Act.

(4) Except as provided by this section the Board shall not have power to carry passengers by road outside the London Passenger Transport Area.

(5) In this section the expression "the London Transport Executive's routes" means such routes as the Minister may by order contained in a statutory instrument certify to be the routes on which the London Transport Executive had, at any time in the period of twelve months ending on the second day of November, nineteen hundred and sixty-one, power to carry passengers by stage or express carriage.

For the purposes of this subsection any power to carry passengers in accordance with a working agreement which was made in pursuance of section eighteen of the London Passenger Transport Act, 1933, and to which the Commission became a party by virtue of Part II of the Transport Act, 1947, shall be left out of account.

(6) Any order under the last foregoing subsection shall be made not later than the vesting date.

The Docks Board

9.—(1) It shall be the duty of the Docks Board in the exercise of their powers under this Act to provide, to such extent as they may think expedient, port facilities at the harbours owned or managed by the Board, and to have due regard to efficiency, economy and safety of operation as respects the services and facilities provided by them. Duty and powers of Docks Board.

(2) Subject to this Act, the Docks Board shall have power—

- (a) to operate the harbours owned or managed by the Board and to provide port facilities at those harbours,
- (b) to consign goods on behalf of other persons to or from, or on routes through, the harbours owned or managed by the Board,
- (c) to store goods which have been or are to be loaded or unloaded in or carried through any harbour owned or managed by the Board and, so far as any premises provided for the purposes of that or any other part of their business are not required for those purposes, to use them to provide facilities for the storage of other goods.

(3) Subsection (1) of this section shall not be construed as imposing, either directly or indirectly, any form of duty or liability enforceable by proceedings before any court to which the Board would not otherwise be subject.

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The British Waterways Board

Duty and
powers of
British
Waterways
Board.

10.—(1) It shall be the duty of the British Waterways Board in the exercise of their powers under this Act to provide to such extent as they may think expedient—

- (a) services and facilities on the inland waterways owned or managed by them, and
- (b) port facilities at any harbour owned or managed by them,

and to have due regard to efficiency, economy and safety of operation as respects the services and facilities provided by them.

(2) It shall also be the duty of the Board to review the manner in which the inland waterways owned or managed by them, so far as not required for the discharge of their duty under subsection (1) of this section, may be put to the best use, to formulate proposals with the object of putting them to the best use and to take all steps open to them to achieve that object whether by developing or converting any inland waterway themselves or by selling or leasing to other persons.

(3) Subject to this Act, the British Waterways Board shall have power—

- (a) to carry goods and passengers by inland waterway and to provide facilities for traffic on the inland waterways owned or managed by them,
- (b) to operate the harbours owned or managed by them and to provide port facilities at those harbours,
- (c) to provide transport services by road—
 - (i) for the carriage of goods which have been or are to be carried by the Board by inland waterway, and
 - (ii) for the carriage of goods where the use of an inland waterway owned or managed by the Board has been temporarily interrupted,and to carry goods by those services,
- (d) to abstract and sell untreated water from any inland waterway owned or managed by the Board for any purpose,
- (e) to consign goods on behalf of other persons on routes wholly or partly over any of the inland waterways owned or managed by them or to or from, or on routes through, any of the harbours owned or managed by them,

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- (f) to store goods which have been or are to be carried on any of the inland waterways owned or managed by the Board, or which have been or are to be loaded or unloaded in or carried through any of the harbours owned or managed by them, and, so far as any premises provided for the purposes of that or any other part of their business are not required for those purposes, to use them to provide facilities for the storage of other goods,

- (g) to enter into and carry out agreements—

(i) with carriers outside Great Britain for the through carriage of goods and passengers under one contract or at a through rate or in the same vessels or containers, and

(ii) with any person engaged in coastal shipping for co-ordinating the activities of that person with those of the Board and, in particular, for facilitating the through carriage of goods, for the quoting of through rates and for the pooling of receipts or expenses.

(4) Subsections (1) and (2) of this section shall not be construed as imposing, either directly or indirectly, any form of duty or liability enforceable by proceedings before any court to which the Board would not otherwise be subject.

Provisions concerning all the Boards

11.—(1) Subject to this section, each Board shall have power to develop their land in such manner as they may think fit. Development of land.

(2) Each Board may, in particular, and subject to this section,—

- (a) retain any part of their land which is not required for the purposes of their business and develop it for use by other persons, and
- (b) where the use of their land for the purposes of their business can be combined with its use for other purposes, develop the land by constructing or adapting buildings thereon for use wholly or partly by other persons,

with a view to selling or otherwise disposing of any right or interest in the land or, as the case may be, the buildings or any part of the buildings, after the development is carried out.

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(3) A Board shall not incur any substantial item of expenditure in developing their land for use for purposes which are not the purposes of their business without the consent of the Minister, and the Minister may from time to time give directions to the Boards indicating what is to be treated for the purposes of this section as a substantial item of expenditure.

(4) Where a Board propose under this section to develop any land for use otherwise than for the purposes of their business they shall have power, with the consent of the Minister, to acquire by agreement adjoining land for the purpose of developing it together with the other land, but the Minister shall not give his consent under this subsection unless it appears to him that the other land cannot be satisfactorily developed unless the adjoining land is acquired by the Board.

Except as provided by the foregoing provisions of this subsection, a Board shall not have power to acquire land for purposes which are not related to any of the activities of the Board other than the development of land.

Pipe-lines.

12.—(1) Subject to this section, the Boards shall have power—

- (a) to construct and operate pipe-lines in Great Britain, and
- (b) to enter into transactions with other persons for the construction or operation by those other persons of pipe-lines on land in Great Britain belonging to the Boards.

(2) The Boards shall not have power to acquire land for the purpose of constructing pipe-lines except—

- (a) where the pipe-line is or is to be mainly on land belonging to the Boards and acquired for other purposes, or
- (b) where the pipe-line is required for the purposes of the business of the Board other than the operation of pipe-lines.

(3) A Board shall not without the consent of the Minister construct any pipe-line unless the pipe-line is required for the purposes of the business of the Board other than the operation of pipe-lines.

(4) In this section the expression “pipe-line” means any main or pipe for the transmission of any substance, together with any works provided in connection with the operation of such a main or pipe.

13.—(1) Each of the Boards shall have power to construct, manufacture, produce, purchase, maintain and repair anything required for the purposes of the business—

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The Boards' powers of manufacture and production.

(a) of that Board,

(b) of any other Board, or

(c) of a subsidiary of any of the Boards or of a subsidiary of the Holding Company,

and, subject to section eleven of this Act and to the following provisions of this section, the Boards shall not have power to construct, manufacture, produce, purchase, maintain or repair anything not required for any of those purposes.

(2) The British Waterways Board shall have power to construct, manufacture or produce any plant or equipment of a kind ordinarily made for use in connection with the operation of an inland waterway with a view to its sale for use in that connection, and to repair plant or equipment of such a kind:

Provided that this subsection shall not apply to barges or any other description of vessels.

(3) Subsection (1) of this section shall not affect the powers conferred by section forty-three of the British Transport Commission Act, 1950 (which relates to the supply of railway equipment to the Ulster Transport Authority, and which will under this Act apply to the Railways Board), or section sixty-seven of the British Transport Commission Act, 1957 (which relates to the supply of heat to the Royal Naval College at Greenwich, and which will under this Act apply to the London Board).

(4) Each of the Boards shall from time to time submit to the Minister proposals as to the manner in which their powers of construction, manufacture and production under the foregoing provisions of this section are to be exercised, and shall exercise those powers in accordance with those proposals as approved by the Minister with or without modification; but the Minister may, after consultation with a Board, direct that Board to discontinue any of the activities which they are carrying on in accordance with proposals so approved.

(5) Without prejudice to so much of subsection (1) of this section as restricts the Boards' powers, a Board shall not have power to manufacture, otherwise than for purposes of research or development, road vehicles, bodies or chassis for road vehicles or major components of road vehicles.

This subsection shall not come into force as respects the Railways Board until the expiration of the period of three years from the vesting date, so, however, that if it appears to the Minister that that Board can properly terminate the activities

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restricted by this subsection before then, he may direct that for the period of three years there shall be substituted such shorter period as may be specified in the direction.

(6) Without prejudice to so much of subsection (1) of this section as restricts the Boards' powers, a Board shall not have power—

- (a) to purchase any road vehicle for the purpose of sale to any person other than another Board or a subsidiary of any of the Boards or of the Holding Company,
- (b) to trade in spare parts for or accessories to road vehicles, or in petrol or oil for road vehicles, except by way of sale to any of the other Boards, or a subsidiary of any of the Boards or of the Holding Company, or
- (c) to engage in the maintenance or repair of road vehicles or spare parts for or accessories to road vehicles, other than vehicles, spare parts or accessories used by any of the Boards, or any subsidiary of any of the Boards or of the Holding Company, for the purposes of their business.

(7) The Boards shall not have power to engage in the building of ships, except lighters, barges or like vessels of a gross tonnage not exceeding one hundred and seventy-five tons, but this subsection—

- (a) shall not apply to the conversion by the British Waterways Board of a ship from one type to another, and
- (b) shall not be taken as preventing any of the Boards from manufacturing furnishings or fittings for ships to be operated by them or any of their subsidiaries.

(8) For the purposes of this section—

“body”, in relation to a vehicle in which the framework to which the major components are attached forms an integral whole with the body-structure, includes that framework ;

“chassis” means—

(a) in relation to a vehicle in which the framework to which the major components are attached is distinct from the body-structure, that framework together with the complement of major components required in order to construct a road vehicle on that framework, or

(b) in relation to a vehicle in which the framework to which the major components are attached forms an integral whole with the body-structure, the complement of major components required in order to complete that body-structure, when new, as a road vehicle ;

PART I

“major component” means the complete power unit, complete transmission system, complete suspension system, complete steering gear, complete braking system or complete axle of a vehicle;

“manufacture”, in relation to the body of a road vehicle, and in relation to the chassis of a road vehicle where the framework to which the major components are attached is distinct from the body-structure, includes the assembly of the parts of the body or, as the case may be, of the parts of the chassis for the purpose of constructing a new body or, as the case may be, a new chassis;

“road vehicle” includes any vehicle designed to be used both as railway rolling stock and on roads.

- 14.—(1) Subject to this Act, the Boards shall have power— Supplemental provisions relating to the Boards' powers.
- (a) to enter into and carry out agreements with any person for the carrying on by that person, whether as agent for the Board or otherwise, of any of the activities which the Board may themselves carry on,
 - (b) without prejudice to the foregoing paragraph, to enter into agreements with the other Boards and with any subsidiary of any of the Boards or of the Holding Company, for the management, working and use by one party to the agreement of works, land or other property belonging to the other party, and with respect to the rendering of services and the pooling of receipts or expenses,
 - (c) to acquire land for the purposes of their business,
 - (d) in places where those using the services and facilities provided by the Board may require them, to provide both for them and for other persons facilities for the purchase and consumption of food and drink, places for refreshment and such other amenities and facilities as it may appear to the Board requisite or expedient to provide,
 - (e) to dispose (whether absolutely or for a term of years) of any part of the undertaking of the Board or any property which in their opinion is not required by them for the purposes of their business, and, in particular, to dispose of an interest in, or right over, any property, which, subject to the interest or right, is retained by the Board,
 - (f) to do anything for the purposes of advancing the skill of persons employed by the Board or the efficiency of the equipment of the Board or of the manner in which that equipment is operated, including the provision by

PART I

the Board, and the assistance of the provision by others, of facilities for training, education and research,

- (g) to provide houses, hostels and other like accommodation for persons employed by the Board,
- (h) to make housing loans to persons employed by the Board to assist them to acquire housing accommodation and to guarantee loans made by building societies and other bodies to such persons for housing purposes,
- (j) to invest any sums which are not immediately required by the Board for the purposes of their business,
- (k) to turn their resources to account so far as not required for the purposes of their business, and
- (l) to do all other things which in the opinion of the Board are necessary to facilitate the proper carrying on of their business.

(2) The Boards shall have power to acquire any undertaking or part of an undertaking if the assets comprised in the undertaking or the part of the undertaking are wholly or mainly assets which the Board require for the purposes of their business.

(3) Each of the Boards shall have power with the consent of the Minister, and for the purposes of their business, to lend money to, or give a guarantee for the benefit of, any person for the purposes of an undertaking carried on by him, or, where that person is a body corporate, any undertaking carried on by a subsidiary of that body corporate.

(4) Each of the Boards shall have power with the consent of the Minister, and for the purposes of their business, to subscribe for or acquire any securities of a body corporate.

(5) Subsections (3) and (4) of this section shall not affect the power of a Board—

- (a) to lend money by way of investment or to subscribe for or acquire securities by way of investment, or
- (b) to leave outstanding any loan made or guarantee given, or to retain any securities acquired, by the Commission before the vesting date.

(6) Each of the powers conferred on any Board by the foregoing provisions of this Act shall be deemed to be in addition to, and not in derogation of, any other powers so conferred; and it is hereby declared that those provisions relate only to the capacity of the Boards as statutory corporations, and nothing in those provisions shall be construed as authorising the disregard by any of the Boards of any enactment or rule of law.

15.—(1) Subject to this section, the Minister may authorise any Board to purchase compulsorily any land in Great Britain which they require for the purposes of their business and the Acquisition of Land (Authorisation Procedure) Act, 1946, shall apply as if each Board were a local authority within the meaning of that Act and as if this Act had been in force immediately before the commencement of that Act:

PART I
Compulsory
purchase of
land.

Provided that this subsection shall not be taken as authorising a Board to purchase compulsorily land which they have power to acquire by agreement under subsection (4) of section eleven of this Act.

(2) The Minister shall not under this section authorise a Board to purchase land for the purpose of constructing a pipe-line if the construction of that pipe-line requires the consent of the Minister under subsection (3) of section twelve of this Act.

(3) The power of purchasing land compulsorily in this section shall include power to acquire an easement or other right over land by the creation of a new right:

Provided that this subsection shall not apply to an easement or other right over any land which would for the purposes of the Acquisition of Land (Authorisation Procedure) Act, 1946, form part of a common, open space or fuel or field garden allotment.

(4) In the application of this section to Scotland, there shall be substituted, for any reference to the Acquisition of Land (Authorisation Procedure) Act, 1946, a reference to the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947, and, for any reference to an easement, a reference to a servitude; and the reference in the last foregoing subsection to a fuel or field garden allotment shall be omitted.

16.—(1) A Board may enter into any working agreement to which this section applies notwithstanding that it involves the delegation of the functions of the Board under any enactment relating to any part of their undertaking.

Working
agreements
involving the
delegation
of special
statutory
powers.

(2) In the foregoing subsection the reference to a working agreement to which this section applies is a reference to an agreement of one of the kinds described in paragraph (f) of subsection (3) of section three or paragraph (g) of subsection (3) of section ten or paragraph (b) of subsection (1) of section fourteen of this Act.

17.—(1) Each Board may, with the consent of the Minister, promote Bills in Parliament and may oppose any Bill in Parliament.

Power to
promote and
oppose Bills.

PART I

(2) The power conferred by subsection (1) of this section shall be in lieu of any power to promote or oppose Bills which a Board might otherwise possess under the provisions of this Act as successors to the persons carrying on any undertaking, and, in particular, the persons carrying on any undertaking transferred to the Commission by the Transport Act, 1947, but nothing in this section shall be construed as prejudicing any power exercisable by any Board as successors to apply for orders, and oppose applications for orders, including orders subject to special parliamentary procedure.

(3) In the application of this section to Scotland, "Bill in Parliament" includes an order under the Private Legislation Procedure (Scotland) Act, 1936.

*Financial provisions*Financial
duty of
Boards.

18.—(1) Each of the Boards shall so conduct their business as to secure that their revenue is not less than sufficient for making provision for the meeting of charges properly chargeable to revenue, taking one year with another.

(2) Each Board shall charge to revenue in every year all charges which are proper to be made to revenue, including, in particular, proper provision for the depreciation or renewal of assets and proper allocations to general reserve, and the reference in subsection (1) of this section and other references in this Act to charges properly chargeable to revenue shall be construed accordingly.

(3) Without prejudice to the Board's powers to establish specific reserves, each Board shall establish and maintain a general reserve.

(4) The management by each Board of their general reserve, the sums to be carried from time to time to the credit thereof, and the application of the moneys comprised therein shall be as the Board may determine:

Provided that—

(a) no part of the moneys comprised in the general reserve shall be applied otherwise than for the purposes of the Board; and

(b) the Minister may, with the approval of the Treasury, give to the Board directions as to any matter relating to the establishment or management of the general reserve or the carrying of sums to the credit thereof, or the application thereof.

(5) Each of the Boards may, with the consent of the Minister given with the approval of the Treasury, make charges to capital account representing interest on expenditure of a capital nature

(including expenditure of a capital nature incurred by the Commission before the vesting date), being interest for any period which ends on or before the end of the accounting period in which the project or scheme to which the expenditure relates is in the opinion of the Minister completed.

PART I

(6) This section shall have effect subject to the following provisions of this Part of this Act relating to the Railways Board and the British Waterways Board.

19.—(1) Subject to the limit in subsection (3) of this section, each of the Boards may borrow temporarily, by way of overdraft or otherwise, either from the Minister or, with the consent of the Minister, from any other person, such sums as the Board may require for meeting their obligations or discharging their functions under this Act, but the aggregate of the amounts outstanding in respect of any temporary loans raised by a Board under this subsection shall not exceed such limit as the Minister may for the time being have imposed on that Board for the purposes of this subsection by a direction given to the Board.

Borrowing
powers of
Boards.

(2) Subject to the limit in subsection (3) of this section, each of the Boards may borrow (otherwise than by way of temporary loan) from the Minister such sums as the Board may require for all or any of the following purposes—

- (a) for meeting any expenses properly chargeable to capital, being expenses incurred in connection with the provision or improvement of assets in connection with the business of the Board,
- (b) for the provision of working capital,
- (c) for acquiring an undertaking or part of an undertaking,
- (d) for lending money to, or meeting a guarantee given for the benefit of, any person for the purpose of an undertaking carried on by him, or where that person is a body corporate, an undertaking carried on by a subsidiary of that body corporate,
- (e) for subscribing for or acquiring securities of a body corporate, otherwise than by way of investment,
- (f) for the payment of interest charged to capital account under subsection (5) of the last foregoing section,
- (g) to pay off—
 - (i) any part of the commencing capital debt of the Board,
 - (ii) any money borrowed by the Board,
 - (iii) any liability transferred to the Board from the Commission under or in pursuance of this Act,
- (h) for any purpose for which capital moneys are properly applicable (whether or not specified in the foregoing paragraphs).

PART I

(3) The aggregate amount outstanding in respect of—

- (a) the principal of any money borrowed by a Board under this section, and
- (b) the Board's commencing capital debt, as defined in Part II of this Act but excluding, in the case of the Railways Board, the Railways Board's suspended debt as so defined,

taken together shall not exceed—

- (i) for the Railways Board, eleven hundred million pounds or such greater sum not exceeding fourteen hundred million pounds as the Minister may from time to time by order specify ;
- (ii) for the London Board, two hundred million pounds or such greater sum not exceeding two hundred and seventy million pounds as the Minister may from time to time by order specify ;
- (iii) for the Docks Board one hundred and twenty million pounds ; and
- (iv) for the British Waterways Board thirty million pounds.

An order under this subsection shall be made by statutory instrument, and no such order shall be made unless a draft of the order has been approved by a resolution of the Commons House of Parliament.

(4) A Board shall not have power to borrow money except in accordance with this section.

(5) References in this section to borrowing do not include—

- (a) borrowing by a Board from a body corporate which is a subsidiary of that Board ; or
- (b) the receipt of money by a Board in the course of the carrying on of a savings bank operated by the Board or the use by the Board of money so received, or
- (c) the receipt or use by a Board of money of a pension fund established for the purposes of a pension scheme in which employees of the Board or of a subsidiary of the Board participate.

(6) This section shall have effect subject to the following provisions of this Part of this Act relating to the Railways Board and the British Waterways Board.

Exchequer
loans.

20.—(1) Subject to this Act the Minister may with the approval of the Treasury lend to a Board any sums which that Board have power to borrow under subsection (1) or subsection (2) of the last foregoing section.

(2) Any loans which the Minister makes under this section shall be repaid to him at such times and by such methods, and

PART I

interest thereon shall be paid to him at such rates and at such times, as he may with the approval of the Treasury from time to time direct.

(3) The Treasury may issue out of the Consolidated Fund to the Minister such sums as are necessary to enable him to make loans under subsection (1) of this section.

(4) For the purpose of providing sums to be issued under the last foregoing subsection, or of providing for the replacement of sums so issued, the Treasury may at any time, if they think fit, raise money in any manner in which they are authorised to raise money under the National Loans Act, 1939, and any securities created and issued to raise money under this subsection shall be deemed for all purposes to have been created and issued under that Act.

(5) Any sums received by the Minister under subsection (2) of this section shall be paid into the Exchequer and shall be issued out of the Consolidated Fund at such times as the Treasury may direct, and shall be applied by the Treasury as follows, that is to say—

- (a) so much thereof as represents principal shall be applied in redeeming or paying off debt of such description as the Treasury think fit, and
- (b) so much thereof as represents interest shall be applied towards meeting such part of the annual charges for the National Debt as represents interest.

(6) The Minister shall, as respects each financial year, prepare in such form and manner as the Treasury may direct an account of sums issued to him under this section and of the sums to be paid into the Exchequer under subsection (5) of this section and of the disposal by him of those sums respectively, and send it to the Comptroller and Auditor General not later than the end of November following the year; and the Comptroller and Auditor General shall examine, certify and report on the account and lay copies of it, together with his report, before each House of Parliament.

21.—(1) The Treasury may guarantee, in such manner and on such conditions as they may think fit, the repayment of the principal of, and the payment of interest on, any sums which a Board borrow from a person other than the Minister in exercise of their powers under subsection (1) of section nineteen of this Act. Treasury guarantees.

(2) Immediately after any guarantee is given under this section the Treasury shall lay a statement of the guarantee before each House of Parliament, and where any sum is issued for fulfilling such a guarantee the Treasury shall, as soon as possible after the end of each financial year, beginning with that in which

PART I

the sum is issued and ending with that in which all liability in respect of the principal of the sum and in respect of interest thereon is finally discharged, lay before each House of Parliament a statement relating to that sum.

(3) Any sums required by the Treasury for fulfilling any guarantee under this section shall be charged on and issued out of the Consolidated Fund.

(4) If any sums are issued in fulfilment of any guarantee given under this section in favour of a Board, that Board shall make to the Treasury, at such times and in such manner as the Treasury may from time to time direct, payments of such amounts as the Treasury may so direct in or towards repayment of the sums so issued, and payments of interest on what is outstanding for the time being in respect of sums so issued at such rate as the Treasury may so direct.

(5) Any sums received by the Treasury under the last foregoing subsection shall be paid into the Exchequer.

Special
provision for
Railways
Board.

22.—(1) The Minister may, with the approval of the Treasury, out of money provided by Parliament make grants to the Railways Board to meet any deficit on their revenue account arising during the period of five years beginning with the vesting date.

(2) No loan shall be made by the Minister under subsection (1) of section twenty of this Act to the Railways Board to meet any deficit on their revenue account arising more than five years after the vesting date.

(3) The aggregate of any grants made under this section to the Railways Board, together with any loans made by the Minister under subsection (1) of section twenty of this Act to that Board to meet any deficit on their revenue account, shall not exceed four hundred and fifty million pounds, and both the power conferred by subsection (1) of this section and the power of the Minister to make loans under subsection (1) of the said section twenty shall be limited accordingly.

(4) During the period of five years beginning with the vesting date subsection (1) of section eighteen of this Act shall not apply to the Railways Board, but the Railways Board shall so conduct their business as to place themselves at the earliest possible date in such a position that their revenue will be, and continue to be, not less than sufficient for making provision for the meeting of charges properly chargeable to revenue, taking one year with another.

(5) For the purposes of the last foregoing subsection and, after the expiration of the said period of five years beginning with the vesting date, for the purposes of subsection (1) of section eighteen of this Act as it applies to the Railways Board, the

PART I

Railways Board shall take into consideration deficits on revenue account arising at any time after the vesting date, except so far as the Minister has, under subsection (1) of this section, made a grant to meet any such deficit.

(6) Notwithstanding the provisions of subsection (3) of section eighteen of this Act, the Railways Board need not establish a general reserve until they have fulfilled their duty under subsection (4) of this section.

(7) Nothing in this section shall be taken as imposing any duty or obligation on the Minister to advance money by way of grant or loan to the Railways Board.

23.—(1) The Minister may, with the approval of the Treasury, out of money provided by Parliament make grants to the British Waterways Board to meet any deficit on their revenue account arising during the period of five years beginning with the vesting date. Special provision for British Waterways Board.

(2) No loan shall be made by the Minister under subsection (1) of section twenty of this Act to the British Waterways Board to meet any deficit on their revenue account arising more than five years after the vesting date.

(3) The aggregate of any grants made under this section to the British Waterways Board, together with any loans made by the Minister under subsection (1) of section twenty of this Act to that Board to meet any deficit on their revenue account, shall not exceed ten million pounds, and both the power conferred by subsection (1) of this section and the power of the Minister to make loans under subsection (1) of the said section twenty shall be limited accordingly.

(4) During the period of five years beginning with the vesting date subsection (1) of section eighteen of this Act shall not apply to the British Waterways Board, but the British Waterways Board shall so conduct their business as to keep the deficits incurred on their revenue account at the lowest possible level.

(5) Notwithstanding the provisions of subsection (3) of section eighteen of this Act, the British Waterways Board need not establish a general reserve so long as deficits are being incurred on their revenue account.

(6) Nothing in this section shall be taken as imposing any duty or obligation on the Minister to advance money by way of grant or loan to the British Waterways Board.

24.—(1) Each Board—

Accounts.

(a) shall cause proper accounts and other records in relation thereto to be kept, and

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(b) shall prepare an annual statement of accounts in such form and containing such particulars, compiled in such manner, as the Minister may from time to time direct with the approval of the Treasury.

(2) The accounts of each Board shall be audited by an auditor or auditors to be appointed annually by the Minister and a person shall not be qualified to be so appointed unless he is a member of one or more of the following bodies—

The Institute of Chartered Accountants in England and Wales ;

The Institute of Chartered Accountants of Scotland ;

The Association of Certified and Corporate Accountants ;

The Institute of Chartered Accountants in Ireland ;

Any other body of accountants established in the United Kingdom and for the time being recognised for the purposes of paragraph (a) of subsection (1) of section one hundred and sixty-one of the Companies Act, 1948, by the Board of Trade.

(3) So soon as the accounts of a Board have been audited as aforesaid, they shall send a copy of the statement of accounts referred to in paragraph (b) of subsection (1) of this section to the Minister, together with a copy of the report made by the auditor or auditors on that statement, and a copy of that statement and of any such report shall be included in the report which is under this Act to be laid by the Minister annually before each House of Parliament.

(4) Section thirty-nine of the Railway and Canal Traffic Act, 1888, and the Railway Companies (Accounts and Returns) Act, 1911 (which relate to the making of returns and the keeping of statistics by railway and canal companies), and, except so far as the Minister may by order made by statutory instrument otherwise provide, so much of any statutory provision as relates to the accounts, statistics and returns to be kept or made by the owners of undertakings which were by the Transport Act, 1947, transferred to the Commission, or as relates to the audit or publication of any such accounts, shall not apply to any of the Boards.

Supplemental provisions relating to the Boards

The Boards' subsidiaries.

25.—(1) It shall be the duty of a Board which has a subsidiary to exercise its control over the subsidiary so as to ensure that the subsidiary—

(a) does not engage in activities in which the Board has no power to engage (including activities in which the

PART I

Board has no power to engage because the consent of the Minister has not been obtained), and

- (b) does not do anything which the Minister has directed the Board not to do, and
- (c) does not, except with the consent of the Minister, borrow money from any person other than the Board, and
- (d) does not, except with the consent of the Minister, raise money by the issue of shares or stock to any person other than the Board.

(2) The Minister may give to a Board such directions as appear to him appropriate for ensuring that the Board carry out the duty imposed on them by the foregoing subsection.

(3) Paragraph (a) of subsection (1) of this section shall not apply to the power of managing hotels exercisable by the Hotel Company, but, without prejudice to that paragraph as it applies in relation to any subsidiary of the Railways Board, the Railways Board shall in exercise of their control of their subsidiaries take such steps as are open to them to ensure that nothing is done which will result in the Board having a subsidiary, other than the Hotel Company, which owns or manages a hotel.

(4) Paragraph (a) of subsection (1) of this section shall not apply to the provision of any shipping service by the Caledonian Steam Packet Company Limited in the River or Firth of Clyde or in the lochs, bays, channels or inlets connecting therewith.

26. For the purpose of section forty-two of the Finance Act, 1930 (which relates to stamp duty on transfers between associated companies), each of the Boards shall be deemed to be a company with limited liability.

Stamp duty on transfers between Boards and their subsidiaries.

27.—(1) The Minister may, after consultation with any Board, give to that Board directions of a general character as to the exercise and performance by the Board of their functions in relation to matters which appear to him to affect the national interest.

Powers of Minister in relation to Boards.

(2) A Board, in framing and carrying out proposals involving substantial outlay on capital account by the Board or by a subsidiary of the Board, shall act on lines settled from time to time with the approval of the Minister.

(3) In the exercise and performance of their functions as to training, education and research, each Board shall act on lines settled as aforesaid.

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(4) Without prejudice to the foregoing provisions of this section, the Minister may, after consultation with any Board, direct the Board to discontinue any of their activities, dispose of any part of their undertaking, dispose of any assets held by them, call in any loan made by them or exercise any power they may possess to revoke any guarantees given by them :

Provided that the Minister shall not give any such directions unless he is satisfied that the carrying on of the activities or the retention of the part of the undertaking or the assets or the continuance of the loan or guarantee, as the case may be, is unnecessary for the proper discharge of the duties of the Board under this Act.

(5) The Minister may, after consultation with any Board, direct the Board to exercise their control over a subsidiary of the Board so as to require the subsidiary to discontinue any of their activities, dispose of any part of their undertaking, dispose of any assets held by them, call in any loan made by them or exercise any power they may possess to revoke any guarantees given by them.

(6) If it appears to the Minister that there is anything which a Board ought in the interests of national defence to have power to do, or which a Board ought in the interests of national defence to be required to do, and that it would be consistent with the duties imposed on that Board by this Act, he may authorise or direct the Board to do that thing ; and no limitation on the powers of the Board contained in this Act or in any local enactment shall prevent the Board from acting in accordance with the authorisation or direction.

(7) Each Board shall furnish the Minister with such returns, accounts and other information with respect to their property and activities, and the property and activities of any company which is their subsidiary, as he may from time to time require.

(8) Without prejudice to the provisions of the last foregoing subsection, each Board shall, as soon as possible after the end of each accounting year of the Board, make to the Minister a report on the exercise and performance by them of their functions during that year and on their policy and programme, and the Minister shall lay a copy of every such report before each House of Parliament.

The report for any year shall set out any direction given by the Minister under this Act to the Board during that year, unless the Minister has notified to the Board his opinion that it is against the interests of national security to do so, and shall include a statement of the salaries or fees and of the emoluments of each of the members of the Board during that year.

28.—(1) Any consent which the Minister is authorised to give under the foregoing provisions of this Act may be given for any case or description of cases specified in the consent, or may be general, and may be given subject to conditions.

PART I
Powers
exercisable
subject to
Minister's
consent.

(2) Nothing done by a Board shall be unlawful on the ground that it was done without the consent of the Minister and that under the foregoing provisions of this Act it required the consent of the Minister.

(3) If it appears to the Minister that a Board propose to do anything, or have done anything, without the consent of the Minister which in his opinion requires his consent under this Act, he shall, after consultation with the Board, give to the Board such directions as appear to the Minister to be appropriate.

(4) The directions which the Minister may give under the last foregoing subsection in a case where a Board have already done anything without the Minister's consent may in particular require the Board to discontinue any activity or to dispose of any assets, and directions may be so given notwithstanding that they make it necessary for the Board to dispose of assets at a loss.

The Transport Holding Company

29.—(1) For the purposes of this Act there shall be a body corporate with perpetual succession which shall be called the Transport Holding Company and which is in this Act referred to as "the Holding Company".

The Transport
Holding
Company.

(2) There shall be a chairman and not more than twelve other directors of the Holding Company who shall be the members thereof and who shall be appointed by the Minister.

(3) The chairman and other directors of the Holding Company shall be appointed from among persons who appear to the Minister to have had wide experience of, and to have shown capacity in, transport, industrial, commercial or financial matters, administration, the practice of the law, applied science, or the organisation of workers, and the Minister in appointing them shall have regard to the desirability of including among them persons who are directors of, or concerned in the management of, the principal subsidiaries of the Holding Company.

(4) The Holding Company shall in the conduct of their business act in accordance with such directions as may from time to time be given to them by the Minister.

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(5) Part III of the First Schedule to this Act shall have effect as regards the directors of the Holding Company and their proceedings.

(6) Subject to subsection (9) of this section, the objects of the Holding Company shall be—

(a) to hold and manage the securities vested in them by virtue of this Act, and

(b) to exercise the rights attached to those securities,

as if the Holding Company were a company engaged in a commercial enterprise, and the Holding Company shall have power for those objects—

(i) to form, promote and assist companies,

(ii) to subscribe for, take, acquire and hold, exchange and sell securities of companies,

and generally to carry on any business usually carried on by a holding company and to do all such other things as are incidental or conducive to the attainment of those objects.

(7) It shall be the duty of the Holding Company to exercise its control over any wholly-owned subsidiary of the Holding Company so as to secure that the subsidiary does not engage in manufacture or production except the manufacture or production of things for use in their own business or for supply to a Board, or a wholly-owned subsidiary of any of the Boards or of the Holding Company, for use in their business.

(8) The Holding Company shall have power with the consent of the Minister to sell or otherwise dispose of any of the securities vested in them by virtue of this Act, and in particular to transfer any of those securities to a subsidiary of the Holding Company in exchange for securities issued by that subsidiary.

(9) The Minister may by order extend or vary the objects and powers of the Holding Company under this section but he shall not make such an order unless the draft of the order has been laid before Parliament and approved by resolution of each House.

The power of making orders under this subsection shall include power to vary or revoke a previous order and shall be exercised by statutory instrument.

(10) The Holding Company's surpluses may with the consent of the Minister, given with the approval of the Treasury, be retained for the purposes of the conduct of their business, and, except so far as they are so retained, shall be paid over to the

PART I

Minister and be paid by him into the Exchequer ; and so much of the sums so paid into the Exchequer as is of a capital nature shall be issued out of the Consolidated Fund at such times as the Treasury may direct, and shall be applied by the Treasury in redeeming or paying off debt of such description as the Treasury think fit.

(11) The Holding Company shall not borrow money, otherwise than by way of temporary loan, from any person other than the Minister or a subsidiary of the Holding Company, and the aggregate principal amount outstanding in respect of money borrowed by the Holding Company otherwise than from a subsidiary of the Holding Company shall not at any time exceed thirty million pounds.

(12) The Minister may with the approval of the Treasury lend money to the Holding Company ; and subsections (2) to (6) of section twenty of this Act shall apply in relation to sums lent under this section as they apply in relation to sums lent under that section.

(13) The Treasury may guarantee, in such manner and on such conditions as they may think fit, the repayment of the principal of, and the payment of interest on, any sums temporarily borrowed by the Holding Company from a person other than the Minister ; and subsections (2) to (5) of section twenty-one of this Act shall apply in relation to guarantees under this subsection as they apply in relation to guarantees under that section.

(14) The Holding Company shall furnish the Minister with such returns, accounts and other information with respect to their property and activities, and the property and activities of any company which is their subsidiary, as he may from time to time require.

(15) Subsections (1) to (3) of section twenty-four of this Act shall apply to the Holding Company as they apply to the Boards.

(16) The Holding Company shall, as soon as possible after the end of each of their accounting years, make to the Minister a report on the manner in which they have carried on their business and exercised their powers during that year, and on their policy and programme, and the Minister shall lay a copy of every such report before each House of Parliament.

The report for any year shall set out any direction given by the Minister under this section to the Holding Company during that year and shall include a statement of the salaries or fees and of the emoluments of each of the directors of the Holding Company during that year.

PART I

(17) For the purpose of section forty-two of the Finance Act, 1930 (which relates to stamp duty on transfers between associated companies), the Holding Company shall be deemed to be a company with limited liability.

(18) Nothing in subsection (11) or subsection (12) of this section shall be taken as applying in relation to the commencing capital debt of the Holding Company.

(19) It is hereby declared that the provisions of this section concerning the powers of the Holding Company relate only to its capacity as a statutory corporation and do not authorise the Holding Company to infringe the rights of any other person.

Status of the Boards and the Holding Company

Status of
Boards and
the Holding
Company.

30. It is hereby declared that neither any of the Boards nor the Holding Company are to be regarded as the servant or agent of the Crown, or as enjoying any status, immunity or privilege of the Crown, or (subject to the express provisions of this Act relating to stamp duty and income tax) as exempt from any tax, duty, rate, levy or other charge whatsoever, whether general or local, and that their property is not to be regarded as property of, or property held on behalf of, the Crown.

PART II

DIVISION OF COMMISSION'S UNDERTAKING

Property and functions

Distribution of
Commission's
assets.

31.—(1) Subject to this Act, on such date as the Minister may by order contained in a statutory instrument appoint (in this Act referred to as "the vesting date") all the property, rights and liabilities of the Commission shall by virtue of this Act be transferred to and vest in the Boards and the Holding Company in accordance with this Part of this Act; and the property, rights and liabilities so transferred shall by virtue of this Act vest in those bodies respectively.

(2) There shall be transferred to the Railways Board the property, rights and liabilities comprised in the part of the Commission's undertaking which constitutes—

- (a) the Commission's railway system, except for so much of it as is carried on through or managed by the London Transport Executive or is within any of the harbours listed in Part II or Part III of the Third Schedule to this Act,
- (b) the shipping services provided by the Commission in exercise of the powers conferred on them by the Railway Shipping Acts as defined in paragraph 2 of Part II of the Second Schedule to this Act,

PART II

- (c) the harbours listed or described in Part I of the Third Schedule to this Act,
- (d) the road passenger services provided by the Commission, except those carried on through or managed by the London Transport Executive,
- (e) the British Transport Commission Police Force, and
- (f) the Commission's Historical Records Department, the department for which their Curator of Historical Relics is responsible and their Films Service,

and any property, rights and liabilities not falling to be transferred under any other provision in this Act.

(3) There shall be transferred to the London Board the property, rights and liabilities comprised in the part of the Commission's undertaking which is carried on through, or managed by, the London Transport Executive.

(4) There shall be transferred to the Docks Board the property, rights and liabilities comprised in the part of the Commission's undertaking constituted by the harbours listed in Part II of the Third Schedule to this Act.

(5) There shall be transferred to the British Waterways Board the property, rights and liabilities comprised in the part of the Commission's undertaking constituted by—

- (a) their inland waterways (other than the Lower Ouse Improvement, which under the last foregoing subsection vests in the Docks Board), and
- (b) the harbours listed in Part III of the Third Schedule to this Act.

(6) Notwithstanding anything in the foregoing provisions of this section, there shall be transferred to—

- the Railways Board,
- the Docks Board,
- the British Waterways Board, and
- the Holding Company,

the securities of the bodies listed in Parts I, II, III and IV of the Fourth Schedule to this Act respectively (so far as beneficially owned by the Commission), and the rights and liabilities specified in Part V of that Schedule so, however, that where such securities are beneficially owned by the Commission, but held by a nominee, this subsection shall operate only to transfer the beneficial interest in the securities.

The references in this subsection to Parts I, II, III and IV of the Fourth Schedule to this Act shall have effect subject to Part VI of that Schedule.

PART II

(7) Notwithstanding anything in the foregoing provisions of this section, there shall be transferred to the Boards and the Holding Company the property, rights and liabilities of the Commission specified for them respectively in the Fifth Schedule to this Act.

(8) Any property, rights or liabilities held or subsisting partly for the purpose of a part of the Commission's undertaking which is under this Part of this Act transferred to one Board, and partly for the purpose of a part which is transferred to another Board, shall—

(a) where the nature of the property, right or liability permits, be divided or apportioned between those Boards in such proportions as may be just, and

(b) in any other case, be transferred to those Boards jointly, and, where any estate or interest in land falls to be so divided, any rent payable under a lease in respect of that estate or interest, and any rent charged on that estate or interest, shall be correspondingly apportioned or divided so that the one part is payable in respect of, or charged on, only the one part of the estate or interest and the other part is payable in respect of, or charged on, only the other part of the estate or interest.

(9) The last foregoing subsection shall apply, with any necessary modifications, in relation to any feu duty payable in respect of an estate or interest in land in Scotland, as it applies in relation to any rent charged on an estate or interest in land.

**Distribution of
Commission's
statutory
functions.**

32.—(1) The provisions of the Second Schedule to this Act shall as from the vesting date have effect with respect to the distribution among the Boards of the Commission's functions under the enactments there mentioned.

(2) Subject to that Schedule, and to any other provision in this Act, the functions of the Commission under any statutory provision, other than the Transport Act, 1947, the Transport Act, 1953, and this Act, shall be transferred to the Board or Boards specified in the following provisions of this section.

(3) If and so far as the statutory provision relates to an undertaking, or a part of an undertaking, or property transferred to a Board by this Part of this Act, the functions of the Commission under that statutory provision shall be transferred to that Board.

(4) If and so far as the statutory provision authorises the carrying out of works designed to be used in connection with an undertaking or part of an undertaking transferred to a Board, or the acquisition of land for the purpose of carrying out such works, the functions of the Commission under that statutory provision shall be transferred to that Board.

PART II

(5) If the statutory provision authorises the Commission to appoint, nominate, or concur in or approve the appointment or nomination of, a member of some body or the holder of some other office,—

- (a) this Act shall not affect the tenure of office of any person appointed or nominated under the statutory provision before the vesting date, and
- (b) subject to that, the functions of the Commission under the statutory provision shall be transferred to such Board as the Minister may direct by order contained in a statutory instrument.

An order under this subsection may provide for the function so transferred being exercised jointly by two or more Boards or separately by two or more Boards.

(6) Subject to the foregoing provisions of this section, the functions of the Commission under any statutory provision, other than the Transport Act, 1947, the Transport Act, 1953, and this Act, shall be transferred to the Railways Board.

(7) In this section references to the Commission include references to any Executive of the Commission, and references to statutory provisions include those passed or made between the passing of this Act and the vesting date.

33.—(1) The Commission shall as soon as practicable after the passing of this Act arrange for the Commission's hotels to be transferred to a subsidiary of the Commission, that is to say— The Commission's hotel property.

- (a) for the necessary steps to be taken under the Companies Act, 1948, for the formation of a company limited by shares which will be a subsidiary of the Commission and the objects of which will include the acquisition of the part of the Commission's undertaking constituted by their hotels, and
- (b) for the transfer by the Commission, in consideration of the issue of shares in the company to the Commission, of that part of their undertaking to the company.

(2) The arrangements shall provide for the company taking either a freehold interest or leasehold interest in any hotel as may be appropriate, and the Commission shall endeavour to complete the arrangements under this section so far as practicable before the vesting date.

(3) The Minister may give to the Commission directions as to what is to be included in the property and interests to be transferred to the subsidiary (which is in this Act referred to as "the Hotel Company") and the Commission shall before

PART II

concluding the arrangements give to the Minister particulars of the property and interests which they propose to transfer under the arrangements.

(4) On the vesting date there shall be transferred to and vest in the Railways Board by virtue of this Act—

- (a) the shares issued by the Hotel Company and owned by the Commission (so, however, that as respects securities beneficially owned by the Commission, but held by a nominee, this subsection shall operate only to transfer the beneficial interest in the securities), and
- (b) any land which is subject to a lease granted by the Commission to the Hotel Company, and
- (c) all rights and liabilities of the Commission enforceable against the Hotel Company, or by the Hotel Company, and in particular, all the rights and liabilities of the Commission under any contract for sale or lease to the Hotel Company, and
- (d) the property, rights and liabilities of the Commission in the part of the undertaking to be transferred under this section to the Hotel Company so far as the transfer has not taken effect before the vesting date,

and it shall be the duty of the Railways Board after the vesting date to complete the arrangements made by the Commission with the Hotel Company in pursuance of this section.

(5) In the application of this section to Scotland—

- (a) in subsection (2), for the words “either a freehold interest or leasehold interest” there shall be substituted the words “either the Commission’s whole interest or the interest of the vassal under a feu granted by the Commission or the interest of the lessee under a lease granted by the Commission”; and
- (b) paragraphs (b) and (c) of subsection (4) shall apply in relation to a feu, or an agreement to feu, granted by the Commission to the Hotel Company as they apply in relation to a lease so granted.

Transfer of
staff.

34.—(1) The foregoing provisions of this Part of this Act shall not apply to rights and liabilities under an agreement for the rendering of personal services by any person (hereinafter referred to as “an employee”).

(2) The rights and liabilities of the Commission under any such agreement with an employee who immediately before the vesting date is employed exclusively for the purposes of any part of the Commission’s undertaking transferred to the Railways Board, the Docks Board, or the British Waterways Board shall be transferred to that Board.

PART II

(3) The rights and liabilities of the Commission under such an agreement with an employee who immediately before the vesting date is by virtue of paragraph (b) of subsection (9) of section five of the Transport Act, 1947, treated as being in the employment of the London Transport Executive shall be transferred to the London Board.

(4) The rights and liabilities of the Commission under any agreement with an employee who immediately before the vesting date is employed exclusively for the purposes of the part of the Commission's undertaking passing to the Hotel Company shall be transferred to the Hotel Company.

(5) The rights and liabilities of the Commission under any agreement with an employee who immediately before the vesting date is employed wholly or mainly for the purposes of the business of any of the bodies listed in Part IV of the Fourth Schedule to this Act shall be transferred to the Holding Company.

The reference in this subsection to Part IV of the Fourth Schedule to this Act shall have effect subject to Part VI of that Schedule.

(6) The rights and liabilities of the Commission under any other such agreement shall be transferred to the Railways Board.

(7) The Boards may before the vesting date enter into any arrangements with the Commission and any employee of the Commission for the determination of the employee's agreement on or before the vesting date and for the conclusion of a new agreement between the Board and the employee for the rendering of services to the Board, and the Commission may become a party to any arrangements between any of the Boards, or any other employer, and any of the Commission's employees for the transfer of those employees from the Commission to the new employer on or before the vesting date.

(8) Any right to services transferred by this section shall have effect on and after the vesting date as a right not only to the service to which the agreement relates but also to any reasonably comparable service under the Board or company, to be selected by that body.

Any dispute between a Board or company and the other party to a service agreement as to what are reasonably comparable services for the purposes of this subsection may be reported to the Minister of Labour by the Board or company or the other party to the agreement and, if a dispute so reported is not otherwise disposed of, that Minister shall refer it for determination by the industrial court.

(9) Any of the Boards and the said companies, and any person who is a party to any agreement which is modified by this section, may apply to the Minister to determine to which of the Boards

PART II or companies the rights and liabilities under any such agreement are transferred and the Minister's decision on the application shall be final.

Supplementary provisions relating to distribution of Commission's undertaking.

35.—(1) The Sixth Schedule to this Act (which contains further provisions regarding the distribution of the Commission's undertaking) shall have effect for the purposes of this Act.

(2) In the said Schedule the expression "the principal sections" means the foregoing sections of this Part of this Act, and references to those sections include references to any Schedule to this Act referred to in those sections.

Capital debts and other financial provisions

Treasury to take over liability for Transport Stock.

36.—(1) Subject to this section, all the rights and liabilities which, under the terms of issue of the stock created and issued under section eighty-nine of the Transport Act, 1947, were immediately before the vesting date rights and liabilities of the Commission shall, as from the vesting date, be rights and liabilities of the Treasury and as from the vesting date the said stock (which consists of the issues set out in the first column of the following Table and which is in this and the next following section referred to as "the Stock") shall be renamed as shown in the second column of that Table.

TABLE

<i>Old name</i>	<i>New name</i>
British Transport 3% Guaranteed Stock, 1967-72.	British Transport 3% Stock, 1967-72.
British Transport 3% Guaranteed Stock, 1968-73.	British Transport 3% Stock, 1968-73.
British Transport 4% Guaranteed Stock, 1972-77.	British Transport 4% Stock, 1972-77.
British Transport 3% Guaranteed Stock, 1978-88.	British Transport 3% Stock, 1978-88.

(2) Notwithstanding anything in this section, the Stock shall be regarded on and after the vesting date as the same stock and held in the same right and on the same trusts and subject to the same powers, privileges, charges, restraints and liabilities as before, and any provision of any deed, will, disposition or other instrument which immediately before the vesting date was applicable to any such Stock shall continue to be applicable to the same Stock as re-named under this section.

PART II

(3) As from the vesting date the Stock shall, subject to this section, be deemed for all purposes to have been created and issued under the National Loans Act, 1939, and that Act and any other enactment, regulation or rule relating to securities issued under that Act shall apply accordingly to the Stock.

(4) Not later than the vesting date the Commission shall pay to the Treasury an amount equal to the interest (without any deduction for income tax) which has accrued on the Stock in the period from the date when the last instalment of interest became payable on the Stock down to the vesting date (making separate calculations for any issues of the Stock with different interest dates), and that amount shall be paid into the Exchequer and shall be issued out of the Consolidated Fund at such times as the Treasury may direct and shall be applied towards meeting such part of the annual charges for the National Debt as represents interest.

Any question arising between the Commission and the Treasury as to the manner in which interest accrued on the Stock is to be calculated shall be determined by the Treasury.

(5) Not later than the vesting date the Commission shall pay to the Bank of England a sum equal to the amounts accrued due in respect of unclaimed interest on British Transport Guaranteed Stock before the vesting date (after deduction of income tax), including amounts applied under paragraph (2) of regulation 20 of the British Transport Stock Regulations, 1947, but excluding any amounts represented by money in the hands of the Bank of England.

The Bank of England shall deal with the money so paid to them, and with the money already in their hands which represents such unclaimed interest, as money entrusted to them for payment to holders of the Stock and section five of the Miscellaneous Financial Provisions Act, 1955 (which relates to unclaimed dividends on Government Stock), shall apply accordingly.

(6) Any unclaimed Stock which is held by the Commission immediately before the vesting date on behalf of persons who became entitled thereto in substitution for securities of the bodies whose undertakings were transferred to the Commission by the Transport Act, 1947, shall be held on and after that date on behalf of those persons by the National Debt Commissioners; and each of the Boards shall give to the Commissioners such information and such assistance as the Commissioners may reasonably require in connection with any claim to that Stock.

(7) The transitional provisions set out in Part I of the Seventh Schedule to this Act shall apply in relation to the Stock.

PART II

(8) On the vesting date section eighty-nine of the Transport Act, 1947, and the regulations made under that section shall cease to have effect, but this subsection shall not affect the rights and liabilities transferred to the Treasury under subsection (1) of this section.

Transfer of
redemption
funds.

37.—(1) Subsection (1) of the last foregoing section shall not impose on the Treasury any liability to establish or maintain any redemption fund, and—

- (a) the cash and investments which immediately before the vesting date represent the Redemption Fund established under the British Transport Stock Regulations, 1947, and
- (b) the right to receive any interest or dividends which are payable in respect of any such investments but which have not been received by the Commission before the vesting date,

shall vest by virtue of this subsection in the Treasury or in such nominees as the Treasury may appoint.

(2) Not later than the vesting date the Treasury shall pay to the Commission out of the Consolidated Fund an amount equal to the interest or dividends (without any deduction of income tax) which have accrued on the investments transferred under the foregoing subsection in the period from the date when the last instalment of interest became payable on those investments respectively down to the vesting date (making separate calculations for different investments).

Any question arising between the Commission and the Treasury as to the manner in which accrued interest or dividends are to be calculated shall be determined by the Treasury.

(3) Such of the investments transferred from the Commission under subsection (1) of this section as are securities the principal of and interest on which are charged on the Consolidated Fund shall be cancelled, and the remainder of those investments shall be sold.

(4) The net proceeds of the sale, and all other sums received by the Treasury or their nominees by virtue of this section shall be paid into the Exchequer and shall be issued out of the Consolidated Fund at such times as the Treasury may direct and applied by the Treasury in redeeming or paying off debt of such description as the Treasury see fit.

Extinction of
liability of the
Commission
for certain
Exchequer
advances.

38. On the vesting date all the liabilities of the Commission in respect of advances made to them by the Minister under section forty-two of the Finance Act, 1956, and under section two of the Transport (Railway Finances) Act, 1957, shall be extinguished.

39.—(1) Each of the Boards, and the Holding Company, shall severally assume, on the transfer to them by this Act of their part of the property, rights and liabilities of the Commission, a debt due to the Minister on such terms as may be imposed under this section. **PART II**
Commencing capital debts of the new bodies.

The said debts are in this Act referred to as the “commencing capital debts”.

(2) The amount of the commencing capital debts taken together shall be equal to—

- (a) the nominal value of all the stock to which subsection (1) of section thirty-six of this Act applies, and
- (b) the amount of the liability extinguished by the last foregoing section, and
- (c) the amount of the Capital Redemption Accounts as shown in the final accounts of the Commission,

with the deduction to be made under the next following subsection.

(3) The amount to be deducted under the last foregoing subsection shall be—

- (a) the total shown in the special account under section three of the Transport (Railway Finances) Act, 1957, as included in the final accounts of the Commission, and
- (b) the amount shown in the final accounts of the Commission in respect of the total discounts on the issue of British Transport Guaranteed Stock, less premiums on issue and less amounts written off, and
- (c) the amount shown in the final accounts of the Commission in respect of the book value of the cash and investments which are under paragraph (a) of subsection (1) of section thirty-seven of this Act to be transferred to the Treasury,

after deducting from the total of the amounts under paragraph (a), paragraph (b) and paragraph (c) of this subsection—

- (i) the amount shown in the final accounts of the Commission in respect of the net surplus on revenue account for the Commission's activities, excluding British Railways, for the period from the beginning of the year nineteen hundred and fifty-six to the end of the period for which the final accounts of the Commission are made up, and
- (ii) the sums paid by the Minister to the Commission by way of grant to meet deficits on revenue account, being sums paid out of money provided by Parliament since the beginning of April, nineteen hundred and sixty (and including sums so paid under Part IV of this Act).

PART II

(4) The commencing capital debt of each of the said bodies shall be such part of the total ascertained under subsection (2) of this section as the Minister may prescribe having regard to the manner in which the Commission's property, rights and liabilities are by this Act divided among those bodies.

(5) The Minister's power of prescribing the amount mentioned in the last foregoing subsection shall be exercisable by order, and he shall make such an order as soon as may be after the vesting date but may from time to time, but not more than five years after the vesting date, vary an order under this subsection by a further order, where that appears to him expedient to take account of some change in the manner in which the Commission's property, rights and liabilities are so divided (whether in consequence of an order under the Sixth Schedule to this Act or otherwise), and any such order may contain such transitional provisions as appear to him expedient to take account of any interest underpaid or overpaid on the commencing capital debt of any of the said bodies.

The Minister's power of making orders under this section shall be subject to the approval of the Treasury and shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of the Commons House of Parliament.

(6) Subject to the next following section, the rate of interest payable on the commencing capital debt of each of the said bodies, the time when the principal is to be paid off and the other terms of the debt shall be such as the Minister may with the approval of the Treasury from time to time direct.

(7) The Minister may, in the period before the first order is made under subsection (5) of this section, estimate what the commencing capital debt of the Boards and of the Holding Company will be, and require those bodies to make to him provisional payments by way of interest on those estimated amounts; and those provisional payments shall be on account of the payments of interest becoming due under subsection (6) of this section.

(8) Any sums received by the Minister by way of interest on, or repayment of, the commencing capital debt of any of the Boards or of the Holding Company shall be paid into the Exchequer and shall be issued out of the Consolidated Fund at such times as the Treasury may direct and applied by the Treasury as follows, that is to say—

- (a) so much thereof as represents principal shall be applied in redeeming or paying off debt of such description as the Treasury see fit, and
- (b) so much thereof as represents interest shall be applied towards meeting such part of the annual charges for the National Debt as represents interest.

40.—(1) Part of the commencing capital debt of the Railways Board shall be called the suspended debt, and shall not carry any interest, and shall not be required to be paid off at a fixed time unless and until the Minister otherwise directs. PART II
Railways
Board's
suspended
debt.

The Minister may give a direction under this subsection either as regards the whole of the suspended debt, or as regards a part of the suspended debt, and where he gives a direction as regards a part of the suspended debt he may from time to time vary the direction so as to increase the part of the suspended debt which is repayable and carries interest.

(2) The amount of the suspended debt shall be that part of the commencing capital debt which, in the opinion of the Minister, is not represented by the written-down book value of the assets which have been created by the Commission since the end of the year nineteen hundred and fifty-five and which vest in the Railways Board under this Part of this Act, and the Minister shall direct what that amount shall be:

Provided that the Minister may vary a direction under this subsection by a further direction, where that appears to him expedient to take account of any order under subsection (5) of the last foregoing section which varies the commencing capital debt of the Railways Board.

(3) For the purposes of the last foregoing subsection any securities which vest in the Railways Board under this Part of this Act shall be treated as if they were assets created by the Commission since the end of the year nineteen hundred and fifty-five.

(4) If at any time the Railways Board satisfy the Minister—

- (a) that an amount equal to the whole or any part of the net book value of an asset which is transferred to the Railways Board under or in pursuance of this Part of this Act could have been properly written off by the Commission, and that the Board have at any time properly taken account of that fact in their accounts, or
- (b) that at any time after the vesting date an asset which is so transferred to the Railways Board has gone out of use and that the Board have properly taken account of that fact by writing off an amount not exceeding the net book value of that asset in their books, and by adjusting their accounts accordingly,

the Minister may, if he thinks fit, direct that a specified amount of the suspended debt, not exceeding the amount mentioned in paragraph (a) or paragraph (b) of this subsection as the case may be, shall be extinguished.

(5) Any direction under this section shall be given by the Minister by an order made with the approval of the Treasury by statutory instrument which shall be subject to annulment in pursuance of a resolution of the Commons House of Parliament.

PART II

*Miscellaneous*Exemptions
from stamp
duty.

41.—(1) Nothing in section twelve of the Finance Act, 1895 (which requires Acts to be stamped as conveyances on sale in certain cases), or in section fifty-two of the Finance Act, 1946 (which exempts from stamp duty certain documents connected with nationalisation schemes), shall be taken as applying to this Act.

(2) Stamp duty shall not be chargeable under section one hundred and twelve of the Stamp Act, 1891, in respect of—

(a) the amount which is to form the nominal share capital of the Hotel Company, or

(b) any increase in the nominal share capital of that company.

to the extent to which it is certified to the Commissioners of Inland Revenue by the Commission or the Railways Board that the said capital, or, in the case of any increase, the said capital as so increased, does not exceed the total value of the assets less liabilities to be transferred to that company in pursuance of section thirty-three of this Act.

(3) Stamp duty shall not be chargeable on any instrument which is certified to the Commissioners of Inland Revenue by the Commission or any of the Boards as having been made or executed in pursuance of section thirty-three of this Act or paragraph 1 of the Sixth Schedule to this Act:

Provided that no such instrument shall be deemed to be duly stamped unless either it is stamped with the duty to which it would but for this subsection be liable or it has, in accordance with the provisions of section twelve of the Stamp Act, 1891, been stamped with a particular stamp denoting that it is not chargeable with any duty or that it is duly stamped.

(4) If before the vesting date the Commission cause any company limited by shares to be formed under the Companies Act, 1948, and any assets to be transferred to that company, for the purpose of facilitating the transfers to be effected by this Part of this Act—

(a) stamp duty shall not be chargeable under section one hundred and twelve of the Stamp Act, 1891, in respect of the amount which is to form the nominal share capital of the company, if it is certified to the Commissioners of Inland Revenue by the Commission that the company is formed for the purpose mentioned in this subsection and that the said amount does not exceed the total value of the assets less liabilities to be transferred to the company; and

- (b) stamp duty shall not be chargeable on any instrument which is certified to the Commissioners of Inland Revenue by the Commission as having been made for effecting any transfer of assets for the purpose mentioned in this subsection:

PART II

Provided that no such instrument as is mentioned in paragraph (b) of this subsection shall be deemed to be duly stamped unless it is stamped with the duty to which it would but for this subsection be liable or it has, in accordance with the provisions of section twelve of the Stamp Act, 1891, been stamped with a particular stamp denoting that it is not chargeable with any duty or that it is duly stamped.

42.—(1) Subject to this section, Part X and Part XI of the Income Tax Act, 1952 (which confer relief from income tax in respect of certain capital expenditure), shall apply as if—

Income tax: provisions for determining capital allowances for the Boards.

- (a) all the assets which under and in pursuance of this Part of this Act are respectively transferred to the Boards had been sold to them by the Commission on the vesting date in the open market at prices equal to the net book values of those assets (that is to say the values after deducting any provision for maintenance equalisation and for any form of depreciation) as shown in the books by reference to which the final accounts of the Commission are made up, and
- (b) on the vesting date the trade carried on by the Commission had been permanently discontinued and the Boards had set up new trades.

(2) If at any time the Minister directs under subsection (4) of section forty of this Act, and by reference to paragraph (a) of that subsection, that a part of the Railways Board's suspended debt shall be extinguished, this section shall apply, and shall be deemed always to have applied, as if the net values of the assets which under or in pursuance of this Part of this Act are transferred to the Railways Board were the amount determined under subsection (1) of this section after deducting from that amount a sum equal to the part of the Railways Board's suspended debt so extinguished.

There shall be made all such adjustments, whether by way of additional assessment or otherwise, as may be necessary to give effect to this subsection, and notwithstanding anything in the Income Tax Act, 1952, any adjustment to give effect to this subsection as respects any year of assessment may be made at any time not more than six years after the end of the year of assessment in which the Minister gives his direction under the said subsection (4).

PART II

(3) In subsection (1) of this section the reference to Parts X and XI of the Income Tax Act, 1952, shall not include a reference to section seventeen of the Finance Act, 1956 (capital allowances on expenditure on dredging), notwithstanding that that section is by virtue of subsection (12) thereof to be treated as contained in the said Part X; and the said section seventeen shall apply as if the trade carried on by the Commission was not permanently discontinued on the vesting date and was continued in part by the Railways Board, in part by the Docks Board, and in part by the British Waterways Board.

(4) The expression "statutory provision" in section four hundred and eighty-two of the Income Tax Act, 1952 (which relates to capital allowances where undertakings are absorbed in nationalisation schemes), shall not include this Act.

PART III

TRANSPORT CHARGES AND FACILITIES

General

Charges and
facilities:
general
provisions.

43.—(1) Subject to this Act,—

(a) all charges schemes under Part V of the Transport Act, 1947, shall cease to have effect, and

(b) no local enactment passed or made with respect to any particular undertaking so far as it limits the discretion of the persons carrying on that undertaking as to the charges to be made by them—

(i) for the carriage of passengers or goods,

(ii) for the use of any railway, or of any inland waterway by any ship or boat,

(iii) for services and facilities connected with the carriage of passengers or goods, or with the use of any railway, or of any inland waterway by any ship or boat, or

(iv) for services and facilities in or connected with a harbour,

(whether by specifying, or providing for specifying, the charges to be made, or fixing, or providing for fixing, maximum charges, or otherwise) shall apply to the charges of the Boards.

(2) Paragraph (b) of the foregoing subsection shall not be read as exempting the Boards from any local enactment so far as it expressly provides for freedom from charges or otherwise prohibits the making of any charge.

PART III

(3) Subject to this Act and to any such enactment as is mentioned in the last foregoing subsection, the Boards shall have power to demand, take and recover such charges for their services and facilities, and to make the use of those services and facilities subject to such terms and conditions, as they think fit.

(4) The Boards shall not be subject to the enactments listed in the Eighth Schedule to this Act (which—

- (a) impose a duty to afford reasonable services and facilities, and
- (b) regulate liability for negligence in the carriage of goods, and
- (c) authorise the revision of railway freight charges on complaint by competitors or traders).

(5) No local enactment passed or made with respect to any particular undertaking so far as it imposes on the persons carrying on that undertaking—

- (a) a duty to connect, or afford facilities for the connection of, any siding to a railway, or
- (b) a duty to permit privately owned railway wagons to be used on a railway owned or operated by them, or
- (c) a duty (otherwise than to a named person, or to the successors of a named person, or for the benefit of specified lands) to provide or maintain any other railway services or facilities (including the provision of stations, sidings or carriages and of any services, facilities or amenities connected therewith),

or so far as it otherwise makes provision corresponding to any of the enactments listed in the Eighth Schedule to this Act, shall apply to any of the Boards.

(6) None of the Boards shall be regarded as common carriers by rail or inland waterway.

(7) The Boards shall not carry passengers by rail on terms or conditions which—

- (a) purport, whether directly or indirectly, to exclude or limit their liability in respect of the death of, or bodily injury to, any passenger other than a passenger travelling on a free pass, or
- (b) purport, whether directly or indirectly, to prescribe the time within which or the manner in which any such liability may be enforced,

and any such terms or conditions shall be void and of no effect.

PART III

(8) The services and facilities referred to in subsection (3) of this section include, in the case of the British Waterways Board, the use of any inland waterway owned or managed by them by any ship or boat.

(9) Before the vesting date references in this section and in the following provisions of this Part of this Act to the Boards or to any of the Boards shall be construed, except so far as the context otherwise requires, as references to the Commission.

Passenger fares in London

Application
of current
passenger
charges
scheme in
London.

44. The Minister shall by order contained in a statutory instrument make such amendments in the charges scheme relating to passengers which is in operation under Part V of the Transport Act, 1947, immediately before the date on which this section comes into force as appear to him to be necessary for the purpose of limiting the application of the scheme—

(a) to charges for the carriage of passengers by railway on journeys wholly within the London Passenger Transport Area, and

(b) to charges for the carriage of passengers by road on routes wholly or partly within the London special area, including in each case any provision of the scheme as to the luggage which a passenger is entitled to take with him and the charges, if any, to be made in respect of that luggage; and that scheme, as so amended, shall continue in force on and after that date and apply to the London Board and the Railways Board.

Transport
Tribunal's
power to make
orders.

45.—(1) The Transport Tribunal shall, subject to and in accordance with the provisions of this Part of this Act, have power to make orders as respects the following charges of the London Board and the Railways Board, that is to say—

(a) charges for the carriage of passengers by railway on journeys wholly within the London Passenger Transport Area, and

(b) charges for the carriage of passengers by road on routes wholly or partly within the London special area except—

(i) charges for any service or part of a service which is the subject of a road service licence, and

(ii) charges for carriage in contract carriages,

and any such order may include provisions as to the luggage which a passenger is entitled to take with him and as to the charges, if any, to be made in respect of that luggage.

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(2) An order under this section may vary or revoke the charges scheme continued in force by the last foregoing section or any previous order under this section, and the said scheme and any orders for the time being in force under this section are hereinafter referred to as "the London fares orders".

(3) Any order under this section shall comply with the following requirements, that is to say—

- (a) it shall fix maximum charges except in cases where it appears not to be reasonably practicable or to be undesirable so to do ;
- (b) in cases in which no maximum charge is fixed it shall authorise the making of such charges as may be reasonable and provide for any questions as to the reasonableness of any such charge being determined, on the application either of the Board making the charge or of the person liable to be charged, by the Transport Tribunal, to the exclusion of any other court ;
- (c) it shall, save as aforesaid and subject to the provisions of this Act, secure that the charges to be made are left to the discretion of the Board concerned and that no limitations are imposed on that discretion ;
- (d) it shall secure that the Board concerned have to publish maximum charges but do not have to publish any other charges.

(4) In exercising their power to make orders under this section, the tribunal shall do nothing which will in the opinion of the tribunal prevent the London Board and the Railways Board from levying charges which make a proper contribution to the discharge of their financial duty, taking into account their present circumstances and future prospects and any directions given to them by the Minister under this Act.

In this subsection "financial duty" means the duty imposed by subsection (1) of section eighteen of this Act and includes, in the case of the Railways Board, the duty imposed by subsection (4) of section twenty-two of this Act.

(5) Where the tribunal make, or decline to make, an order under this section, they shall furnish a written statement of the reasons for their decision to the applicant and to every other person entitled to be heard on the application.

(6) It shall be the duty of the said two Boards to give to the tribunal all such assistance as is necessary or as the tribunal may require for the purpose of exercising their power to make orders under this section.

PART III
Applications
for orders.

46.—(1) An application for an order under the last foregoing section may be made to the Transport Tribunal—

- (a) by the London Board or by the Railways Board, or
- (b) by any representative body,

and shall be accompanied by a written case in support of the application.

(2) The London Board and the Railways Board may make a joint application under this section.

(3) The Transport Tribunal shall not entertain any application under this section by a representative body where in their opinion the application relates to a matter—

- (a) which has been the subject of consideration by the tribunal within the twelve months preceding the making of the application, or
- (b) which is of such magnitude that it should not be dealt with except as the result of such a review as is provided for by the next following section.

(4) The London Board and the Railways Board shall make such applications under this section as appear to them to be necessary in order to secure that their charges subject to the London fares orders make a proper contribution to the discharge of their financial duty, taking into account their present circumstances and future prospects and any directions given to them by the Minister under this Act.

In this subsection “financial duty” has the same meaning as in subsection (4) of the last foregoing section.

(5) Where an application is made under this section (not being an application which the tribunal refuse to entertain) the person making the application shall publish it in such manner as the tribunal may direct together with a notice stating where copies of the written case submitted in support of the application are available and specifying the time and manner (which shall be determined by the tribunal) in which objections to the application and other representations with respect thereto may be lodged with the tribunal by either of the Boards or by any representative body.

(6) As soon as may be after the time for lodging objections and representations has elapsed, the tribunal shall hold a public inquiry and shall at that inquiry hear the applicant and (where they are not the applicant) the Boards, and any representative body which has duly lodged with the tribunal an objection or other representation with respect to the application.

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(7) The Transport Tribunal shall not vary any charge other than those to which the application relates unless the tribunal is satisfied that the Board concerned and such other persons as appear to the tribunal to have a substantial interest have had an opportunity of being heard thereon but, subject to that, the tribunal may on the application make such order, if any, as they think fit, and particulars of the order shall, unless the tribunal determine that in all the circumstances publication is unnecessary, be published in such manner as the tribunal may specify.

(8) In this and the next following section the expression "representative body" means any body representative of, or of any section of, passengers travelling on journeys or routes the charges for which are subject to the London fares orders, and—

- (a) the London County Council, the council of any metropolitan borough and the Common Council of the City of London, and
- (b) the council of any county or county borough outside the county of London but wholly or partly within the London Passenger Transport Area, and
- (c) the council of any non-county borough or urban district wholly or partly within that Area and having a population of not less than fifty thousand according to the last census for the time being.

47.—(1) The Minister may at any time require the Transport Review of
Tribunal to review the operation of the London fares orders. London fares

(2) The tribunal shall give notice of any such requirement to the London Board and the Railways Board, and shall require the London Board to publish notice thereof in such manner as the tribunal may specify, together with a notice specifying the time and manner (which shall be determined by the tribunal) in which representations may be lodged with the tribunal by any representative body.

(3) As soon as may be after the time for lodging representations has elapsed, the tribunal shall hold a public inquiry and shall at that inquiry hear both the Boards and any representative body which has duly lodged a representation for the purposes of the review.

(4) The tribunal may then under section forty-five of this Act make such order, if any, as they think fit and particulars of the order shall, unless the tribunal determine that in all the circumstances publication is unnecessary, be published in such manner as the tribunal may determine.

PART III
Special
procedure for
temporary
authorisation
of increased
charges.

48.—(1) If it appears to the London Board or the Railways Board that there has been or will be an increase in costs or a fall in revenue which will seriously affect their financial position unless met quickly by an increase in their charges subject to the London fares orders, they may by notice published in the London Gazette and in such other manner as may appear to them best adapted for informing persons affected, declare that all or any of their maximum charges fixed under the London fares orders are to be treated, as from a date specified in the notice, as increased by such amounts as may be so specified in relation to those maximum charges respectively; and the notice shall have effect notwithstanding anything contained in, or having effect under, the foregoing provisions of this Part of this Act.

(2) A notice under this section shall contain a brief statement of the grounds on which it is given.

(3) Neither of the Boards shall, by means of a notice or notices having effect at any one time under this section, make increases in charges which appear to them to bring about an increase in their revenue from charges subject to the London fares orders exceeding ten per cent.

(4) Within one month, or such longer period as the Minister may allow, from the publication of a notice under this section in the London Gazette, the Board by whom the notice was given shall apply under section forty-six of this Act to the tribunal for the alteration of all or any of their fares subject to the London fares orders (whether or not all or any of those specified in the application were the fares affected by the notice).

(5) The written case submitted in support of the application shall also set out the grounds on which the Board gave the notice.

(6) The London Board and the Railways Board may give a joint notice under subsection (1) of this section.

(7) When the Transport Tribunal determine any application in pursuance of this section they shall by order fix a date for the termination of the relevant notice under this section.

Transitional
provisions.

49. The transitional provisions in Part II of the Seventh Schedule to this Act shall have effect for the purposes of the foregoing provisions of this Part of this Act relating to passenger fares in London.

Charges and conditions at harbours

PART III

50.—(1) The provisions of the Ninth Schedule to this Act shall have effect as regards the powers of the Boards to make port charges at the harbours specified in that Schedule. Port charges and conditions at harbours.

(2) Subsection (3) of section forty-three of this Act shall not authorise the Boards to make the use of their services and facilities at the said harbours subject to any term or condition which the Boards would not be able to impose apart from that subsection.

(3) In this and the next following section, and in the Ninth Schedule to this Act—

“port charges” in relation to a harbour means ship, passenger and merchandise dues, and charges for any other services and facilities provided in, or in connection with, a harbour but does not include charges for the carriage of merchandise or passengers on any railway, charges for the use of any railway or charges in respect of railway wagons ;

“ship, passenger and merchandise dues” means charges for—

- (a) any ship entering, using or leaving a harbour,
- (b) any passengers embarking or disembarking at a harbour, and
- (c) merchandise shipped or unshipped into or from a ship entering, using or leaving any harbour ;

“charges for any ship entering, using or leaving a harbour” includes charges made on any such ship in respect of marking and lighting the harbour ;

“merchandise” includes goods, fish, livestock and animals of all descriptions, and minerals.

51.—(1) An application may be made to the Minister— Revision of harbour dues.

(a) by the Docks Board, the Railways Board or the British Waterways Board, or

(b) by any person, or any body representative of persons, appearing to the Minister to have a substantial interest,

for the revision of any of the limitations on ship, passenger and merchandise dues imposed in respect of any harbour by paragraph 1, paragraph 2 and sub-paragraph (2) of paragraph 3 of the Ninth Schedule to this Act.

(2) On an application relating to dues at a harbour to which paragraph 3 of the said Schedule applies the Minister may take into review and regulate by order under this section any ship, passenger and merchandise dues which are subject to the limitation imposed by sub-paragraph (3) of that paragraph.

PART III

(3) The Minister shall not under this section vary any charge other than those to which the application relates except after consultation with the Board concerned and such other persons, or such bodies representative of such other persons, appearing to him to have a substantial interest as may appear to him appropriate.

(4) On an application under this section the applicant and, where the application is not made by the Board concerned, the Board shall furnish the Minister with such information and particulars, certified in such manner, as the Minister may require, and the applicant shall publish in such newspapers as the Minister may require a notice stating—

(a) the general effect of the application ; and

(b) that within a period of forty-two days from the date of the first publication of the notice any person having a substantial interest may object to the application by giving notice to the Minister accompanied by the grounds of his objection with a copy to the applicant.

(5) Before making an order on an application under this section, the Minister may, if he thinks fit, cause an inquiry to be held and shall do so if required by the applicant or by any person who has objected to the application and has not withdrawn his objection or, where the order would vary any charge other than those to which the application relates, by any person or body with whom he has consulted in pursuance of subsection (3) of this section.

(6) If on an application under this section the Minister is satisfied that in the circumstances then existing it is proper so to do, he may, subject to the provisions of this section, make an order revising in such manner as he may think fit, with effect from such date as may be specified in the order, all or any of the ship, passenger and merchandise dues at the harbour in question, whether or not the subject-matter of the application, including any classification by reference to which the amount of any of those dues is to be determined.

(7) In making any order on an application under this section, the Minister shall have regard to the financial position and future prospects of the Board concerned in respect of the harbour in question and shall not make any revision of the charges which, in his opinion, would be likely to result in the Board receiving an annual revenue from that harbour either substantially less or substantially more than adequate to meet the expenses and charges of the Board in respect of the harbour which are properly chargeable to revenue :

Provided that the Minister may make an order which results in the Board receiving an annual revenue from the harbour which

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is substantially less than adequate to meet those expenses and charges if he is satisfied that, in view of the financial position of the Board with respect to the harbour during such period immediately preceding the application as may appear to him to be appropriate, there are special circumstances affecting the harbour.

(8) Any order made under this section shall be made by statutory instrument and may vary or revoke any previous order so made.

(9) The Minister may refuse to entertain an application under this section where the application relates to a matter which has been the subject of consideration by him under this section within the twelve months preceding the making of the application.

(10) Subject to the last foregoing subsection an application may be made under this section at any time.

(11) For the purposes of the promotion by any of the Boards of a Bill, or of the making of a Provisional Order, being a Bill or Order containing a provision revising any of the dues authorised for any harbour under this Act, it shall be deemed, notwithstanding this section, that the objects of that provision cannot be attained except with new authority from Parliament.

Miscellaneous

52.—(1) Sections three and four of the Transport Charges, &c. (Miscellaneous Provisions) Act, 1954 (under which charges schemes under the Transport Act, 1947, may be applied to independent undertakings), together with any orders under those sections, shall cease to have effect, and the enactments listed in the Eighth Schedule to this Act shall cease to have effect not only as regards the Boards but also as regards any other undertakings.

(2) Paragraph (b) of subsection (1), and subsections (2), (3), (5) and (6) of section forty-three of this Act shall apply to any independent railway undertaking or independent inland waterway undertaking, subsection (7) of that section shall apply to any independent railway undertaking, and subsection (8) of that section shall apply to any independent inland waterway undertaking, as those subsections apply to the Boards.

(3) Paragraph (b) of subsection (1) of section six of the Transport Charges &c. (Miscellaneous Provisions) Act, 1954 (which relates to the revision of charges), shall not apply to any inland waterway undertaking which is an independent inland waterway undertaking within the meaning of this section.

PART III

(4) In this section—

“independent railway undertaking” means a railway undertaking not forming part of the undertaking of any of the Boards, being an undertaking the carrying on of which is authorised by, or by an order made under, an Act of Parliament;

“independent inland waterway undertaking” means an undertaking not forming part of the undertaking of any of the Boards, being an undertaking engaged in conserving, maintaining, improving or working a canal or other inland navigation or the navigation of a tidal water, but does not include—

(a) an undertaking none of the charges of which has been the subject of a Provisional Order made, and confirmed by Parliament, in pursuance of sections twenty-four and thirty-six of the Railway and Canal Traffic Act, 1888, or

(b) an undertaking forming part of a harbour undertaking if the inland waterway is situated wholly within the limits of the harbour, or

(c) an undertaking all or any of the charges of which are, under the statutory provisions relating to that undertaking, subject to revision by the Minister and some other Minister acting together;

“railway” does not include—

(a) a light railway laid wholly or mainly along a public carriageway and used wholly or mainly for the carriage of passengers, or

(b) a railway which, under the statutory provisions relating thereto, is to be treated as forming part of a tramway, or

(c) a railway laid wholly or mainly over a beach or wholly along a pier, or

(d) a railway of the nature of a lift providing communication between the top and bottom of a cliff;

“undertaking” means an undertaking carried on in Great Britain.

(5) This section shall apply to an independent railway undertaking or independent inland waterway undertaking whether or not the undertaking is also engaged in other activities, but shall not apply in respect of any such other activities.

Coastal
shipping.

53.—(1) If at any time a complaint is made to the Minister by any body appearing to him to be representative of the interests of persons engaged in coastal shipping as to—

(a) the charges for the carriage of goods by rail made by the Railways Board in competition with coastal shipping, or

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(b) the charges made by the Railways Board for the carriage by rail to or from any harbour of goods which are to be or have been carried by coastal shipping, the Minister may give directions to the Board with regard to the charges which are the subject of the complaint.

(2) The Minister shall not give a direction under this section with regard to any such charges as are mentioned in paragraph (a) of the foregoing subsection unless it appears to him—

- (a) that the charges in question are inadequate having regard to the full cost of affording the service or services in respect of which they are made, and
- (b) that a grant out of money provided by Parliament has been or is likely to be made under this Act to the Railways Board to meet a deficit on revenue account for the year in which those charges are made.

(3) The Minister shall not give a direction under this section with regard to any such charges as are mentioned in paragraph (b) of subsection (1) of this section unless it appears to him—

- (a) that the charges in question are excessive having regard to the full cost of affording the service or services in respect of which they are made, and
- (b) that the goods in question cannot reasonably be carried by coastal shipping unless they are carried by rail to or from the harbour specified in the complaint.

(4) If it appears to the Minister that a body making a complaint under subsection (1) of this section has a reasonable case to make in support of the complaint, he shall refer the complaint for investigation to a person appearing to him to have suitable qualifications for that purpose, and the Minister shall consider the report of that person before giving a direction upon the complaint under this section :

Provided that this subsection shall not apply to a complaint if it appears to the Minister that he has no power to give a direction upon the complaint by reason of paragraph (b) of subsection (2), or paragraph (b) of subsection (3), of this section.

(5) If it appears to the Minister on a complaint by any such body as is mentioned in subsection (1) of this section—

- (a) that the Railways Board have refused to quote a charge for the carriage by rail to or from any harbour of goods which are to be or have been carried by coastal shipping, and

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- (b) that the goods in question cannot reasonably be carried by coastal shipping unless they are carried by rail to or from the harbour specified in the complaint,

the Minister may give directions to the Board requiring them to quote a charge for the carriage in question.

(6) The procedure on any complaint under this section (including any reference of the complaint for investigation) shall be such as the Minister may determine.

(7) In this section, references to a charge made by the Railways Board for the carriage of any goods include references to a charge at which the Board hold themselves out as willing to carry any goods.

(8) The Coastal Shipping Advisory Committee established under section seventy-one of the Transport Act, 1947, is hereby abolished.

Advance
information
about railway
and shipping
closures.

54.—(1) With a view to giving the public advance notice of plans for the discontinuance of—

- (a) railway passenger or goods services provided by the Railways Board or the London Board, and

(b) shipping services provided by the Railways Board, the Railways Board or the London Board, as the case may be, shall from time to time publish in such manner and in such places in the United Kingdom as the Minister may direct such information as to their plans as the Minister may determine.

(2) For the purposes of this section, any shipping service provided by the Caledonian Steam Packet Company Limited or the Caledonian Steam Packet Company (Irish Services) Limited shall, so long as the company providing the service is a subsidiary of the Railways Board, be deemed to be a service provided by that Board.

PART IV

MISCELLANEOUS AND GENERAL

The Nationalised Transport Advisory Council, the Consultative Committees and the Transport Tribunal

The
Nationalised
Transport
Advisory
Council.

55.—(1) There shall be established in accordance with this section a Nationalised Transport Advisory Council for the purpose of advising the Minister on questions relating to the co-ordination, or any other aspect, of the nationalised transport undertakings.

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(2) The Council shall consist of—

- (a) a chairman, a vice chairman and not more than five other members who shall be appointed by the Minister from among persons appearing to him to have had wide experience of, and to have shown capacity in, industrial, commercial, financial or economic matters, applied science or administration ;
- (b) the chairmen of the Boards and the Holding Company ;
and
- (c) until the vesting date, the chairman of the Commission.

(3) The Minister may, if he thinks fit, appoint any other person (who shall not be a member of the Council) to assist the Council in its work.

(4) Notwithstanding subsection (2) of this section, the Minister may, instead of appointing a chairman of the Council, preside over the Council himself, and may in any case preside over it on any particular occasion.

(5) The persons appointed under subsection (2) of this section shall hold and vacate office in accordance with their terms of appointment and shall, on ceasing to hold office, be eligible for re-appointment:

Provided that any such person may at any time by notice in writing to the Minister resign his office.

(6) Any person whom the Minister proposes to appoint under subsection (2) of this section shall, when requested by the Minister so to do, furnish to him such information as the Minister may consider necessary for the purpose of satisfying the Minister that that person will have no such financial or other interest as is likely to affect prejudicially the discharge by him of his functions under this section.

(7) The Minister may pay out of money provided by Parliament to the persons appointed by him under this section such remuneration and such travelling allowances and allowances in respect of out-of-pocket expenses as the Minister may with the approval of the Treasury determine, and the Minister shall provide the Council with such officers and servants, and such accommodation, as appear to him to be requisite for the proper discharge of the Council's functions.

(8) In this section "the nationalised transport undertakings" means, before the vesting date, the undertakings of the Commission and of the bodies which are subsidiaries of the Commission, and, after that date, the undertakings of the Boards, the activities of the Holding Company and the undertakings of the bodies which are subsidiaries of any of the Boards or the Holding Company.

PART IV
The Transport
Consultative
Committees.

56.—(1) There shall be established in accordance with this section—

- (a) a Central Transport Consultative Committee for Great Britain (hereinafter referred to as the “Central Committee”), and
- (b) Area Transport Users Consultative Committees (hereinafter referred to as “Area Committees”) for such areas of Great Britain as the Minister may from time to time direct, but so that there is no part of Great Britain which is not within the area of an Area Committee and so that there is at all times an Area Committee for Scotland and an Area Committee for Wales and Monmouthshire.

(2) The Central Committee shall consist of a chairman appointed by the Minister, the chairmen of the Area Committees and such other members (not exceeding six) as the Minister may appoint after consultation with such bodies as appear to him to be representative of the interests of persons likely to be concerned with matters within the competence of the committee; and each Area Committee shall consist of a chairman appointed by the Minister, such other members as the Minister may appoint after consultation with such bodies as appear to him to be representative of the interests of persons likely to be concerned with matters within the competence of the committee and such other members (not exceeding two) as the Minister may appoint without such consultation.

The chairman of any Area Committee may appoint another member of that committee to attend a meeting of the Central Committee in his stead.

(3) The persons appointed to be members of any committee under this section shall hold and vacate office in accordance with the terms of their respective appointments and shall, on ceasing to be members of the committee, be eligible for re-appointment:

Provided that any such person may at any time by notice in writing to the Minister resign his office.

(4) Subject to the following provisions of this section, it shall be the duty of the Central Committee and of each Area Committee to consider and, where it appears to them to be desirable, make recommendations with respect to any matter affecting the services and facilities provided by any of the Boards—

- (a) which has been the subject of representations (other than representations appearing to the committee to be frivolous) made to the committee by or on behalf of users of those services or facilities, or

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(b) which has been referred to the committee by the Minister or by a Board, or

(c) which appears to the committee to be a matter to which consideration ought to be given ;

and copies of the minutes, conclusions and recommendations of each committee shall be sent to the Board concerned and—

(i) in the case of any Area Committee, to the Central Committee ; and

(ii) in the case of the Central Committee and the Area Committees for Scotland and for Wales and Monmouthshire, to the Minister.

(5) Nothing in the last foregoing subsection shall entitle any committee to consider the charges made for any service or facility, or to consider any question relating to the discontinuance or reduction of railway services except as provided in the following provisions of this section ; and the Central Committee shall not be obliged to consider any representation which appears to them to be more suitable for consideration by an Area Committee or which has been previously considered by an Area Committee.

(6) Where the Minister receives a recommendation under subsection (4) of this section he may give to the Board concerned such directions as he thinks fit with respect to the matters dealt with in the recommendation.

(7) Where the Railways Board or London Board propose to discontinue all railway passenger services from any station or on any line (hereinafter referred to as a closure), they shall, not less than six weeks before carrying their proposal into effect, publish in two successive weeks in two local newspapers circulating in the area affected, and in such other manner as appears to them appropriate, a notice—

(a) giving the date and particulars of the proposed closure, and particulars of any alternative services which it appears to the Board will be available and of any proposals of the Board for providing or augmenting such services ; and

(b) stating that objections to the proposed closure may be lodged in accordance with this section within six weeks of a date specified in the notice (being the date on which the notice is last published in a local newspaper as required by this section) ;

and copies of the notice shall be sent to the appropriate Area Committee.

For the purposes of this and the next following subsection the appropriate Area Committee is the committee for the area in which the station or the line, or any part of the line, affected by the proposed closure is situated.

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(8) Where a notice has been published under the last foregoing subsection any user of any service affected and any body representing such users may within the period specified in the notice lodge with the appropriate Area Committee an objection in writing; and where such an objection is lodged the committee shall forthwith inform the Minister and the Board concerned and the closure shall not be proceeded with until the committee has reported to the Minister and the Minister has given his consent.

(9) A committee with whom an objection has been lodged under the last foregoing subsection shall consider the objection and any representations made by the Board concerned and report to the Minister as soon as possible on the hardship, if any, which they consider will be caused by the proposed closure, and the report may contain proposals for alleviating that hardship.

Where objections with respect to any proposed closure have been lodged with more than one Area Committee, the committees in question—

- (a) may report to the Minister jointly, or
- (b) may agree that the consideration of objections and representations relating to the closure and the making of a report to the Minister shall be delegated to any of those committees appearing to them to be principally concerned;

and copies of every report under this and the next following subsection shall be sent to the Central Committee and to the Board concerned.

(10) The Minister may require an Area Committee to make a further report; and if in any case the Minister considers that a report or further report has been unreasonably delayed he may, after consulting the committee concerned and making such enquiries as he thinks fit, consent to the proposed closure without awaiting the report or further report.

(11) In any case in which a closure requires the consent of the Minister under this section, the Minister may give his consent subject to such conditions as he thinks fit and may from time to time vary those conditions; and the Minister may in connection with the closure from time to time give such directions to the Board concerned as he thinks fit.

Where a condition attached to a consent, or a direction, requires the Board to provide or assist in the provision of alternative services, the Minister may refer to an Area Committee any matter relating to those services, and the committee shall consider and report to the Minister on that matter.

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(12) Every committee established under this section shall meet when convened by the chairman thereof, but in no case less frequently than twice a year, and, without prejudice to the discretion of the chairman to call a meeting whenever he thinks fit, he shall call a meeting when required so to do by any three members of the committee, and minutes shall be kept of the proceedings at every meeting.

(13) Where for the purposes of subsection (9) of this section a committee decide to hear an objector orally, or to hear oral representations made on behalf of a Board, they shall hear the objector and the representations in public.

(14) Subject to subsections (12) and (13) of this section, every committee established under this section shall determine its own procedure including the quorum at meetings of the committee; and the Central Committee may from time to time make general recommendations to the Area Committees with respect to any matter affecting the procedure or functions of those committees.

(15) The Central Committee and the Area Committees for Scotland and for Wales and Monmouthshire shall make an annual report to the Minister, and the Minister shall lay a copy of those reports before each House of Parliament.

(16) The Boards shall provide every committee established under this section with such officers and servants, and such office accommodation, as appear to the Boards to be requisite for the proper discharge of the committees' functions or as may be directed by the Minister; and the Boards may pay to the members of any such committee allowances in respect of loss of remunerative time in accordance with a scale approved by the Minister with the consent of the Treasury and such travelling allowances and allowances in respect of out-of-pocket expenses as the Boards may determine.

The Boards shall contribute to the expenses incurred by them under this subsection in such proportions as they may agree or as the Minister may in default of agreement direct.

(17) The transitional provisions in Part III of the Seventh Schedule to this Act shall have effect for the purposes of this section.

(18) For the purposes of subsection (4) of this section, any shipping service provided by the Caledonian Steam Packet Company Limited or the Caledonian Steam Packet Company (Irish Services) Limited shall, so long as the company providing the service is a subsidiary of the Railways Board, be deemed to be a service provided by that Board.

(19) Before the vesting date references in this section to the Boards or to any Board shall be construed, except so far as the context otherwise requires, as references to the Commission.

PART IV
The Transport
Tribunal.

57.—(1) The number of members of the Transport Tribunal shall be increased from three to five, and of the members appointed by virtue of this section—

- (a) one shall be a person of experience in transport business, and
- (b) one shall be a person of experience in financial matters or economics.

(2) As from the date on which this section comes into force, the tribunal shall sit in two divisions to be known as the London Fares and Miscellaneous Charges Division and the Road Haulage Appeals Division.

(3) The London Fares and Miscellaneous Charges Division shall exercise the jurisdiction of the tribunal under—

- (a) Part III of this Act, and
- (b) the Post Office Act, 1953, and section twenty-four of the Transport Act, 1953 (which relate to charges for the carriage of mail and of the armed forces and police),

and shall consist of the president of the tribunal and two members of the tribunal having respectively the qualifications mentioned in subsection (1) of this section.

(4) The Road Haulage Appeals Division shall exercise the jurisdiction of the tribunal under Part IV of the Road Traffic Act, 1960 (which relates to road carriers' licences), and shall consist of the president of the tribunal and two members of the tribunal of whom one shall be a person of experience in transport business and the other a person of experience in commercial affairs.

(5) Notwithstanding the last foregoing subsection, for the purpose of any proceedings coming before the tribunal under Part IV of the Road Traffic Act, 1960, the president of the tribunal may, if he thinks fit, appoint one or more persons from a special panel (constituted in accordance with paragraph 6 of the Tenth Schedule to this Act) to hear and determine those proceedings, whether alone or with a member or members of the Road Haulage Appeals Division; and where the president does not himself sit in any such proceedings he shall direct which person is to preside.

(6) The jurisdiction of the tribunal under any enactment other than those mentioned in the foregoing provisions of this section is hereby abolished.

(7) Any objection or application which, before the date on which this section comes into force, was referable to the tribunal under the Railway Employment (Prevention of Accidents) Act, 1900 (which relates to safety rules), shall be referred instead to

a referee appointed (either generally or for the purpose of a particular case) by the Minister; and the said Act shall have effect with the necessary modifications.

PART IV

Any objection or application under the said Act which is pending before the tribunal on that date shall be proceeded with before a referee appointed under this subsection in such manner as the Minister may direct.

(8) There shall be transferred to the High Court the jurisdiction which before the date on which this section comes into force was vested in the tribunal under subsection (2) of section sixteen of the Railway and Canal Traffic Act, 1888 (which relates to the apportionment of expenses in certain cases), and any proceedings by virtue of that jurisdiction which are pending before the tribunal on that date shall be proceeded with in the High Court in such manner as the court may direct.

(9) Any local enactment which makes provision corresponding to Part III of the Railways Clauses Act, 1863 (which relates to the approval by the tribunal of working agreements), shall cease to have effect; and where before the date on which this section comes into force any jurisdiction was vested in the tribunal under any other local enactment (except an enactment ceasing to apply by virtue of Part III of this Act) that jurisdiction shall be transferred to the High Court, and any proceedings by virtue of that jurisdiction which are pending before the tribunal on that date shall be proceeded with in the High Court in such manner as the court may direct.

(10) In the application of the two last foregoing subsections to Scotland, references to the High Court shall be construed as references to the Court of Session.

(11) The general panel and the transport panel constituted under section twenty-four of the Railways Act, 1921, and the shipping panel constituted under section thirty-nine of the Road and Rail Traffic Act, 1933, are hereby abolished.

(12) The provisions of the Tenth Schedule to this Act (which reproduce the existing law with minor modifications and the modifications consequent on this section) shall have effect with respect to the constitution, powers and proceedings of the tribunal.

Provisions relating to the Boards

58.—(1) On and after the vesting date, in section sixteen and subsection (2) of section seventeen of the London Passenger Transport Act, 1933 (under which those carrying passengers by road in the London area must obtain the consent of the Commission in certain circumstances), for references to the Commission there shall be substituted references to the London Board.

Restrictions
on carriage
by road in
London.

PART IV

(2) If the London Board, on an application for their consent under either of the said sections made at any time after the vesting date, refuse to give the consent in the terms of the application, the applicant may within one month from receipt of notice of their refusal apply to the metropolitan traffic commissioner, and if the metropolitan traffic commissioner is of the opinion that the refusal is unreasonable, he may give the consent either in the terms of the application or in such other terms as appear to him to be appropriate, and that consent shall have effect as if given by the London Board.

(3) If within a period of one month beginning with the date of the application, or within such extended period as may at any time be agreed in writing between the applicant and the London Board, the London Board do not notify the applicant of their decision on the application, subsection (2) of this section shall apply in relation to the application as if the London Board had refused to give consent in the terms of the application and had notified the applicant of their decision at the end of the said period.

(4) The applicant or the London Board may appeal to the Minister against the decision of the metropolitan traffic commissioner on an application under subsection (2) of this section, and on such an appeal the Minister may confirm, vary or annul the decision.

(5) The right of appeal to the Minister conferred by the last foregoing subsection shall be conditional on the appeal being made within the time, and in the manner, prescribed by regulations made under the following provisions of this section.

(6) The Minister may by statutory instrument make regulations as to the procedure on any application under this section, and on any appeal to the Minister from such an application, and the regulations may make provision as to—

- (a) the particulars to be furnished and the persons to whom notices are to be given, and the manner in which notices are to be published or served;
- (b) the manner in which objections or other representations with respect to applications are to be made;
- (c) the time within which and the manner in which any appeal to the Minister is to be made.

(7) In this section "the metropolitan traffic commissioner" means the traffic commissioner for the Metropolitan Traffic Area.

Special
restrictions on
grant to
London Board
of road service
licences.

59.—(1) The traffic commissioners shall not under Part III of the Road Traffic Act, 1960, grant to the London Board a road service licence (whether or not in substitution for another licence) to provide a road service over a route which is not within the London Passenger Transport Area unless they are

PART IV

satisfied that any person who is providing transport facilities along or near any part of the route, and whose interest will in their opinion be substantially affected if the licence is granted,—

(a) has, whether as one of the terms of a working agreement made with the London Board or otherwise, consented to the making of an application for the licence, or

(b) has unreasonably refused or withheld his consent.

(2) The traffic commissioners shall not under subsection (5) of section one hundred and thirty-five of the Road Traffic Act, 1960, on the application of the London Board vary the conditions attached to a road service licence granted by them to the London Board, being a licence to provide a road service over a route which is not within the London Passenger Transport Area, unless they are satisfied that any person who is providing transport facilities along or near any part of the route, and whose interest will in their opinion be substantially affected if the variation is made,—

(a) has consented to the making of the application, or

(b) has unreasonably refused or withheld his consent,

and they shall not vary the conditions attached to such a licence otherwise than on the application of the London Board unless they are satisfied that any such person has had an opportunity of consenting to the proposal for the variation and either has consented to the proposal or has unreasonably refused or withheld his consent.

(3) Subsections (1) and (2) of this section shall not apply—

(a) if the route to which the licence relates is one of the London Transport Executive's routes as defined in subsection (5) of section eight of this Act, and is not a restricted route as defined in subsection (5) of this section, or

(b) if that route is one of the London Transport Executive's routes, and is a restricted route as so defined, but the licence is, or when the conditions are varied will be, subject to a condition that the London Board shall not both pick up and set down a passenger on the route, or

(c) if the Minister certifies to the traffic commissioners that there are exceptional circumstances which make it desirable that the relevant provisions of those subsections should not apply in relation to the proceedings specified in the certificate,

PART IV

or if part of the route falls under one of the foregoing paragraphs and part under another (but the subsections shall apply if part of the route falls outside those paragraphs).

(4) Any road service licence which is transferred on the vesting date to the London Board under Part II of this Act and which authorises the London Board to provide a road service on a restricted route shall have effect as if it contained a condition that the Board shall not both pick up and set down a passenger on the route, but any such condition may be varied subject to the provisions of this section.

(5) In the two last foregoing subsections the expression "restricted route" means a route over which the London Transport Executive had at any time in the period of twelve months ending on the second day of November, nineteen hundred and sixty-one, power to carry passengers by public service vehicles subject to a condition that they should not both pick up and set down a passenger on the route; and the Minister shall in the order made by him under subsection (5) of section eight of this Act distinguish the routes which were so restricted.

(6) Any determination of the traffic commissioners under subsection (1) of this section shall be open to review on an appeal under subsection (1) or subsection (3) of section one hundred and forty-three of the Road Traffic Act, 1960 (which relates to appeals against the refusal to grant a licence and against the granting of a licence), and any determination of the traffic commissioners under subsection (2) of this section shall be open to review on an appeal under subsection (2) or subsection (3) of the said section.

(7) This section shall apply whether or not the route to which the licence relates is partly within the London Passenger Transport Area, but for the purposes of this section the part within that Area shall be left out of account.

(8) If such part of the route as is outside the said Area is only provided to reach a terminal point or stand which is not more than half a mile, or in the county of Berkshire one mile, beyond the boundary of the said Area, this section shall not apply in relation to the route.

(9) This section shall be construed as one with Part III of the Road Traffic Act, 1960.

Carriers'
licences for
vehicles
operated by
subsidiaries
of the Boards
and other
bodies.

60.—(1) For the purposes of the definition of "holding company" in subsection (4) of section one hundred and eighty of the Road Traffic Act, 1960 (which relates to carriers' licences for the vehicles of a subsidiary), the Boards and the Holding Company shall each be deemed to be a company and the said section one hundred and eighty shall have effect accordingly.

PART IV

(2) If on the vesting date a subsidiary of the Commission becomes a subsidiary of the Holding Company, any carriers' licence under Part IV of the Road Traffic Act, 1960, held by the Commission for a vehicle owned by the subsidiary shall thereafter have effect as if granted to the Holding Company; and for the purposes of section one hundred and eighty of the Road Traffic Act, 1960, the Holding Company shall be deemed to have made the application for the licence and to have signified to the licensing authority their desire that the section should have effect as respects the subsidiary.

(3) If as a result of a transaction effected by the Holding Company not more than twelve months after the vesting date, and at a time when the Holding Company hold carriers' licences under Part IV of the Road Traffic Act, 1960, for vehicles owned by a subsidiary, the subsidiary becomes a wholly-owned subsidiary of a company (hereinafter referred to as "the company") which is itself a wholly-owned subsidiary of the Holding Company, any such licence for a vehicle then owned by the subsidiary shall thereafter have effect as if granted to the company; and for the purposes of section one hundred and eighty of the Road Traffic Act, 1960, the company shall be deemed to have made the application for the licence and to have signified to the licensing authority their desire that the section should have effect as respects the subsidiary.

61.—(1) As from the vesting date, section seventeen of the Regulation of Railways Act, 1873 (which requires the Commission to maintain certain inland waterways), shall have effect as if—

Amendment of enactments relating to inland waterways.

- (a) the reference in that section to every railway company included a reference to the British Waterways Board, and
- (b) for the references in that section to a canal there were substituted, in relation to that Board, references to any inland waterway comprised in the undertaking of the Board which was by virtue of the Transport Act, 1947, transferred to the Commission and which has not been closed to navigation by or under any statutory provision.

(2) Sections thirty-five and thirty-six of the Transport Act, 1947 (under which the Commission may apply a licensing system to canal carriers on an inland waterway belonging to them), shall cease to have effect.

(3) In section thirty-seven of the Transport Act, 1947 (which relates to the abandonment of inland waterways by the Commission), for references to the Commission there shall as from the vesting date be substituted references to the British Waterways Board.

PART IV

(4) The definition of "statutory water undertakers" in subsection (1) of section fifty-nine of the Water Act, 1945, shall not include the British Waterways Board.

Local enactments relating to the supply of water for canals.

62.—(1) Any local enactment which authorises the British Waterways Board to take water for the purpose (whether express or implied) of using the water for a canal owned or managed by the British Waterways Board, or for purposes which include that purpose, shall have effect as if that purpose included the purpose of selling, or affording the use of, water from the canal; and the British Waterways Board may exercise their powers under Part I of this Act accordingly.

(2) The foregoing subsection shall not be taken as authorising the British Waterways Board—

- (a) to disregard any restriction, whether as regards quantity or rate or otherwise, on the water which may be taken from any source, or
- (b) to affect the level or flow of water in any part of the canal, or in any river or watercourse fed from the canal, to a degree which conflicts with any of the Board's obligations, and in particular with any statutory obligation to maintain the canal in a navigable condition.

Abstraction of water by British Waterways Board.

63.—(1) Subject to this section the British Waterways Board shall not without the consent of the Minister sell water from an inland waterway—

- (a) unless the water is abstracted at a point at which water was being abstracted before the passing of this Act, and
- (b) unless the quantity of water sold in the period of twelve months beginning with the vesting date, and in each subsequent period of twelve months, does not exceed the quantity abstracted at that point in the period of twelve months ending with the passing of this Act, and
- (c) unless the land or premises on which the water is used is the same as that on which the water was used before the passing of this Act.

(2) If on the vesting date the British Waterways Board become subject to an obligation to sell water such that the quantity they are obliged to sell is limited, whether by reference to the average rate of abstraction, or the quantity abstracted in any period, or otherwise, then, so long as the terms of the obligation are not varied, subsection (1) of this section shall not apply to the sale of water in discharge of the obligation.

(3) Subsection (1) of this section shall not apply to the sale of water under section thirty-five of the River Lee Water Act, 1855 (under which a limited quantity of water may be sold for industrial purposes), or under section thirty-five of the Lee Conservancy Act, 1900 (under which the abstraction of water may be regulated by byelaw).

PART IV

(4) The British Waterways Board shall serve on the persons specified in this section notice of any application made by them for the consent of the Minister, giving sufficient particulars of their proposals and of the terms of the consent applied for, and stating that the person on whom the notice is served should submit any objections to the Minister within twenty-eight days of service of the notice and should within that time send a copy of any such objection to the Board.

(5) The British Waterways Board shall publish in one or more newspapers circulating in the area in which the point of abstraction is situated a notice of any application made by them for the consent of the Minister, giving sufficient particulars of their proposals and of the terms of consent applied for.

(6) Except in Scotland, the persons on whom the notice is to be served shall be—

- (a) the council of the borough or urban or rural district in which the point of abstraction is situated,
- (b) the River Board in whose area the point of abstraction is situated, and
- (c) the statutory water undertakers within whose limits of supply the point of abstraction is situated, and any other statutory water undertakers on whom the Minister, after consultation with the Minister of Housing and Local Government, directs the notice to be served.

(7) In Scotland the persons on whom the notice is to be served shall be—

- (a) the council of the county or burgh in which the point of abstraction is situated,
- (b) the river purification authority in whose area the point of abstraction is situated and any other river purification authority on whom the Minister after consultation with the Secretary of State directs the notice to be served,
- (c) any salmon fishery district board on whom the Minister after consultation with the Secretary of State directs the notice to be served, and
- (d) the local water authority within whose limits of supply the point of abstraction is situated and any other local water authority on whom the Minister after consultation with the Secretary of State directs the notice to be served.

(8) The British Waterways Board shall give the Minister such information as he may require to determine whether any directions should be given under the two last foregoing subsections.

(9) The Minister shall not entertain the application unless he is satisfied that all the required notices have been duly given; and the Minister shall take into consideration any objections duly made by the persons on whom they have been served.

PART IV

(10) The Minister in considering the application and the terms in which any consent ought to be given shall have regard—

- (a) to the importance of the uses to which the abstracted water will be put and to the present and future needs
• of statutory water undertakers, industry and agriculture, and
- (b) to the effect which the proposals may have on fisheries, land drainage or public health, or on the inland waterway directly affected or any other inland waterway or stream, and
- (c) to the extent to which the abstracted water will be returned,

and shall, before giving his consent as respects any inland waterway in Scotland, consult the Secretary of State.

(11) The Minister may give his consent either in the terms requested in the application, or in any other terms, but shall not afford terms more favourable than those requested unless he is satisfied that all the authorities concerned have had an opportunity of considering those terms and making objections.

(12) The terms of any consent given by the Minister shall be transmitted by the British Waterways Board to each of the persons on whom they are required in pursuance of this section to serve notice of their application for consent.

(13) The Commission shall before the vesting date compile for the use of the British Waterways Board a record of all cases in which, in the period of twelve months ending with the passing of this Act, they were abstracting water from inland waterways for use on any land or premises, and shall include in the record particulars of the land or premises on which the water was used, of the points of abstraction, of the total quantities abstracted in the said period, and of any contract under which they were obliged to sell the water.

The British Waterways Board shall give reasonable facilities for the inspection of the record by representatives of the authorities described in subsections (6) and (7) of this section, and shall, at the request of any such authority, give them any information as to the contents of the record.

(14) In this section—

“local water authority” has the meaning given by section five of the Water (Scotland) Act, 1946;

“river purification authority” has the same meaning as in Part III of the Rivers (Prevention of Pollution) (Scotland) Act, 1951;

“salmon fishery district board” means the district board for a fishery district for the purposes of the Salmon Fisheries (Scotland) Act, 1862, and the Commissioners appointed under the Tweed Fisheries Act, 1857;

PART IV

“statutory water undertakers” has the meaning given by subsection (1) of section fifty-nine of the Water Act, 1945 ;

“stream” includes any river or watercourse whether natural or artificial.

(15) This section shall apply to the Conservators of the River Thames and the Lee Conservancy Catchment Board as if they were River Boards and their areas were the Thames catchment area and the Lee catchment area respectively.

(16) References in this section to the sale by the British Waterways Board of water from an inland waterway include references to any arrangements whereby the Board for valuable consideration abstract, or authorise the abstraction of, the water of an inland waterway for use by some other person, whether or not the water is returned after use.

(17) The granting of consent under this section shall not be taken as authorising the British Waterways Board to do anything which they would not have power to do apart from the provisions of this section.

64.—(1) In this section “the interim period” means the period beginning with the passing of this Act and expiring at the end of the year nineteen hundred and sixty-seven.

Temporary suspension of liability to maintain inland waterways.

(2) During the interim period no action or other proceeding shall be instituted or continued for the purpose of enforcing any obligation of the Commission or the British Waterways Board (whether statutory or otherwise) to maintain any inland waterway or part of an inland waterway which was not in a navigable condition at any time in the period of six months ending on the second day of November, nineteen hundred and sixty-one ; and, in any proceedings against the Commission or the British Waterways Board which are brought for that purpose before the end of the year nineteen hundred and sixty-seven as respects an inland waterway or part of an inland waterway which was to any degree navigable in the said period of six months, the defendants shall not be required to secure its maintenance in a condition which is, in matters affecting navigation, better than it was in at any time in that period, but if there has been any deterioration since the end of that period the court may, if satisfied that it is in the interests of navigation, require the defendants to secure its maintenance in the condition in which it was at any time in the said period.

(3) No person shall be entitled to recover from the Commission or from the British Waterways Board any damages or other sum or compensation in respect of any inability to navigate any inland waterway during the interim period in consequence of it

PART IV not being in a navigable condition unless the right in respect of which he would be so entitled is a right—

- (a) which he has exercised or sought to exercise at some time in the period of six years ending with the relevant date, or
- (b) which his predecessor in title has exercised or sought to exercise at some time in the period of six years ending with the relevant date,

and unless he commences proceedings in respect thereof not later than twelve months after the end of the interim period :

Provided that this subsection shall not prevent the court from awarding any sum in respect of defects in the inland waterway if it is shown that it was without any of those defects at some time in the period of six months ending on the second day of November, nineteen hundred and sixty-one.

For the purposes of this subsection—

- (i) the expression “ the relevant date ” means in relation to the Kennet waterways the twenty-sixth day of November, nineteen hundred and fifty-five, and in relation to any other inland waterway the second day of November, nineteen hundred and sixty-one ;
- (ii) the expression “ the Kennet waterways ” has the meaning assigned to it by section fifteen of the British Transport Commission Act, 1956 ;
- (iii) the expression “ predecessor in title ” includes a person whose business or part of whose business (being a business or part of a business in connection with which that person has exercised or sought to exercise the right of navigation in question) has been acquired by the successor whether by succession, purchase, amalgamation, reconstruction or otherwise ; and
- (iv) the amount of any damage suffered by a person shall be deemed to have accrued from day to day.

(4) During the interim period any inland waterway comprised in the undertaking of the Commission or the British Waterways Board which has not been closed to navigation by or under any statutory provision shall be deemed to be a watercourse for the purposes of section two hundred and fifty-nine of the Public Health Act, 1936, and paragraph (b) of subsection (1) of section eighty-two of the Public Health (London) Act, 1936 ; and the provisions of Part III of the Public Health Act, 1936, as they apply by virtue of this subsection may be enforced by a county council as well as by a local authority as defined in that Act.

(5) For the purposes of section thirty-three of the Town and Country Planning Act, 1947 (which relates to the proper maintenance of gardens, vacant sites and other open land), any inland waterway comprised in the undertaking of the Commission or the British Waterways Board which has not been closed to navigation by or under any statutory provision shall during the interim period be deemed to be a vacant site, and any local authority within the meaning of that Act (and not only the local planning authority) shall be entitled to enforce the provisions of that section as it applies by virtue of this subsection.

(6) This section shall not affect section eighteen of the British Transport Commission Act, 1956 (which imposes certain liabilities as respects the Kennet waterways), but sections sixteen and seventeen of that Act, and so much of sections twenty and twenty-one of that Act as relates to the Kennet waterways shall cease to have effect.

(7) Nothing in this section shall be taken as preventing proceedings being taken to enforce a right other than a right of navigation.

(8) This section shall have effect as from the passing of this Act.

65.—(1) In this section—

“the railway savings banks” means the savings banks The railway savings banks.
established under—

section twenty-three of the Metropolitan Railway Act, 1873,

section forty-five of the Great Western Railway Act, 1885,

section eighteen of the Taff Vale Railway Act, 1895,

section sixty-one of the London, Midland and Scottish Railway Act, 1924,

section ninety-nine of the Southern Railway Act, 1924, and

section three of the London and North Eastern Railway Act, 1944,

and any other savings bank for which the Commission was responsible before the vesting date and which primarily served those employed by the Commission on their railways;

“the appropriate Board” means—

(a) in relation to the savings bank established under the Metropolitan Railway Act, 1873, the London Board,

(b) in relation to any other railway savings bank, the Railways Board.

PART IV

(2) Part II of this Act shall not apply to the property, rights and liabilities of the Commission so far as held and subsisting for the purposes of any railway savings bank, but all such property, rights and liabilities shall by virtue of this section be transferred on the vesting date to the appropriate Board and held and assumed by that Board subject in all respects to the duties and obligations to which the Commission were subject immediately before the vesting date.

(3) As from the vesting date, for references to the Commission in the enactments listed in subsection (1) of this section and in any other statutory provision, so far as that provision relates to a railway savings bank, there shall be substituted references to the appropriate Board, and for references in any such enactment to any officer or servant of, or person appointed by, the Commission there shall be substituted a reference to such person as the appropriate Board may appoint or, in default of appointment, in the case of references to any officer or servant of the Commission, to the officer or servant of that Board who corresponds as nearly as may be to the first-mentioned officer or servant.

(4) Subject to this section, the persons entitled to deposit money in the railway savings banks established under section forty-five of the Great Western Railway Act, 1885, section sixty-one of the London Midland and Scottish Railway Act, 1924, section ninety-nine of the Southern Railway Act, 1924, and section three of the London and North Eastern Railway Act, 1944, shall be—

- (a) existing depositors,
- (b) persons employed by the Railways Board,
- (c) persons who, owing to incapacity arising from ill health or on reaching retirement age, have retired from service with the Railways Board or the Commission or the railway company by which the savings bank was established,
- (d) members of the families of persons of any of the foregoing descriptions,
- (e) any group, society or association the members of which consist, or mainly consist, of persons of any of the foregoing descriptions.

(5) The persons entitled to make deposits in any railway savings bank other than those to which the last foregoing subsection applies shall be the persons who are depositors in that bank on the vesting date, and, where any such depositor is a man who dies leaving a widow, his widow during her widowhood.

(6) So much of the enactments listed in the definition of railway savings banks in subsection (1) of this section as relates to the charging of deposits on the undertaking or profits of any body shall cease to have effect.

PART IV

66.—(1) Subject to this section, in section eighty-six of the Local Government Act, 1948 (which defines the railway and canal hereditaments which by virtue of Part V of that Act are not liable to be rated), and in subsection (6) of section nine of the Rating and Valuation (Miscellaneous Provisions) Act, 1955, and paragraph twenty-three of the Eighth Schedule to the Local Government Act, 1958 (which relate to railway or canal hereditaments partly used for other purposes), for references to the Commission there shall be substituted references to any of the Boards, other than the Docks Board. Liability of
Boards to
rates.

(2) In the rating year following that in which the vesting date falls, and in all subsequent rating years, the Railways Board, the London Board and the British Waterways Board shall respectively make payments for the benefit of local authorities in lieu of the rates which would, apart from the provisions of Part V of the Local Government Act, 1948, be payable to rating authorities in England or Wales in respect of railway or canal hereditaments, and the amount of those payments shall be determined by reference to the following amounts (which are hereafter in this section referred to as standard amounts and which together add up to the standard amount specified as regards the Commission in subsection (4) of section ninety-three of the Local Government Act, 1948, as amended by section two of the Rating and Valuation Act, 1957), that is to say—

	£
the Railways Board 	1,905,000
the London Board 	649,000
the British Waterways Board 	46,000

(3) In the rating year following that in which the vesting date falls, and in all subsequent rating years, the Railways Board shall make payments for the benefit of local authorities in Scotland in lieu of the rates which would, apart from the provisions of Part V of the Local Government Act, 1948, be payable to rating authorities in respect of such railway or canal lands and heritages in Scotland as are not occupied for the purposes of the British Waterways Board, and the amount of those payments shall be determined by reference to the amount arrived at by deducting from the amount specified in

PART IV the first column of the following Table the amount specified in the second column of that Table:—

TABLE

Amount to be deducted

The amount certified by the Secretary of State under subsection (1) of section two of the Local Government (Financial Provisions etc.) (Scotland) Act, 1962.	Such amount as may be certified by the Secretary of State as the portion of the amount specified in the first column of this Table attributable to lands and heritages occupied for the purposes of the British Waterways Board.
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Any reference in this section in its application to Scotland to the standard amount for the Railways Board shall be construed as a reference to the amount so arrived at.

(4) The amounts which the said Boards are to pay in each of the said rating years shall be their respective standard amounts adjusted—

(a) by applying subsections (2) to (4) of section ninety-four of the Local Government Act, 1948, as if references in that section to the Commission were references to those Boards respectively, and references to the standard amount were references to the relevant standard amount under this section, and

(b) by making such further adjustment for changes in the circumstances of the respective Boards as may be prescribed by order of the appropriate Minister of which a draft has been laid before Parliament and approved by a resolution of each House of Parliament.

(5) An order under paragraph (b) of the last foregoing subsection shall be made by statutory instrument and —

(a) may provide for effecting a comparison between the circumstances of the Board in question and the circumstances (at some time before the vesting date) of the Commission as a whole, or of the part of the Commission's undertaking corresponding to that of the Board, or partly the one and partly the other, and

(b) may be varied or revoked by a subsequent order so made,

and in that paragraph "the appropriate Minister" means, in relation to the Railways Board, the Minister of Housing and Local Government and the Secretary of State acting jointly, and in relation to the other Boards, the Minister of Housing and Local Government.

(6) In paragraph (a) of subsection (1) of section one hundred and nine of the Local Government Act, 1948 (under which orders

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may be made extending or restricting the class of hereditaments to be treated as railway or canal hereditaments), for the reference to the Commission there shall be substituted a reference to any of the Boards, and, before an order is made under the said subsection (1), the Minister making the order shall consult with such of the Boards, and such associations of local authorities, as appear to him to be concerned, and with any local authority with whom consultation appears to him to be desirable.

(7) Subsection (1) of this section shall come into force at the beginning of the rating year following that in which the vesting date falls, and—

- (a) in the period between the vesting date and the coming into force of subsection (1) of this section the enactments mentioned in that subsection shall have effect as if for references to the Commission there were substituted references to any of the four Boards, and
- (b) in the rating year in which the vesting date falls the Commission shall make the payment due from them for that rating year under section ninety-three of the Local Government Act, 1948, before the vesting date.

(8) This section shall be construed as one with Part V of the Local Government Act, 1948, and—

- (a) in subsection (1) of section one hundred and paragraph (c) of subsection (1) of section one hundred and nine of that Act the references to the preceding provisions of the said Part V shall include a reference to this section,
- (b) in subsection (3) of the said section one hundred, for the reference to the Commission there shall, as respects rating years after that in which the vesting date falls, be substituted a reference to the Railways Board, and
- (c) in subsection (1) of section one hundred and two and paragraph (a) of subsection (1) of section one hundred and twenty-four of that Act, for references to the Commission there shall, as respects rating years after that in which the vesting date falls, be substituted references to the Boards.

(9) In subsection (2) of section ninety-seven of the Local Government Act, 1948, for the words from “the same adjustment” to “have effect accordingly” there shall, as respects rating years after that in which the vesting date falls, be substituted the words “made by applying subsections (2) to (4) of section ninety-four of this Act”.

(10) In this section “rating year” means a year beginning, as respects England and Wales with the first day of April, and as respects Scotland with the sixteenth day of May, in any calendar year.

PART IV

(11) Section ninety-three, subsection (1) of section ninety-four and section ninety-five of the Local Government Act, 1948, and paragraph 1 of the Second Schedule to the Local Government (Financial Provisions etc.) (Scotland) Act, 1962, shall cease to have effect at the beginning of the first rating year after that in which the vesting date falls.

(12) There shall be paid out of money provided by Parliament any increase attributable to this section in the sums payable out of such money by way of rate-deficiency grant or Exchequer equalisation grant under the enactments relating to local government in England and Wales or in Scotland.

Bylaws for
railways and
railway
shipping
services.

67.—(1) The Railways Board and the London Board may each make bylaws regulating the use and working of, and travel on, their railways, the maintenance of order on their railways and railway premises, including stations and the approaches to stations, and the conduct of all persons, including their officers and servants, while on those premises, and in particular bylaws—

- (a) with respect to tickets issued for entry on their railway premises or travel on their railways and the evasion of payment of fares and other charges,
- (b) with respect to interference or obstruction of the working of the railways,
- (c) with respect to the smoking of tobacco in railway carriages and elsewhere and the prevention of nuisances ;
- (d) with respect to the receipt and delivery of goods, and
- (e) for regulating the passage of bicycles and other vehicles on footways and other premises controlled by the Boards and intended for the use of those on foot.

(2) The Railways Board may make bylaws in relation to passengers and goods conveyed in or on ships operated by the Board, and as to their embarkation and disembarkation.

(3) Any bylaws made under this section may provide that any person contravening them shall be liable on summary conviction to a penalty not exceeding twenty-five pounds for each offence.

(4) Without prejudice to the taking of summary proceedings under the last foregoing subsection, if the contravention of any bylaw having effect under this section is attended with danger or annoyance to the public, or hindrance to a Board in the lawful use of their railway, it shall be lawful for the Board in question summarily to interfere to obviate or remove the danger, annoyance or hindrance.

(5) Bylaws under this section shall not come into operation until they have been confirmed by the Minister.

PART IV

(6) At least twenty-eight days before application for confirmation of any bylaws is made the Board in question shall publish in such manner as may be approved by the Minister a notice of their intention to apply for confirmation and of the place at which and the time during which a copy of the bylaws will be open for public inspection; and any person affected by any of the bylaws shall be entitled to make representations thereon to the Minister within a period of not less than twenty-eight days specified in the notice.

(7) For at least twenty-four days before application for confirmation of any bylaws is made under this section, a copy of the bylaws shall be kept at the principal office of the Board and shall at all reasonable hours be open to public inspection without payment.

(8) The Board shall supply a copy of any such bylaws to any person who applies for a copy thereof on payment of such sum not exceeding ten shillings as the Board shall determine.

(9) The Minister may confirm with or without modification, or may refuse to confirm, any of the bylaws submitted under this section for confirmation and, as regards any bylaws so confirmed, may fix a date on which the bylaws shall come into operation; and if no date is so fixed the bylaws shall come into operation after the expiration of twenty-eight days after the date of confirmation.

(10) A copy of the bylaws when confirmed shall be printed and deposited at the principal office of the Board and shall at all reasonable hours be open to public inspection without payment, and the Board shall supply a copy of any such bylaws to any person who applies for a copy thereof on payment of such sum not exceeding ten shillings as the Board shall determine.

(11) The production of a printed copy of bylaws confirmed under this section on which is indorsed a certificate purporting to be signed by the secretary of the Board or of some person authorised by the Board to act in his stead in that behalf, stating—

- (a) that the bylaws were made by the Board or by the Commission,
- (b) that the copy is a true copy of the bylaws,
- (c) that on a specified date the bylaws were confirmed by the Minister, and
- (d) the date when the bylaws come into operation,

shall be *prima facie* evidence of the facts stated in the certificate.

PART IV

(12) The power of, making bylaws under this section shall include power to vary or repeal any bylaws previously made under this section.

(13) Sections one hundred and eight and one hundred and nine of the Railways Clauses Consolidation Act, 1845, sections one hundred and one and one hundred and two of the Railways Clauses Consolidation (Scotland) Act, 1845, section thirty-two of the Railways Clauses Act, 1863, and section seven of the Regulation of Railways Act, 1889, shall cease to have effect, but any bylaws under any of those enactments which were in force immediately before the vesting date and which applied in relation to any of the railways belonging to the Commission, or in relation to the ships operated by the Commission, shall continue in force and have effect as if made under this section, and subject to the provisions of Part II of this Act so far as applicable.

(14) In the bylaws made by the London Transport Executive under the Railways Clauses Consolidation Act, 1845, which were confirmed by the Minister on the thirteenth day of December, nineteen hundred and fifty-seven—

- (a) for references to the Commission or the London Transport Executive there shall be substituted references to the London Board, and
- (b) for references to the railways as there defined there shall be substituted references to the railways of the London Board.

(15) In the bylaws made by the Commission under the said Acts of 1845 which relate to the railways of the Commission other than those of the London Transport Executive which were confirmed by the Minister on the fifth day of December, nineteen hundred and fifty-seven,—

- (a) for references to the Commission there shall be substituted references to the Railways Board, the Docks Board and the British Waterways Board, and
- (b) for references to London Transport railways there shall be substituted references to the London Board's railways.

(16) Any power exercisable by the Docks Board or the British Waterways Board under any local enactment to make bylaws as regards any harbour comprised in their undertaking shall include power to make any such bylaws in relation to railways within the harbour as the Railways Board and the London Board have power to make under this section in relation to their railways.

(17) This section shall have effect as from the vesting date.

68.—(1) As from the vesting date, for references in section one hundred and six of the London Passenger Transport Act, 1933, to the London Passenger Transport Board there shall be substituted references to the London Board.

PART IV
Custody of lost
property on
London
Board's
transport
system.

(2) The repeal by this Act of section one hundred and nineteen of the Transport Act, 1947, shall not affect the London Transport (Lost Property) Regulations, 1960 (which were made under that section), and as from the vesting date those regulations—

- (a) shall be treated for all purposes, and in particular for the purposes of section eighty-eight of the London Passenger Transport Act, 1935 (which relates to offences against regulations under section one hundred and six of the said Act of 1933), as if they had been made under the said section one hundred and six, and
- (b) shall have effect, subject to the necessary modifications, as if any reference therein to the Commission or the London Transport Executive were a reference to the London Board.

69.—(1) Within one year from the vesting date the Railways Board shall, after consulting the other Boards, prepare and submit to the Minister a scheme for the organisation of the transport police of the Boards.

Organisation
of transport
police.

In this section, references to “transport police” are references to constables appointed under section fifty-three of the British Transport Commission Act, 1949.

(2) A scheme under this section which provides for the organisation of transport police in a joint force shall contain provisions with respect to—

- (a) the control and administration of the force by or on behalf of the Boards participating in the force,
- (b) the contributions to be made by those Boards to the expenses of the force, and
- (c) the method of settling disputes between those Boards in relation to the force.

(3) Without prejudice to the generality of subsection (1) of this section, a scheme under this section may make provision—

- (a) for the transfer or appropriation for the purposes of the scheme of property vested in the Railways Board by paragraph (e) of subsection (2) of section thirty-one of this Act, and
- (b) for enabling the services of transport police organised in a force for any Board or Boards to be made available to another Board on such terms as may be agreed with that Board,

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and may contain such incidental and transitional provisions as may appear to the Railways Board or the Minister to be expedient.

(4) A scheme under this section may make modifications consequential on the provisions of the scheme in section fifty-three of the said Act of 1949, but nothing in the scheme shall require any Board to exercise its powers under that section.

(5) On a scheme being submitted to the Minister under this section, the Minister may by order approve the scheme with or without amendment; and the scheme, as so approved, shall come into effect on such date as may be specified therein and it shall be the duty of the Boards to comply with the scheme as so approved.

(6) The Minister shall consult the Boards before approving a scheme under this section; and the Minister shall not approve a scheme under this section which provides for the organisation of transport police in more than one force unless it appears to him, after consultation with the Boards, that there are special reasons which make it desirable that such provision should be made.

(7) If after a scheme has been approved under this section any Board apply to the Minister and satisfy him that the scheme should be amended in any respect the Minister may, after consulting the Boards, by order make such amendments of the scheme as he thinks fit.

(8) The power conferred by this section on the Minister to make orders shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

(9) During the period between the vesting date and the coming into effect of a scheme under this section the Railways Board shall make police services available to the other Boards to such extent and on such terms as the Railways Board and the other Board concerned may agree or as may, in default of agreement, be determined by the Minister.

Transport
police
constables.

70.—(1) Section fifty-three of the British Transport Commission Act, 1949, shall be amended as follows:

(2) Any premises transferred or leased to the Hotel Company before the vesting date shall until the vesting date be regarded for the purpose of the section as belonging to the Commission.

(3) For the first two references in subsection (1) of the section to the Commission there shall be substituted—

(a) during the interim period, references to the Railways Board, and

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- (b) thereafter, references to any of the Boards acting jointly or separately in pursuance of a scheme under section sixty-nine of this Act.

(4) On and after the vesting date for references in the section to premises belonging to, leased to or worked by the Commission there shall be substituted references to premises belonging to, leased to or worked by any of the Boards or the Hotel Company, and in the proviso to paragraph (b) of subsection (1) of the section for the reference to matters in connection with or affecting the Commission or their undertaking there shall be substituted a reference to matters in connection with or affecting any of the Boards or their undertakings.

(5) On and after the vesting date a Board may dismiss a constable who is employed by them (whether or not appointed after the vesting date) and, accordingly, in paragraph (c) of subsection (1) of the section for references to the Commission there shall, as regards such a constable employed by a Board (or two or more Boards jointly), be substituted a reference to that Board (or those Boards), and for the reference at the end of the said paragraph (c) to the authority by whom a constable was dismissed or by whom a constable's resignation is accepted there shall, in the case of a constable dismissed by the Commission, or whose resignation was accepted by the Commission, be substituted—

- (a) during the interim period, a reference to the Railways Board, and
(b) thereafter, a reference to any of the Boards acting jointly or separately in pursuance of a scheme under section sixty-nine of this Act.

(6) On and after the vesting date references in any statutory provision or other document to a constable appointed or employed by the Commission shall be taken as a reference to a constable employed by any of the Boards and acting under the said section fifty-three.

(7) In this section "the interim period" means the period referred to in subsection (9) of section sixty-nine of this Act.

71.—(1) If any of the Boards in pursuance of a scheme under section sixty-nine of this Act arrange to establish a joint police force consisting of constables appointed under section fifty-three of the British Transport Commission Act, 1949, they shall also arrange to establish a conference consisting of an equal number of representatives of those Boards on the one hand and of the members of the police force on the other hand, to which all questions relating to rates of pay, hours of duty and conditions of service of members of the police force shall be referred.

Terms and conditions of employment of transport police.

PART IV

(2) If and so long as any Board in pursuance of a scheme under section sixty-nine of this Act employ a separate police force consisting of constables appointed under the said section fifty-three, that Board shall arrange for the establishment of a separate conference consisting of an equal number of representatives of the Board and of the members of their police force to which all questions relating to rates of pay, hours of duty and conditions of service of members of the police force shall be referred.

(3) If and so long as there are two or more conferences established under the foregoing provisions of this section (hereinafter referred to as constituent conferences), the Boards concerned shall arrange for the establishment of a central conference which shall consist of an equal number of representatives of those Boards on the one hand, and of their police forces on the other hand, elected from the constituent conferences, and there shall be an appeal from the constituent conferences to the central conference.

(4) In the event of disagreement between the two sides of a conference established under this section (except a conference from which an appeal lies to a central conference), an independent chairman shall be appointed with power to give decisions which shall have effect as decisions of the conference, the said chairman to be chosen by mutual agreement or failing agreement to be nominated by the Minister of Labour.

(5) On the coming into force of this section any arrangements made in pursuance of section ninety-seven of the Transport Act, 1947 (which contains provisions corresponding to those of this section), shall cease to have effect.

General
provisions as
to terms and
conditions of
employment
of staff.

72.—(1) It shall be the duty of each Board, except as far as they are satisfied that adequate machinery exists for achieving the purpose of this subsection, to seek consultation with any organisation appearing to the Board to be appropriate, with a view to the conclusion between the Board and that organisation of such agreements as appear to the parties to be desirable with respect to the establishment and maintenance of machinery for—

- (a) the settlement by negotiation of terms and conditions of employment of persons employed by the Board, with provision for reference to arbitration in default of such settlement in such cases as may be determined by or under the agreements, and
- (b) the promotion and encouragement of measures affecting the safety, health and welfare of persons employed by the Board and the discussion of other matters of mutual interest to the Board and such persons, including efficiency in the operation of the Board's services.

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(2) Where the Board conclude such an agreement as is mentioned in the foregoing subsection or any variation is made in such an agreement, the Board shall forthwith transmit particulars of the agreement or the variation to the Minister and the Minister of Labour.

(3) Nothing in this section shall be construed as prohibiting a Board from taking part together with other employers in the establishment and maintenance of machinery for the settlement of terms and conditions of employment, and the promotion and encouragement of measures affecting the health, safety and welfare of their workers, and the discussion of other matters of mutual interest to them and their workers.

(4) This section shall apply, with any necessary modifications, to the Holding Company as it applies to the Boards.

73.—(1) Subject to the next following section, each of the Boards and the Holding Company shall have power to pay pensions and enter into obligations under pension schemes.

The powers of the Boards and the Holding Company as regards pensions and pension schemes.

(2) Each of the Boards and the Holding Company shall have power to lend money to be applied for the purposes of a pension scheme under which any of those bodies, or a subsidiary of any of those bodies, pay employer's contributions or are subject to any other obligations, but shall not exercise that power without the consent of the Minister.

74.—(1) The Minister may make orders—

Minister's power to make orders about pensions.

(a) with respect to the provision of pensions by the Boards and the Holding Company and by the subsidiaries of the Boards and of the Holding Company for or in respect of—

(i) their employees, or persons who have been in their employment, or

(ii) persons who have been in the employment of the Commission or of any subsidiary of the Commission or of any body whose undertaking or part of whose undertaking was transferred to the Commission under or by virtue of the Transport Act, 1947, or

(iii) persons who have been employed in connection with the Caledonian and Crinan Canals or Holyhead Harbour, or by or in connection with the Railway Clearing House ;

(b) for the establishment and administration of existing or future pension schemes and pension funds for any of the purposes of the foregoing paragraph ;

PART IV

and the Boards and the Holding Company shall exercise the powers conferred on them by the last foregoing section subject to any order under this section.

(2) Without prejudice to the powers conferred by the foregoing subsection, the Minister may make orders—

- (a) for enabling employees of any of the Boards or the Holding Company or a subsidiary of any of the Boards or the Holding Company to participate or continue to participate in any pension scheme in which employees of the Commission or a subsidiary of the Commission participated before the vesting date, or in any pension scheme established under this section, and requiring their employers to make payments under that scheme,
 - (b) for modifying any pension scheme the participants in which include persons of any of the descriptions in sub-paragraphs (i), (ii) and (iii) of paragraph (a) of the foregoing subsection, so as to ensure that changes cannot be effected in the pension scheme without the approval of the Minister,
 - (c) for varying the rates of the contributions to be made under any pension scheme by employees of any of the Boards or the Holding Company or a subsidiary of any of the Boards or the Holding Company, as well as the rates of employers' contributions and the benefits under the scheme, and
 - (d) for re-arranging, amalgamating, simplifying and assimilating pension schemes the participants in which include any such persons.
- (3) An order under this section may in particular provide—
- (a) for altering or winding up any pension scheme,
 - (b) for varying any trust or transferring any pension fund, or obligations or liabilities under a pension scheme,
 - (c) for requiring a Board or the Holding Company to make payments to the persons administering a pension scheme so as to convert the pension scheme from an unfunded scheme into a funded scheme,
 - (d) for establishing any body to administer or assist in administering a pension scheme,
 - (e) for enabling all or any of the participants in a pension scheme to become instead participants in another pension scheme,
 - (f) for empowering the persons responsible for administering any pension scheme established for the purposes of an undertaking carried on by persons other than the Boards, the Holding Company or any subsidiary

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of any Board, or of the Holding Company, to carry out any arrangements for the participation in the scheme of a person who has been an employee of the Commission, or of the Boards or of the Holding Company, or of any subsidiary of any of those bodies,

- (g) as to the manner in which questions arising under the order are to be determined,

and may contain such supplemental, incidental and consequential provisions as appear to the Minister expedient.

(4) Without prejudice to the generality of the foregoing provisions of this section, an order under this section may contain provisions authorising any person who, having pension rights to which an order under this section relates, becomes a member of a Board, or the Holding Company, or a director of a subsidiary of a Board or of the Holding Company, to be treated for the purposes of a pension scheme as if his service as such a member or director were service in the employment of such a body, and as if, where that service immediately precedes or follows other service which is, or is to be treated as, service in that employment, the two periods of service were continuous.

(5) An order under this section shall have effect notwithstanding anything in—

- (a) any local enactment, or
- (b) any regulations or other instrument made under the Transport Act, 1947, or the Transport Act, 1953, and continued in force by this Act, or
- (c) the Truck Acts, 1831 to 1940, or the Shop Clubs Act, 1902, or
- (d) section eighty of the London Passenger Transport Act, 1933 (which contains transitional provisions concerning superannuation funds affected by that Act),

and may amend or repeal any such enactment or instrument as is mentioned in paragraphs (a) and (b) of this subsection.

(6) (a) Orders under this section shall be so framed as to secure that no person other than the Boards, the Holding Company and any subsidiary of any Board, or of the Holding Company, is placed in any worse position by reason of the order.

(b) An order shall not be invalid by reason that in fact it does not have the result of securing that all such persons are not placed in any worse position by reason of the provisions of the order, but if the Minister is satisfied or it is determined as hereinafter mentioned that any such order has failed to secure that result, the Minister shall as soon as may be make the necessary amending order.

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(c) Any dispute arising between the Minister and any person as to whether or not the said result has been secured by any order under this section shall be referred to a referee or board of referees appointed by the Minister of Labour after consultation with the Lord Chancellor, or, where the proceedings are to be held in Scotland, after consultation with the Secretary of State, for his or their determination thereof.

(d) The Minister of Labour may, with the consent of the Treasury, pay out of money provided by Parliament—

- (i) to any referee or to the members of any board of referees appointed under this subsection such fees and allowances as he may with the consent of the Treasury determine, and
- (ii) to persons giving evidence before any such referees or board such allowances as he may with the consent of the Treasury determine.

(e) For the purposes of this subsection no person shall be regarded as being placed in a worse position because an order provides that any changes in a pension scheme are not to be effected without the consent of the Minister.

(f) Nothing in the Arbitration Act, 1950, shall be construed as applying to any proceedings before a referee or board of referees appointed under this section.

(7) An order under this section may be made so as to have effect from a date prior to the making of the order, so, however, that so much of any order as provides that any provision thereof is to have effect from a date prior to the making of the order shall not place any person other than the Boards, the Holding Company or any subsidiary of any Board, or of the Holding Company, in a worse position than he would have been in if the order had been made to have effect only from the date of its making.

(8) The power of making orders under this section shall be exercised by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament, and the power of making orders under this section shall include power to vary or revoke a previous order.

(9) Nothing in this section shall be taken to derogate from the power conferred by subsection (4) of section sixty-nine of the National Insurance Act, 1946, to make regulations providing for the modifying or winding up of pension schemes in connection with the passing of that Act, but an order under this section shall have effect notwithstanding anything in regulations made under the said Act before the order was made.

75. Part IV of the Seventh Schedule to this Act (which contains transitional provisions relating to pensions) shall have effect for the purposes of this Act.

Transitory provisions concerning the Commission

PART IV

76. The Minister shall have power, with the approval of the Treasury, at any time after the passing of this Act to make grants out of money provided by Parliament to the Commission to meet any deficit on revenue account.

Power to make grants to Commission.

77.—(1) As from the passing of this Act the Commission shall have power to develop their land in such manner as they may think fit.

Commission's power to develop land.

(2) The Commission may, in particular, and subject to this section,—

- (a) retain any part of their land which is not required for the purposes of their business and develop it for use by other persons, and
- (b) where the use of their land for the purposes of their business can be combined with its use for other purposes, develop the land by constructing or adapting buildings thereon for use wholly or partly by other persons,

with a view to selling or otherwise disposing of any right or interest in the land or, as the case may be, the buildings or any part of the buildings, after the development is carried out.

(3) The Commission shall not incur any substantial item of expenditure in developing their land for use for purposes which are not the purposes of their business without the consent of the Minister, and the Minister may from time to time give directions to the Commission indicating what is to be treated for the purposes of this section as a substantial item of expenditure.

(4) Where the Commission propose under this section to develop any land for use otherwise than for the purposes of their business they shall have power, with the consent of the Minister, to acquire by agreement adjoining land for the purpose of developing it together with the other land, but the Minister shall not give his consent under this subsection unless it appears to him that the other land cannot be satisfactorily developed unless the adjoining land is acquired by the Commission.

Subject to the foregoing provisions of this subsection the Commission shall not have power to acquire land, whether by agreement or compulsorily, for use otherwise than for the purposes of their business.

(5) Anything done in the exercise of the powers conferred on the Commission by this section shall not be invalid on the ground that it is prohibited by proviso (iii) to subsection (2), or the proviso to subsection (3), of section two of the Transport Act, 1947, but, subject to that, the provisions of this section relate only to the capacity of the Commission as a statutory corporation.

PART IV

(6) Section twenty-eight of this Act shall apply with the necessary modifications in relation to consents given by the Minister under this section as it applies in relation to consents given by the Minister under Part I of this Act.

The
Commission's
subsidiaries.

78.—(1) Notwithstanding anything in sections one to eleven of the Transport Act, 1953, and the Transport (Disposal of Road Haulage Property) Act, 1956, the Commission may exercise their control over such of their subsidiaries as were formed in pursuance of the said enactments, and over property transferred to them by the Commission, in such manner as appears to the Commission appropriate to facilitate the transfers to be effected by Part II of this Act.

(2) If as a result of a transfer of securities effected by the Commission at a time when the Commission hold carriers' licences for vehicles owned by a subsidiary, the subsidiary becomes a wholly-owned subsidiary of a company (hereinafter referred to as "the company") which is itself a wholly-owned subsidiary of the Commission—

- (a) any such licence for a vehicle then owned by the subsidiary shall thereafter have effect as if granted to the company;
- (b) for the purposes of section one hundred and eighty of the Road Traffic Act, 1960 (which relates to carriers' licences for the vehicles of a subsidiary), the company shall be deemed to have made the application for the licence and to have signified to the licensing authority their desire that the section should have effect as respects the subsidiary; and
- (c) subsection (8) of section five of the Transport Act, 1953 (which relates to the duration of carriers' licences for vehicles owned by a company all the securities of which are disposed of under that section), shall not apply in relation to the transfer.

(3) It is hereby declared that if an application is made before the vesting date for the issue of a licence in substitution for an existing licence which is due to expire on the vesting date by virtue of subsection (4) of section two of the Transport (Disposal of Road Haulage Property) Act, 1956 (which relates to carriers' licences for vehicles owned by certain subsidiaries of the Commission and provides that they shall expire on the date when the subsidiary ceases to be under direct or indirect control of the Commission), and on the vesting date proceedings are pending before the licensing authority on that application, the existing licence will under subsection (3) of section one hundred and sixty-nine of the Road Traffic Act, 1960, continue in force until the application is disposed of.

PART IV

(4) The Commission shall before the vesting date exercise their control over the company called British Road Services Limited (which was formed in pursuance of the enactments mentioned in subsection (1) of this section) so as to effect the transfer to the Commission, on such terms as may be appropriate, of the securities of the body called Atlantic Steam Navigation Company Limited.

(5) Subsection (3) of section forty-one of this Act shall apply to any instrument which the Commission certify to the Commissioners of Inland Revenue as having been made or executed in pursuance of the last foregoing subsection as it applies to the instruments mentioned in the said subsection (3).

(6) In this section "carriers' licence" means a licence under Part IV of the Road Traffic Act, 1960 (including one issued in pursuance of Part II of the First Schedule to the Transport Act, 1953).

79.—(1) If a person ceases to be a member of the Commission, or of the London Transport Executive, otherwise than on the expiration of his term of office, and it appears to the Minister that there are special circumstances which make it right that that person should receive compensation, the Minister may with the approval of the Treasury require the Commission to make to him a payment of such amount as may be determined by the Minister with the approval of the Treasury.

Power to make special payments on the termination of the appointment of members of the Commission or Executive.

(2) This section shall apply whether or not any pension is payable under paragraph (b) of subsection (7) of section one of the Transport Act, 1947, or sub-paragraph (1) of paragraph 2 of the Second Schedule to that Act, and shall apply to persons who cease to be members of the Commission or Executive before the passing of this Act, as well as to persons who cease to be members at a later time.

(3) Any requirement imposed by the Minister as regards a member of the Commission under subsection (1) of this section after the vesting date shall be imposed on the Railways Board instead of on the Commission, and any requirement so imposed as regards a member of the London Transport Executive shall be imposed on the London Board instead of on the Commission.

80.—(1) Subject to this section, the Commission shall cease to exist on the vesting date.

Dissolution of the Commission.

(2) If it appears to the Minister that the steps which the Commission are under sub-paragraph (4) of paragraph 1 of the Sixth Schedule to this Act to take for the effective transfer of property and rights to the Boards cannot be completed until a date after the vesting date, he may by order direct that the Commission shall not be dissolved until that later date.

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(3) An order under this section shall provide for the constitution and proceedings of the Commission in the period after the vesting date, and may require the Railways Board to pay to members of the Commission in respect of their service after the vesting date such salaries or fees and such allowances as the Minister may with the approval of the Treasury determine.

(4) If the dissolution of the Commission is postponed under this section, the Commission shall during that period have such powers, and only such powers, as they require for the purpose of discharging their duty under the said sub-paragraph (4).

(5) The Railways Board shall make available to the Commission such staff and premises as the Commission may require for the said purpose, and shall discharge any expenses incurred by the Commission for that purpose.

(6) The Minister may from time to time extend the period specified in an order under this section by a further order, and any order under this section shall be made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

(7) So much of subsection (2) of section one of the Transport Act, 1947, as requires the Chairman and not less than four other members of the Commission to render whole-time service to the Commission shall cease to have effect on the passing of this Act.

(8) The transitional provisions in Part V of the Seventh Schedule to this Act (which relate to the Commission) shall have effect for the purposes of this Act.

Compensation to officers and servants of the Commission

Compensation
to officers
and servants
of the
Commission.

81.—(1) The Minister shall by regulations contained in a statutory instrument require the appropriate body as defined in this section to pay, in such cases and to such extent as may be specified in the regulations, compensation to persons who are at the passing of this Act officers or servants of the Commission and who suffer loss of employment or loss or diminution of emoluments or pension rights, or whose position is worsened, in consequence of the reorganisation effected by this Act.

(2) The regulations may apply to any such person whether or not he continues in the employment of the Commission until the vesting date and whether or not he is a party to an agreement for the rendering of personal services to the Commission which is modified by section thirty-four of this Act.

(3) Different regulations may be made under this section in relation to different classes of persons, and any such regulations may be so framed as to have effect from a date prior to the making thereof, so, however, that so much of any regulations as provides that any provision thereof is to have effect as from a date earlier than the making thereof shall not place any

person (other than the body paying compensation) in a worse position than he would have been in if the regulations had been made to have effect only as from the making thereof.

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(4) Regulations under this section—

- (a) may prescribe the procedure to be followed in making claims for compensation, and the manner in which and the person by whom the question whether any or what compensation is payable is to be determined, and
- (b) may in particular contain provisions enabling appeals from any determination as to whether any or what compensation is payable to be brought, in such cases and subject to such conditions as may be prescribed by the regulations, to a referee or board of referees appointed by the Minister of Labour, after consultation with the Lord Chancellor, or, where the proceedings are to be held in Scotland, after consultation with the Secretary of State.

(5) No regulations shall be made under this section unless a draft thereof has been laid before Parliament and has been approved by a resolution of each House of Parliament.

(6) The Minister of Labour may, with the consent of the Treasury, pay out of money provided by Parliament—

- (a) to any referee or to the members of any board of referees appointed by him in pursuance of regulations under this section such fees and allowances as he may with the consent of the Treasury determine, and
- (b) to persons giving evidence before any such referee or board such allowances as he may with the consent of the Treasury determine.

(7) Nothing in the Arbitration Act, 1950, shall be construed as applying to any proceedings before a referee or board of referees appointed in pursuance of regulations under this section.

(8) In this section “the appropriate body” means—

- (a) in relation to a person who on the vesting date ceases to be an officer or servant of the Commission and becomes an officer or servant of a Board, that Board,
- (b) in relation to a person who on the vesting date ceases to be an officer or servant of the Commission and becomes an officer or servant of the Holding Company, the Holding Company,
- (c) in relation to a person who at any time in the period beginning with the passing of this Act and ending with the vesting date becomes an officer or servant of one of the bodies which on the vesting date becomes a subsidiary of the Railways Board, the Docks Board, the

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British Waterways Board or the Holding Company, that Board or the Holding Company as the case may be,

- (d) in the case of any other person, the Board which would have become his employer under section thirty-four of this Act if an agreement had subsisted at the vesting date for the rendering by him to the Commission of personal services of the kind which he was rendering to the Commission when he left the service of the Commission.

(9) The London Board, the Docks Board, the British Waterways Board and the Holding Company may arrange to make payments to the Railways Board by way of contributions towards the liability of the Railways Board under this section in respect of officers and servants of the Commission, and if the Railways Board satisfy the Minister that any of the other Boards or the Holding Company have not made an appropriate contribution towards that liability, whether by the payment of money or by finding employment for any such officers or servants or otherwise, the Minister may require that other Board or, as the case may be, the Holding Company to make such payment to the Railways Board as appears to the Minister to be just.

(10) Nothing in this section shall be construed as enabling regulations to be made prejudicing the rights of any person under Part VII of the Transport Act, 1947, or any other enactment passed before this Act.

Miscellaneous provisions

Modification
of enactments
relating to
Wages
Councils.

82. For the purposes—

- (a) of any wages regulation order in force under Part II of the Wages Councils Act, 1959, on the vesting date, and
(b) of determining the workers in relation to whom the Road Haulage Wages Council operates under that Act, and

(c) of Part II of the Road Haulage Wages Act, 1938, vehicles specified in licences which are being used by a Board, or by a subsidiary of a Board or of the Holding Company, shall be deemed to be vehicles not specified in any licence.

Abandonment
of independent
railways.

83.—(1) The Minister may make an abandonment order in respect of any railway comprised in an independent railway undertaking if an application is made to him for that purpose by the undertakers in question or by any creditor of those undertakers.

(2) Notice of any application under this section shall be published by the applicant in such manner and form as the

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Minister may direct, and the Minister shall before making an order under this section consider any objections which have been lodged with respect to the application.

(3) An order under this section shall have effect to release the undertakers from any statutory obligation to construct, maintain or operate the railway which is the subject of the order, and the order may contain provisions for abrogating, on such terms as to compensation or otherwise as the Minister may think just, any obligations (whether statutory or otherwise) to provide or maintain works, services or facilities in connection with the railway.

(4) An order under this section may contain such consequential and supplementary provisions, including provisions for the assessment of compensation, as the Minister may think fit, and notice of the order shall be published in such manner and form as the Minister may direct.

(5) Where an application is made under this section by a creditor, the undertakers in question shall furnish the Minister with all such information, and permit such inspection of their railway, as the Minister may reasonably require for the purposes of the application, and any person who fails to comply with a requirement under this subsection shall be liable on summary conviction to a fine not exceeding twenty pounds.

(6) Notwithstanding paragraph (a) of section three hundred and ninety-eight of the Companies Act, 1948, a railway company incorporated by Act of Parliament whose railway is the subject of an order under this section may be wound up under Part IX of that Act as an unregistered company.

(7) In this section "independent railway undertaking" means a railway undertaking carried on in Great Britain and not forming part of the undertaking of the Commission or of any of the Boards, being an undertaking the carrying on of which is authorised by, or by an order made under, an Act of Parliament.

84.—(1) Subsection (5) of section fifteen of the Light Railways Act, 1896 (which requires the Minister to make an annual report to Parliament as to his proceedings under that Act), shall cease to have effect.

Minor amendments relating to railways.

(2) Section five of the Regulation of Railways Act, 1889 (which imposes penalties for offences in connection with railway fares and tickets), shall apply as respects any offence committed after the coming into force of this section as if in subsection (1) for the words "forty shillings" there were substituted the words "ten pounds", and as if in subsection (3) for the words "forty shillings" there were substituted the words "twenty-five

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pounds", for the words "twenty pounds" there were substituted the words "twenty-five pounds" and for the words "one month" there were substituted the words "three months".

(3) Subsection (1) and subsections (3) to (12) of section sixty-seven of this Act shall apply in relation to the person carrying on any independent railway undertaking as defined in the last foregoing section, and in relation to the railways comprised in the undertaking, as they apply in relation to the Railways Board and their railways, and as from the vesting date any bylaws under sections one hundred and eight and one hundred and nine of the Railways Clauses Consolidation Act, 1845, or sections one hundred and one and one hundred and two of the Railways Clauses Consolidation (Scotland) Act, 1845, which immediately before the vesting date apply to any such undertaking shall have effect as if made under the said section sixty-seven.

(4) In section one hundred and forty-four of the Railways Clauses Consolidation Act, 1845, and section one hundred and thirty-six of the Railways Clauses Consolidation (Scotland) Act, 1845 (which relate to the defacement of notice boards), for the words from "as required" to "or penalty" there shall be substituted the words "for the purpose of publishing any byelaw of the company or any penalty imposed by this or the special Act."

Disqualifica-
tion for
membership
of House of
Commons.

85.—(1) Part II of the First Schedule to the House of Commons Disqualification Act, 1957 (which specifies the bodies of which the members are disqualified under that Act), and the Part substituted for the said Part II by the Third Schedule to that Act in its application to the Senate and House of Commons of Northern Ireland, shall have effect with the insertion of the following entries—

After the entry relating to the "The British Railways Board".
British Overseas Airways Corporation.

After the entry relating to the "The British Transport Docks
British Transport Commission. Board.
The British Waterways Board".

Before the entry relating to "The London Transport Board".
Medical Appeal Tribunals.

After the entry relating to the "The Nationalised Transport
National Research Develop- Advisory Council".
ment Corporation.

Before the entry relating to the "A Regional Railway Board".
Research Council.

(2) Part III of the said First Schedule (which specifies offices the holders of which are disqualified under the said Act) in its

application to the Parliament of the United Kingdom shall have effect with the insertion before the entry relating to the director of Remploy Limited of the entry—

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“ Director of the Holding Company or the Hotel Company referred to in the Transport Act, 1962, or of any of the companies shown in List A in Part I, in Part III and in List A in Part IV of the Fourth Schedule to that Act ”.

(3) The Part substituted for the said Part III by the Third Schedule to the said Act of 1957 in its application to the Senate and House of Commons of Northern Ireland shall have effect with the insertion before the entry relating to an Election Commissioner of the entry—

“ Director of the Holding Company referred to in the Transport Act, 1962, or of any of the following companies, that is to say—

Caledonian Steam Packet Company (Irish Services) Limited

Railway Sites Limited

British Road Services Limited

B.R.S. (Parcels) Limited

B.R.S. (Pickfords) Limited

Atlantic Steam Navigation Company Limited ”.

86.—(1) It is hereby declared that for the purposes of the Application of Town and Country Planning Acts anything done by any of the Boards—

(a) in the exercise of the powers conferred by section eleven of this Act so far as that section relates to development of land for use otherwise than for the purposes of the business of the Board ; or

(b) in the exercise of the powers conferred by section twelve of this Act so far as that section relates to pipe-lines which are not required for the purposes of the business of the Board other than the operation of pipe-lines,

does not constitute the carrying on by the Board of their statutory undertaking and, in particular, that land which is used, or in which an interest is held, by a Board exclusively for the purpose of exercising those powers does not constitute operational land.

(2) Without prejudice to the foregoing subsection and subject to the next following subsection, any development of operational land by a Board in the exercise of the said powers shall not for the purposes of the said Acts constitute development of operational land.

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(3) The last foregoing subsection shall not apply to development if—

- (a) the development comprises development by the Board for the purpose of carrying on their statutory undertaking or is development for a purpose which includes that purpose ; and
- (b) the development is such that so much of it as is exclusively referable to the exercise by the Board of the said powers cannot fairly be treated for the purposes of the said Acts as separate development.

(4) Any question under the last foregoing subsection whether part of any development can fairly be treated as separate development shall be determined by the local planning authority to whom application is made for permission for the development in question, or, where an application for permission for the development in question is referred to the Minister, by the Minister and the Minister of Transport ; and where part of any development is so treated this section and the said Acts shall apply to the parts of the development in all respects as if they were separate development.

(5) If an applicant is aggrieved by a determination of a local planning authority under the last foregoing subsection, he may appeal to the Minister, and any such appeal shall be determined by the Minister and the Minister of Transport.

The provisions of the said Acts and of any development order as to the time and manner for appealing to the Minister against planning decisions of local planning authorities shall apply, subject to any necessary modifications, to an appeal under this subsection.

(6) The provisions of the said Acts as to the validity, and proceedings for challenging the validity, of decisions of the Minister on applications for planning permission referred to him under those Acts or on appeals to him under those Acts against planning decisions of local planning authorities shall apply to any determination of the Minister and the Minister of Transport under this section as if a reference to this section were included in those provisions.

(7) Before the vesting date, references in this section to section eleven of this Act and (in relation to that section) to any of the Boards shall be construed as references to section seventy-seven of this Act and to the Commission.

(8) In this section “the Minister” and “the Town and Country Planning Acts” mean respectively the Minister of Housing and Local Government and the Town and Country Planning Acts, 1947 to 1959, or, in relation to Scotland, the Secretary of State and the Town and Country Planning (Scotland) Acts, 1947 to

1959 ; and, subject to this section, any other expression in this section which is used in those Acts has the same meaning as in those Acts.

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87.—(1) It shall be the duty of the Commission and of the Boards to consult the London County Council as to the use of their land in the administrative county of London so far as that land is not required for the purposes of their business, and to submit for the approval of the Minister of Housing and Local Government proposals with regard to the use of that land in a manner which is consistent with proper planning and which, in particular, is consistent with the need for keeping a proper balance in the use of their land as between new office accommodation and other accommodation for trade, business and industry on the one hand, and new living accommodation (with the amenities required by a resident community) on the other hand ; and in making those proposals account may be taken of living accommodation provided or to be provided on any land belonging to the Commission or the Boards which lies outside, but in the immediate vicinity of, the administrative County of London.

Temporary provision as to development of land in London.

(2) The following provisions of this section shall have effect as regards any application made before the date certified by the Minister of Housing and Local Government as that on which he has approved proposals under the foregoing subsection, being an application for permission under Part III of the Town and Country Planning Act, 1947, for development of land in the administrative county of London which belongs to the Commission or a Board at the time when the application is made ; and the said date shall be certified by the said Minister by order contained in a statutory instrument.

(3) If on any such application for permission for development consisting of the construction, reconstruction or alteration of a building—

(a) which is designed or intended for use as office premises, or

(b) part of which is designed or intended for use as office premises and is suited for separate occupation,

permission is refused by the Minister of Housing and Local Government, either on appeal or on the reference of the application to him for determination, or is so granted subject to conditions, no compensation shall be payable in respect of the refusal or imposition of conditions under section twenty of the said Act of 1947 (which relates to development not involving an increase of more than 10 per cent. in cubic content) or paragraph 1 of the Fifth Schedule to that Act (which relates to statutory undertakers' operational land).

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(4) Subsection (3) of this section shall not apply to an application for permission for development consisting of the reconstruction of a building destroyed or damaged by fire or accident.

(5) In this section references to the Minister refusing permission or granting permission subject to conditions include references to the Minister and the appropriate Minister refusing permission, or granting permission subject to conditions, under paragraph 1 of the Fifth Schedule to the said Act of 1947.

Application of
Tribunals and
Inquiries Act,
1958.

88. The Tribunals and Inquiries Act, 1958, shall have effect as if in the Annex to Part I of the First Schedule to that Act (which lists the tribunals under the supervision of the Council established by that Act) there were included a reference to—

- (a) subsection (6) of section seventy-four of this Act and orders under that section,
- (b) regulations under section eighty-one of this Act, and
- (c) sub-paragraph (3) of paragraph 17 of the Seventh Schedule to this Act.

Supplemental

Duty to give
effect to
Minister's
directions.

89.—(1) It shall be the duty of the Boards or of any other person to whom the Minister or any other authority gives directions under this Act to give effect to those directions.

(2) Any direction given by the Minister under this Act shall be in writing.

Inquiries.

90.—(1) The Minister may hold inquiries for the purposes of his powers under this Act as if those purposes were purposes of the Ministry of Transport Act, 1919, and section twenty of that Act shall apply accordingly.

(2) The costs incurred by the Minister in relation to an inquiry under the said Act of 1919 (including such reasonable sum not exceeding five guineas a day as he may determine for the services of any officer engaged in the inquiry) shall be paid by such party to the inquiry as the Minister may direct, and the Minister may certify the amount of the costs so incurred, and any amount so certified and directed by the Minister to be paid by any person shall be recoverable from that person either as a debt to the Crown or by the Minister summarily as a civil debt.

(3) The Minister may make orders as to the costs of the parties to any inquiry held by him under the said Act and as to the parties by whom such costs shall be paid.

(4) Any costs required by an order under subsection (3) of this section to be taxed may be taxed in the county court according to such of the scales prescribed by county court rules

for proceedings in the county court as may be directed by the order, or, if the order gives no direction, by the county court.

(5) Any sum payable by virtue of an order under subsection (3) of this section shall, if the county court so orders, be recoverable by execution issued from the county court or otherwise as if payable under an order of that court.

(6) Any sums received by the Minister under this section shall be paid into the Exchequer.

(7) In the application of this section to Scotland—

(a) in subsection (2) the words “either as a debt to the Crown or”, and the word “summarily” shall be omitted,

(b) for subsection (3) there shall be substituted the following subsection, that is to say—

“(3) In relation to any inquiry held under this section in Scotland the Minister shall have the like power to award expenses as if he were an arbiter under a submission and the parties to the inquiry were parties to the submission; and any award of expenses by the Minister under this subsection may be recorded for execution in the Books of Council and Session, and shall be enforceable accordingly”,

and

(c) subsections (4) and (5) shall be omitted.

91.—(1) The Minister may by order repeal any local enactment which in his opinion has ceased to have effect in consequence of the provisions of the Transport Act, 1947, or this Act. Repeal of local enactments.

(2) An order under this section shall be made by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

92.—(1) In this Act, except so far as the context otherwise requires, the following expressions have the meanings herein respectively assigned to them,— Interpretation.

“charges” includes fares, rates, tolls and dues of every description;

“coastal shipping” means the carrying of goods or passengers in ships by sea to or from any point in Great Britain from or to any point in the United Kingdom, the Isle of Man, the Channel Islands or the Republic of Ireland, but does not include the carrying of goods or passengers in the exercise of a right of ferry legally established whether by Act of Parliament or otherwise;

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“contract carriage” shall be construed in accordance with sections one hundred and seventeen and one hundred and eighteen of the Road Traffic Act, 1960 ;

“express carriage” shall be construed in accordance with the said sections of the Road Traffic Act, 1960 ;

“final accounts of the Commission” has the meaning assigned to it by sub-paragraph (5) of paragraph 18 of the Seventh Schedule to this Act ;

“function” includes powers, duties and obligations ;

“goods” includes animals ;

“harbour” means any harbour, whether natural or artificial, and any port, haven, estuary, tidal or other river or inland waterway navigated by sea-going ships, and any dock, including any pier, jetty or other place at which ships can ship or unship goods or passengers ;

“the Holding Company” has the meaning assigned to it by section twenty-nine of this Act ;

“the Hotel Company” has the meaning assigned to it by section thirty-three of this Act ;

“inland waterway” includes every such waterway whether natural or artificial ;

“land” includes any interest in land and any right over land ;

“lease” includes an agreement for a lease ;

“liability” includes an obligation ;

“local enactment” means any provision—

(a) in any local Act passed before this Act, or in any Act passed before this Act and confirming a provisional order, and

(b) in any order or other instrument made under such an Act, and

(c) in any order made under the Light Railways Act, 1896,

and includes any provision of the Railways Clauses Consolidation Act, 1845, or any other public Act as it is incorporated in an Act or instrument falling under paragraph (a), (b) or (c) of this definition ;

“the London Passenger Transport Area” has the meaning assigned to it by subsection (1) of section one hundred and seven of the London Passenger Transport Act, 1933 ;

“the London Special Area” means the Special Area as defined by subsection (1) of section one hundred and seven of the London Passenger Transport Act, 1933 ;

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- “the Lower Ouse Improvement” means so much of the River Ouse as is within the limits of improvement as defined by section three of the Ouse (Lower) Improvement Act, 1884 ;
- “the Minister ” means the Minister of Transport ;
- “officer ”, in relation to the Commission or any other body, does not include a member of that body ;
- “participant ” means, in relation to a pension scheme, a person who (whether he is referred to in the scheme as a member, as a contributor or otherwise) contributes or has contributed under the scheme and has pension rights thereunder and “participate ” shall be construed accordingly ;
- “pension ”, in relation to a person, means a pension, whether contributory or not, of any kind whatsoever payable to or in respect of him, and includes a gratuity so payable and a return of contributions to a pension fund, with or without interest thereon or any other addition thereto and any sums payable on or in respect of the death of that person ;
- “pension fund ” means a fund established for the purposes of paying pensions ;
- “pension rights ” includes, in relation to any person, all forms of right to or eligibility for the present or future payment of a pension, and any expectation of the accruer of a pension under any customary practice, and includes a right of allocation in respect of the present or future payment of a pension ;
- “pension scheme ” includes any form of arrangement for the payment of pensions, whether subsisting by virtue of Act of Parliament, trust, contract or otherwise ;
- “port facilities ” means the constructing, improving, maintaining, regulating, managing, marking or lighting of a harbour or any part thereof, the berthing, towing, moving or dry-docking of a ship which is in, or is about to enter, or has recently left, a harbour, the loading or unloading of goods, or embarking or disembarking of passengers, in or from any such ship, the lighterage or the sorting, weighing, warehousing or handling of goods in a harbour, and the movement of goods within a harbour ;
- “public service vehicle ” shall be construed in accordance with sections one hundred and seventeen and one hundred and eighteen of the Road Traffic Act, 1960 ;

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"the re-organisation effected by this Act" includes any re-organisation effected by a scheme under section sixty-nine of this Act, including any amendments of the scheme made not later than six months after the date on which the scheme comes into effect;

"securities", in relation to a body corporate, means any shares, stock, debentures, debenture stock, and any other security of a like nature, of the body corporate;

"ship" includes every description of vessel used in navigation;

"stage carriage" shall be construed in accordance with sections one hundred and seventeen and one hundred and eighteen of the Road Traffic Act, 1960;

"statutory provision" means a provision whether of a general or of a special nature contained in, or in any document made or issued under, any Act, whether of a general or a special nature;

"subsidiary", in relation to any body corporate, means a body corporate which is a subsidiary of the first mentioned body corporate as defined by section one hundred and fifty-four of the Companies Act, 1948 (taking references in that section to a company as being references to any body corporate);

"vesting date" has the meaning assigned to it by section thirty-one of this Act;

"wholly-owned subsidiary" means a subsidiary all the securities of which are owned by the body of which it is a subsidiary, or by one or more other wholly-owned subsidiaries of that body, or partly by that body and partly by any wholly-owned subsidiary of that body.

(2) Any reference in this Act to any provision of the Railways Clauses Consolidation Act, 1845, or of any other Act which is expressed only to have effect as incorporated in another enactment, shall include a reference to that provision as incorporated in any statutory provision passed or made whether before or after the passing of this Act.

(3) Except so far as the context otherwise requires, any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended, extended or applied by any other enactment including this Act.

**Application
to Northern
Ireland.**

93.—(1) The provisions of this Act set out in Part I of the Eleventh Schedule to this Act shall extend to Northern Ireland subject to the modifications set out in Part II of that Schedule, and save as aforesaid this Act shall not extend to Northern Ireland.

(2) For the purposes of section six of the Government of Ireland Act, 1920 (which relates to the powers of the Parliament of Northern Ireland), this Act shall be deemed to be an Act passed before the appointed day. PART IV

94. Any expenses incurred by the Minister under or in consequence of the provisions of this Act shall be paid out of money provided by Parliament. Minister's expenses.

95.—(1) The Acts specified in the Twelfth Schedule to this Act (Part I of which includes certain enactments which are spent or obsolete) shall be repealed to the extent specified in the third column of that Schedule. Repeal and savings.

(2) The repeals in Part II of the said Schedule shall, save as otherwise expressly provided, take effect on the vesting date.

(3) Nothing in the repeals in Part I of the Twelfth Schedule to this Act which relate to the Transport Tribunal shall affect any appointment made, any judgment or order given, any document issued or any other thing done before the date on which the repeals take effect; and the provision of this Act corresponding to the enactment under which it was done shall have effect as if it had been done under that provision.

Any reference in any instrument or other document to such an enactment shall be taken as regards anything done after that date as a reference to the corresponding provision of this Act.

(4) The foregoing provisions of this section shall be without prejudice to so much of the Interpretation Act, 1889, as relates to the effect of repeals.

(5) Without prejudice to the provisions of subsection (2) of section ninety-two of this Act, any reference in the Twelfth Schedule to this Act to the Railways Clauses Consolidation Act, 1845, or any other Act which is expressed only to have effect as incorporated in any other enactment, includes a reference to that provision as incorporated in any statutory provision passed or made whether before or after the passing of this Act.

96.—(1) This Act may be cited as the Transport Act, 1962. Short title and

(2) Subject to any other provision of this Act, this Act shall come into force on such date as the Minister may by order contained in a statutory instrument appoint, and the Minister may under this subsection appoint different dates for different provisions of this Act. commence-ment.

SCHEDULES

Sections 1, 2
and 29.

FIRST SCHEDULE

THE BOARDS, THE REGIONAL RAILWAY BOARDS AND THE HOLDING COMPANY

PART I

THE FOUR BOARDS

1. Each Board shall be a body corporate with perpetual succession and a common seal.

2. Each Board may act notwithstanding a vacancy among its members.

3. The quorum of the Railways Board shall be five, and the quorum of each of the other Boards shall be three and, subject as aforesaid, the Boards may regulate their own procedure.

4.—(1) The application of the seal of any Board shall be authenticated by the signatures of the chairman of the Board or some other member of the Board authorised by the Board to authenticate the application of the seal thereof, and of the secretary of the Board or some person authorised by the Board to act in his stead in that behalf.

(2) A Board may authorise a person to act instead of the secretary under this paragraph whether or not the secretary is absent or incapable of acting.

5. Every document purporting to be an instrument issued by any of the Boards and to be sealed as aforesaid, or to be signed on behalf of any Board, shall be received in evidence and be deemed to be such an instrument without further proof unless the contrary is shown.

6.—(1) A member of any Board shall hold and vacate his office in accordance with the terms of his appointment and shall, on ceasing to be a member, be eligible for re-appointment.

(2) Any member may at any time by notice in writing to the Minister resign his office.

7.—(1) Before appointing a person to be a member of any Board, the Minister shall satisfy himself that that person will have no such financial or other interest as is likely to affect prejudicially the discharge by him of his functions as a member of a Board, and the Minister shall also satisfy himself from time to time with respect to every member of any of the Boards that he has no such interest ; and any person who is, or whom the Minister proposes to appoint to be, a member of a Board shall, whenever requested by the Minister so to do, furnish to him such information as the Minister considers necessary for the performance by the Minister of his duties under this paragraph.

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(2) A member of any Board who is in any way directly or indirectly interested in a contract made or proposed to be made by the Board shall disclose the nature of his interest at a meeting of the Board; and the disclosure shall be recorded in the minutes of the Board, and the member shall not take any part in any deliberation or decision of the Board with respect to that contract.

(3) For the purposes of the last foregoing sub-paragraph a general notice given at a meeting of a Board by a member of the Board to the effect that he is a member of a specified company or firm and is to be regarded as interested in any contract which may, after the date of the notice, be made with that company or firm, shall be regarded as a sufficient disclosure of his interest in relation to any contract so made.

A member of a Board need not attend in person at a meeting of the Board in order to make any disclosure which he is required to make under this paragraph if he takes reasonable steps to secure that the disclosure is made by a notice which is brought up and read at the meeting.

8.—(1) Each Board—

- (a) shall pay to the members thereof such salaries or fees, and such allowances, as the Minister may, with the approval of the Treasury, determine, and
- (b) on the retirement or death of any of the members as to whom the Minister may, with the approval of the Treasury, determine that such provision should be made, shall pay to or in respect of them such pensions as he may so determine,

and if a person ceases to be a member of a Board, otherwise than on the expiration of his term of office, and it appears to the Minister that there are special circumstances which make it right that that person should receive compensation the Minister may, with the approval of the Treasury, require the Board to pay to that person a sum of such amount as the Minister may with the approval of the Treasury determine.

(2) The Minister shall, as soon as possible after the first appointment of any person as a member of a Board, lay before each House of Parliament a statement of the salary or fees and of the allowances that are or will be payable under this paragraph; and, if any subsequent determination by him under this paragraph involves a departure from the terms of that statement, or if a determination by him under this paragraph relates to the payment of, or of payment towards the provision of, a pension to or in respect of, a member of the Board, the Minister shall, as soon as possible after the determination, lay a statement thereof before each House of Parliament.

(3) So much of sub-paragraph (1) of this paragraph as requires that the pensions, if any, which are to be paid in the case of members of a Board are to be determined by the Minister with the approval of the Treasury shall not apply in relation to any pension payable apart from the provisions of this paragraph.

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PART II

THE REGIONAL RAILWAY BOARDS

9. The chairman and other members of each Regional Railway Board shall be appointed by the Railways Board with the approval of the Minister.

10.—(1) Each Regional Railway Board shall consist of a chairman and not more than nine other members.

(2) Any person holding the office of general manager (whatever title that office carries) of a part of the national railways system for the management of which a Regional Railway Board is responsible, and, where there are joint holders of that office, each of them, shall by virtue of that office be a member of that Regional Railway Board so long as he holds that office.

(3) The chairman and other members of each Regional Railway Board, other than those holding office as members by virtue of the last foregoing sub-paragraph, shall be appointed from among persons—

- (a) who appear to the Railways Board to have had wide experience of, and to have shown capacity in, transport, industrial, commercial or financial matters, administration, applied science, or the organisation of workers, or
- (b) who have had wide experience of, and are conversant with, the special requirements and circumstances of the region with which the Regional Railway Board is concerned, including in particular the special transport requirements in that region.

11.—(1) A member of a Regional Railway Board, other than a person holding office as a member by virtue of sub-paragraph (2) of paragraph 10 of this Schedule, shall hold office in accordance with the terms of his appointment but may at any time by notice in writing to the Railways Board resign his office.

(2) A person on ceasing to be a member of a Regional Railway Board shall be eligible for re-appointment.

12.—(1) The Railways Board—

- (a) shall pay to the members of each Regional Railway Board such salaries or fees, and such allowances, as the Minister may, with the approval of the Treasury, determine, and
- (b) on the retirement or death of any member of a Regional Railway Board as to whom the Minister may, with the approval of the Treasury, determine that such provision should be made, shall pay to or in respect of him such pensions as the Minister may so determine,

and if a person ceases to be a member of a Regional Railway Board, otherwise than on the expiration of his term of office, and it appears to the Minister that there are special circumstances which make it right that that person should receive compensation the Minister may, with the approval of the Treasury, require the Railways Board to pay to that person a sum of such amount as the Minister may with the approval of the Treasury determine.

(2) The foregoing sub-paragraph shall not apply to a person who is a member of a Regional Railway Board by virtue of sub-paragraph (2) of paragraph 10 of this Schedule.

(3) The Minister shall, as soon as possible after the first appointment of any person as a member of a Regional Railway Board, lay before each House of Parliament a statement of the salary or fees and of the allowances that are or will be payable under this paragraph; and, if any subsequent determination by him under this paragraph involves a departure from the terms of that statement, or if a determination by him under this paragraph relates to the payment of, or of payment towards the provision of, a pension to or in respect of a member of a Regional Railway Board, the Minister shall, as soon as possible after the determination, lay a statement thereof before each House of Parliament.

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(4) So much of this paragraph as requires that the pensions, if any, which are to be paid in the case of members of a Regional Railways Board are to be determined by the Minister with the approval of the Treasury shall not apply to any pension payable apart from the provisions of this paragraph.

13. The procedure of each Regional Railway Board, including the quorum at meetings of the Board, shall be such as the Board may, with the approval of the Railways Board, determine.

PART III

THE HOLDING COMPANY

14.—(1) A director of the Holding Company shall hold and vacate his office in accordance with the terms of his appointment and shall, on ceasing to be a director, be eligible for re-appointment.

(2) A director of the Holding Company may at any time by notice in writing to the Minister resign his office.

15.—(1) The Holding Company—

(a) shall pay to the directors thereof such salaries or fees, and such allowances, as the Minister may, with the approval of the Treasury, determine, and

(b) on the retirement or death of any of the directors as to whom the Minister may, with the approval of the Treasury, determine that such provision should be made, shall pay to or in respect of them such pensions as he may so determine,

and if a person ceases to be a director of the Holding Company, otherwise than on the expiration of his term of office, and it appears to the Minister that there are special circumstances which make it right that that person should receive compensation, the Minister may, with the approval of the Treasury, require the Holding Company to pay to that person a sum of such amount as the Minister may with the approval of the Treasury determine.

(2) The Minister shall, as soon as possible after the first appointment of any person as a director of the Holding Company, lay before each House of Parliament a statement of the salary or fees and of the allowances that are or will be payable under this paragraph; and, if any subsequent determination by him under this paragraph involves a departure from the terms of that statement, or if a determination by him under this paragraph relates to the payment of, or of payment towards the provision of, a

1ST SCH. pension to or in respect of, a member of the Holding Company, the Minister shall, as soon as possible after the determination, lay a statement thereof before each House of Parliament.

(3) So much of sub-paragraph (1) of this paragraph as requires that the pensions, if any, which are to be paid in the case of directors of the Holding Company are to be determined by the Minister with the approval of the Treasury shall not apply in relation to any pension payable apart from the provisions of this paragraph.

16.—(1) The Holding Company may act notwithstanding a vacancy among the directors.

(2) The Minister may by order regulate the procedure of the Holding Company, including the quorum at meetings of the Holding Company.

An order under this sub-paragraph may vary or revoke a previous order, and shall be made by statutory instrument which shall be laid before Parliament.

(3) If and so far as the procedure of the Holding Company is not regulated by an order under the last foregoing sub-paragraph, it shall be such as the Holding Company may determine.

(4) The Holding Company shall have a common seal, and the application of that seal shall be authenticated by the signatures of the chairman or some other director of the Holding Company authorised by the Holding Company to authenticate the application thereof, and of the secretary of the Holding Company or some person authorised by the Holding Company to act in his stead in that behalf.

The Holding Company may authorise a person to act instead of the secretary under this paragraph whether or not the secretary is absent or incapable of acting.

(5) Every document purporting to be an instrument issued by the Holding Company and to be sealed as aforesaid, or to be signed on behalf of the Holding Company, shall be received in evidence and be deemed to be such an instrument without further proof unless the contrary is shown.

Section 32.

SECOND SCHEDULE

TRANSFER OF COMMISSION'S STATUTORY FUNCTIONS

PART I

PUBLIC ACTS

The Railway Fires Act, 1905

5 Edw. 7. c. 11

Section 2 The reference to a railway company shall (Powers of entry on land). include a reference to any of the Boards.

The London Passenger Transport Act, 1933

23 & 24 Geo. 5. c. 14

In the London Passenger Transport Act, 1933 (so far as not repealed by this Act), for references to the London Passenger Transport Board there shall be substituted references to the London Board.

The Public Health (London) Act, 1936

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26 Geo. 5 and 1 Edw. 8. c. 50

Section 304 (3) ... For the reference to the London
(Definition of railway Passenger Transport Board there shall
company). be substituted a reference to the
London Board.

The Criminal Justice Act, 1948

11 & 12 Geo. 6. c. 58

Section 41 (3) ... For the reference to the Commission or
(Evidence in criminal pro- any Executive there shall be substituted
ceedings regarding goods a reference to any of the Boards.
and mail in transit).

The Coast Protection Act, 1949

12, 13 & 14 Geo. 6. c. 74

1.—(1) In paragraph (d) of subsection (2) and subsection (8) of section two, in paragraph (c) of subsection (6) of section three and in paragraphs 1 and 8 of the First Schedule (which relate to the appointment of coast protection boards and joint committees) for references to the Commission there shall be substituted references to the Railways Board and the British Waterways Board.

(2) This paragraph shall not affect any order under the said section two, or any appointment made under either of those sections before the vesting date, but the power under an order under the said section two or under the said section three to appoint a person to take the place of a representative of the Commission shall be exercisable either by the Railways Board or the British Waterways Board, or both those Boards jointly, as those Boards may agree.

2. In paragraph (c) of the proviso to subsection (4) of section five and in paragraph (c) of the proviso to subsection (4) of section eight (which relate to objections to proposals to carry out coast protection work) for the reference to the Commission there shall be substituted a reference to any of the Boards.

The Diseases of Animals Act, 1950

14 Geo. 6. c. 36

Section 22 ... For references to the Commission there
(Provision of water and shall be substituted references to any
food at railway stations). of the Boards.

The Education (Miscellaneous Provisions) Act, 1953

1 & 2 Eliz. 2. c. 33

Section 12 (1) proviso (a)... For the reference to the Commission
(School transport in there shall be substituted a reference to
London). the London Board.

The Post Office Act, 1953

1 & 2 Eliz. 2. c. 36

Section 44 (1) (b) ... For the reference to the Commission
(Power to require convey- there shall be substituted a reference to
ance of mail by public the Railways Board and the London
service vehicles). Board.

Section 157 In subsection (3), for the reference to the
(Financial and statistical Commission or an Executive there
returns). shall be substituted a reference to the
Railways Board and the London
Board.

Section 174 (Applications for carrier's licences).		In subsection (5), for the reference to the Commission there shall be substituted a reference to the Railways Board, and for the reference to the Commission's duty there mentioned there shall be substituted a reference to the duty imposed on the Railways Board by Part I of this Act.	2ND SCH.
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*Act of the Parliament of Northern Ireland
The Criminal Justice Act (Northern Ireland), 1953
1953 c. 14*

Section 12 (3) (Evidence in criminal proceedings regarding goods and mail in transit).		For the reference to the Commission or any Executive there shall be substituted a reference to any of the Boards.
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PART II

THE RAILWAY LOCAL ACTS RELATING TO ROAD TRANSPORT, SHIPPING AND AIR TRANSPORT

The Railway Road Transport Acts of 1928

1.—(1) In the Railway Road Transport Acts of 1928—

- (a) for references to the railway companies there mentioned there shall be substituted references to the Railways Board, and
- (b) for references to the railway systems of those companies there shall be substituted references to the Board's railway system.

(2) In this paragraph "the Railway Road Transport Acts of 1928" means the London and North Eastern Railway (Road Transport) Act, 1928, the Southern Railway (Road Transport) Act, 1928, the Great Western Railway (Road Transport) Act, 1928, and the London Midland and Scottish Railway (Road Transport) Act, 1928.

The Railway Shipping Acts

2.—(1) In the Railway Shipping Acts for references to the railway companies there mentioned there shall be substituted references to the Railways Board.

(2) In this paragraph "the Railway Shipping Acts" means all the local enactments under which the railway companies whose undertakings were under the Transport Act, 1947, transferred to the Commission then had power to provide shipping services, and all local enactments relating to those powers.

The Railway Air Transport Acts of 1929

3.—(1) In the Railway Air Transport Acts—

- (a) for references to the railway companies there mentioned there shall be substituted references to the Railways Board, and
- (b) for references to the railway systems of those companies there shall be substituted references to the Board's railway system.

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(2) In this paragraph "the Railway Air Transport Acts of 1929" means the London and North Eastern Railway (Air Transport) Act, 1929, the Southern Railway (Air Transport) Act, 1929, the Great Western Railway (Air Transport) Act, 1929, and the London Midland and Scottish Railway (Air Transport) Act, 1929.

PART III

OTHER FUNCTIONS UNDER LOCAL ENACTMENTS

The London Passenger Transport Acts of 1934 to 1947

In the local Acts cited as the London Passenger Transport Acts, 1933 to 1947, for references to the London Passenger Transport Board there shall be substituted references to the London Board.

The British Transport Commission Act, 1949

12 & 13 Geo. 6. c. xxix

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| Section 54
(Powers of search and
arrest on Commission's
property). | For references to the Commission there
shall be substituted references to any
of the Boards and the Hotel Company. |
| Section 55
(Trespass on railways). | For references to the Commission there
shall be substituted references to any
of the Boards. |
| Section 56
(Stone throwing on rail-
ways). | For references to the Commission there
shall be substituted references to any
of the Boards. |
| Section 57
(Rights of way over Com-
mission's property). | For references to the Commission there
shall be substituted references to any
of the Boards. |
| Section 59
(Rights of pre-emption
under Lands Clauses Acts). | For references to the Commission there
shall be substituted references to any
of the Boards. |

The British Transport Commission Order Confirmation Act, 1953

1 & 2 Eliz. 2. c. xx

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| Section 18 in the Schedule
(Service of notices to
treat). | For references to the Commission there
shall be substituted references to any
of the Boards. |
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The British Transport Commission Act, 1953

1 & 2 Eliz. 2. c. xlii

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| Section 52
(Service of notices to
treat). | For references to the Commission there
shall be substituted references to any
of the Boards. |
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The British Transport Commission Act, 1954

2 & 3 Eliz. 2. c. lv

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|---|---|
| Section 24
(Private street expenses). | For references to the Commission there
shall be substituted references to any
of the Boards. |
| Section 40
(Barriers at level-crossings). | For references to the Commission there
shall be substituted references to any
of the following, that is to say, the
Railways Board, the London Board
and the Docks Board. |

The British Transport Commission Act, 1957

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5 & 6 Eliz. 2. c. xxxiii

Section 66 ... For references to the Commission there shall be substituted references to any of the following, that is to say, the Railways Board, the London Board and the Docks Board.

The British Transport Commission Act, 1958

6 & 7 Eliz. 2. c. xlv

Section 19 ... For references to the Commission there shall be substituted references to the British Waterways Board and, as regards the Lower Ouse Improvement, the Docks Board.

The British Transport Commission Order Confirmation Act, 1959

7 & 8 Eliz. 2. c. xxxvi

Section 15 in the Schedule For references to the Commission there shall be substituted references to any of the Boards.

The British Transport Commission Act, 1959

7 & 8 Eliz. 2. c. xlv

Section 26 ... For references to the Commission there shall be substituted references to the British Waterways Board.

The British Transport Commission Act, 1961

9 & 10 Eliz. 2. c. xxxvi

Section 26 ... For references to the Commission there shall be substituted references to any of the following, that is to say, the Railways Board, the Docks Board and the British Waterways Board.

PART IV

THE RAILWAYS CLAUSES ACTS

The following enactments in the Railways Clauses Consolidation Act, 1845, and the Railways Clauses Consolidation (Scotland) Act, 1845, shall apply to all the railways of each of the Boards and shall so apply as if references in those enactments to the company were references to those Boards respectively.

<i>Subject matter</i>	<i>Section of Railways Clauses Consolidation Act, 1845</i>	<i>Section of Railways Clauses Consolidation (Scotland) Act, 1845</i>
Lien for non-payment of tolls	97	90
Passengers avoiding payment of fares ...	103 and 104	96 and 97
Carriage of dangerous goods	105	98
Defacement of notice boards	144	136
Liability to make good damage inflicted on railway	152	144

Section 31.

THIRD SCHEDULE

DISTRIBUTION OF COMMISSION'S HARBOURS

PART I

RAILWAYS BOARD'S HARBOURS

Dunston Staiths	
Folkestone	
Harwich	
Heysham	
Holyhead	
Newhaven	
Parkeston Quay	
Stranraer (East Pier)	
	Any other harbour of the Commission (not being an inland waterway) which is not listed in Part II or Part III of this Schedule.

PART II

DOCKS BOARD'S HARBOURS

Alloa	Immingham
Ayr	King's Lynn
Barrow	Lower Ouse Improvement
Barry	Lowestoft
Bo'ness	Lydney
Burntisland	Methil
Burry Port	Middlesbrough
Cardiff	Newport (Mon.)
Charlestown	Penarth
Fleetwood	Plymouth (Millbay)
Garston	Port Talbot
Goole	Silloth
Grangemouth	Southampton
Grimsby	Swansea
Hartlepool	Tayport
Hull (including Salt End)	Troon

PART III

BRITISH WATERWAYS BOARD'S HARBOURS

Ardrihaig Dock	Regent's Canal Dock
Ellesmere Port Docks	Sharpness Docks
Gloucester Docks	Weston Point Docks

Sections 31 and
85.

FOURTH SCHEDULE

DISTRIBUTION OF COMMISSION'S SECURITIES

PART I

THE RAILWAYS BOARD'S LIST

LIST A

Companies all the shares in which are owned by the Commission

British and Irish Railways, Inc.
 Britravel Nominees Limited.
 The Caledonian Steam Packet Company Limited.
 Caledonian Steam Packet Company (Irish Services) Limited.
 Railway Sites Limited.

LIST B

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Other bodies

The Channel Tunnel Company Limited.
The Derwent Valley Light Railway Company.
The Fishguard and Rosslare Railways & Harbours Company.
Port of Padstow Harbour Commissioners.
The Pullman Car Company Limited.
Société Anonyme de Navigation Angleterre-Lorraine-Alsace.
Société Belgo-Anglaise des Ferry-Boats, S.A.
Société Ferroviaire Internationale de Transports Frigorifiques.
Sutton Bridge Dock Company.
Sutton Harbour Improvement Company.

PART II

THE DOCKS BOARD'S LIST

The Hull Fish Merchants' Club Limited.
The International Cold Storage & Ice Company Limited.

PART III

THE BRITISH WATERWAYS BOARD'S LIST

*(The following bodies are companies all the shares in which
are owned by the Commission)*

Canal Transport Limited.
Erewash Canal Carrying Company Limited.
Grandion Limited.
Grand Union Canal Carrying Company Limited.
Grand Union Estates Limited.
Grand Union (Stevedoring & Wharfage) Company Limited.
Grand Union Transport Limited.
Grand Union Warehousing Company Limited.
Thomas Clayton (Paddington) Limited.

PART IV

THE HOLDING COMPANY'S LIST

LIST A

Companies all the shares in which are owned by the Commission

British Road Services Limited.
B.R.S. (Contracts) Limited.
B.R.S. (Parcels) Limited.
B.R.S. (Pickfords) Limited.
B.R.S. (Meat Haulage) Limited.
Star Bodies (B.T.C.) Limited.
Bath Electric Tramways Limited.
Bath Tramways Motor Company Limited.

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Brighton, Hove & District Omnibus Company Limited.
 Bristol Omnibus Company Limited.
 Bristol Commercial Vehicles Limited.
 Cheltenham District Traction Company.
 Crosville Motor Services Limited.
 Cumberland Motor Services Limited.
 Durham District Services Limited.
 Eastern Coach Works Limited.
 Eastern Counties Omnibus Company Limited.
 The Eastern National Omnibus Company Limited.
 Hants and Dorset Motor Services Limited.
 Lincolnshire Road Car Company Limited.
 Mansfield District Traction Company.
 The Midland General Omnibus Company Limited.
 Newbury and District Motor Services Limited.
 Nottinghamshire and Derbyshire Traction Company.
 Red and White Services Limited.
 South Midland Motor Services Limited.
 The Southern National Omnibus Company Limited.
 The Southern Vectis Omnibus Company Limited.
 The Thames Valley Traction Company Limited.
 Tillings Transport (B.T.C.) Limited.
 United Automobile Services Limited.
 United Counties Omnibus Company Limited.
 United Welsh Services Limited.
 Venture Limited.
 West Yorkshire Road Car Company Limited.
 The Western National Omnibus Company Limited.
 Wilts and Dorset Motor Services Limited.
 Scottish Omnibuses Group (Holdings) Limited.
 Thos. Cook & Son Limited.
 Atlantic Steam Navigation Company Limited.
 Transport Nominees Limited.

LIST B

Other bodies

Aldershot & District Traction Company Limited.
 The Birmingham & Midland Motor Omnibus Company Limited.
 The City of Oxford Motor Services Limited.
 The Devon General Omnibus and Touring Company Limited.
 East Kent Road Car Company Limited.
 East Midland Motor Services Limited.
 East Yorkshire Motor Services Limited.
 Hebble Motor Services Limited.
 The Maidstone & District Motor Services Limited.
 North Western Road Car Company Limited.
 The Northern General Transport Company Limited.
 Ribble Motor Services Limited.
 Southdown Motor Services Limited.
 Trent Motor Traction Company Limited.
 Western Welsh Omnibus Company Limited.
 The Yorkshire Traction Company Limited.

Yorkshire Woollen District Transport Company Limited.
The Birmingham & District Investment Trust Limited.
Associated Humber Lines Limited.
David MacBrayne Limited.
London Coastal Coaches Limited.
Otley Omnibus Stations Limited.
A. Timpson and Sons Limited.
The Penarth Dock Engineering Company Limited.

4TH SCH.

PART V

1.—(1) Subject to sub-paragraph (3) of this paragraph, the right to any money owed to the Commission by any of the bodies listed in the foregoing Parts of this Schedule shall be transferred to the Railways Board, the Docks Board, the British Waterways Board and the Holding Company respectively.

(2) Subject to sub-paragraph (3) of this paragraph, the liability represented by any money owed by the Commission to any of the bodies listed in the foregoing Parts of this Schedule shall be transferred to the Railways Board, the Docks Board, the British Waterways Board and the Holding Company respectively.

(3) This paragraph shall not apply to money owed in the ordinary course of trading.

2. Subject to the following provisions of this Act, any rights or liabilities of the Commission regarding the securities of any of the bodies listed in the foregoing Parts of this Schedule shall be transferred to the Railways Board, the Docks Board, the British Waterways Board and the Holding Company respectively.

PART VI

3. If at the vesting date there is a subsidiary of the Commission which owns securities of any of the bodies listed in one Part (but not more than one Part) of this Schedule, then for the purposes of section thirty-one and section thirty-four of this Act, and of Part V of this Schedule, that body shall be treated as if it were included in that Part of this Schedule.

4. If at the vesting date the Commission owns securities in any body corporate which does not fall under Parts I to IV of this Schedule, then for the purposes of section thirty-one and section thirty-four of this Act, and of Part V of this Schedule, that body shall be treated as if it were included in such Part of this Schedule as may be designated by the Minister.

FIFTH SCHEDULE

Section 31.

MISCELLANEOUS ITEMS IN THE DISTRIBUTION OF THE COMMISSION'S ASSETS

1. There shall be transferred to the Railways Board—

- (a) liability under the Third Schedule to the Railways Act, 1921, or regulations under sections one hundred and one and one hundred and two of the Transport Act, 1947 (which relate to compensation for loss of employment),

5TH SCH.

- (b) liability to pay any unclaimed dividend or redemption money in respect of any of the securities of the bodies whose undertakings were transferred to the Commission by the Transport Act, 1947, other than in respect of securities created under the London Passenger Transport Act, 1933, and
 - (c) liability under any guarantee of interest on securities issued by the Dover Harbour Board or the Fishguard and Rosslare Railways and Harbours Company.
2. There shall be transferred to the London Board—
- (a) liability under Part VII of the London Passenger Transport Act, 1933 (which relates to compensation for loss of employment),
 - (b) liability to pay any unclaimed dividend or redemption money in respect of any securities created under the London Passenger Transport Act, 1933,
 - (c) liability under the guarantee of Central London (New) Guaranteed Assented Stock, and
 - (d) liability in respect of any payment (whether by way of remuneration, pension or otherwise) to be made to a member of the London Transport Executive under the Second Schedule to the Transport Act, 1947, or section seventy-nine of this Act.
3. There shall be transferred to the Docks Board liability under any guarantee of the Swansea Pilotage Authority or the Port Talbot Pilotage Authority.
4. There shall be transferred to the British Waterways Board any liability under section twenty-five of the Transport Act, 1947 (under which certain payments became due to local authorities referable to the part of the undertaking of the Commission transferred to that Board).
5. There shall be transferred to the Holding Company—
- (a) liability under regulations under section twenty-eight of the Transport Act, 1953 (which relates to compensation for loss of employment),
 - (b) all the interest of the Commission in the property known as "10, Fleet Street" (which is the head office of The Tilling Group),
 - (c) the liability represented by any money (except money owed in the ordinary course of trading) owed by the Commission to The Tilling Association Limited, and
 - (d) any rights or liabilities of the Commission under covenants, express or implied, relating to land disposed of by the Road Haulage Executive on behalf of the Commission or to land disposed of by the Commission which was at any time in the possession, as between that Executive and persons other than the Commission, of that Executive.

6.—(1) This paragraph applies to any agreement—

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- (a) which was made with, or relates to, a company operating motor omnibuses or other road passenger transport vehicles, being a company which is listed in Part IV of the Fourth Schedule to this Act, and
- (b) to which the Commission became a party by virtue of Part II of the Transport Act, 1947, as successors of a railway company having powers under the Railway Road Transport Acts of 1928 mentioned in paragraph 1 of Part II of the Second Schedule to this Act.

In the following provisions of this paragraph “the omnibus company” means any such company as is mentioned in paragraph (a) of this sub-paragraph.

(2) There shall be transferred to the Holding Company any rights and liabilities of the Commission under so much of the agreement as relates—

- (a) to securities issued by the omnibus company, and in particular to any right of pre-emption which may arise when any such securities are disposed of,
- (b) to the raising of capital by the omnibus company,
- (c) to the election or nomination of directors of the omnibus company.

(3) Any rights or liabilities of the Commission under the agreement which are not under the foregoing provisions of this paragraph transferred to the Holding Company shall be transferred to the Railways Board.

(4) Without prejudice to the foregoing provisions of this paragraph, any term of the agreement to the effect that the omnibus company shall not without the consent of directors of the company nominated by the Commission compete with railway services of the Commission shall have effect, as from the vesting date, as if it referred to the consent of the Railways Board and to the railway services of the Railways Board.

SIXTH SCHEDULE

Section 35.

DISTRIBUTION OF COMMISSION'S UNDERTAKING

Distribution of property among the Boards

1.—(1) It shall be the duty of the Boards so far as practicable to arrive at such written agreements, and to execute such other instruments, as will effect the demarcations of boundaries and divisions and apportionments of property, rights and liabilities required under the principal sections and as will—

- (a) afford to each Board as against the other Boards such rights and safeguards as they may require for the proper discharge of their functions, and

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- (b) make such clarifications and modifications of the division of the Commission's undertaking effected by the principal sections as will best serve the proper discharge of the functions of the Boards,

and any such agreement shall provide so far as expedient—

- (i) for the granting of leases and for the creation of other liabilities and rights over land whether amounting in law to interests in land or not, and whether involving the surrender of any existing interest or the creation of a new interest or not,
- (ii) for the granting of indemnities in connection with the severance of leases and other matters,
- (iii) for the joint holding of assets,
- (iv) for responsibility for registration of any matter in any description of statutory register.

An agreement made in pursuance of this sub-paragraph after the vesting date shall not be invalid on that account.

(2) If a Board represents to the Minister that it is expedient in order to facilitate the discharge of their functions, or if it appears to the Minister that it is unlikely that any of the Boards will reach agreement on any matter on which they ought to reach agreement, the Minister may, either before the vesting date or later, but not more than five years after the vesting date, give a direction determining the manner in which any property, rights or liabilities of the Commission are to be distributed and may include in the direction any provision which might have been included in an agreement under the foregoing sub-paragraph.

A direction under this sub-paragraph shall have effect notwithstanding anything in the principal sections and any transfer of property, rights or liabilities effected by such direction shall take effect by virtue of this Act without further assurance.

(3) Where under the principal sections a Board is entitled to possession of any documents relating in part to the title to, or to the management of, any land or other property transferred under the principal sections to another Board, the first-mentioned Board shall be deemed to have given to the second-mentioned Board an acknowledgment in writing of the right of the second-mentioned Board to production of that document and to delivery of copies thereof, and section sixty-four of the Law of Property Act, 1925, shall have effect accordingly, and on the basis that the acknowledgment did not contain any such expression of contrary intention as is mentioned in that section.

(4) Where by the operation of the principal sections any property or rights vest in or are transferred to a Board, or would so vest or be so transferred but for the fact that transfers thereof are governed otherwise than by the law of any part of Great Britain, the Commission shall take all practicable steps for the purpose of securing that the ownership of the property or, as the case may be, the right is effectively transferred to the Board.

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(5) The Railways Board shall, not later than one year after the vesting date, and after consulting the other Boards and the Holding Company, prepare and submit to the Minister schemes for sharing among the Boards and the Holding Company the control and use of the Historical Records vested in the Railways Board by paragraph (f) of subsection (2) of section thirty-one of this Act and dealing with the other assets so vested by that paragraph.

The Minister may approve a scheme so submitted to him with or without modifications, and it shall be the duty of the Boards and the Holding Company to give effect to any scheme as so approved.

Until a scheme under this paragraph comes into force for the said Records, the Railways Board shall afford to the other Boards and to the Holding Company reasonable facilities for access to and the use of the said Records.

(6) In the application of this paragraph to Scotland there shall be omitted, in sub-paragraph (2), the words "without further assurance" and, in sub-paragraph (3), the words from "and section sixty-four" to the end of the sub-paragraph.

Construction of Agreements, Statutory Provisions and Documents

2.—(1) On and after the vesting date any agreement to which the Commission were a party immediately before the vesting date, whether in writing or not, and whether or not of such nature that rights and liabilities thereunder could be assigned by the Commission, shall have effect as if—

- (a) the successor Board had been a party to the agreement, and
- (b) for any reference (however worded and whether express or implied) to the Commission there were substituted, as respects anything falling to be done on or after the vesting date, a reference to the successor Board, and
- (c) any reference (however worded and whether express or implied) to any officer or any servant of the Commission were, as respects anything falling to be done on or after the vesting date, a reference to such person as the successor Board may appoint or, in default of appointment, to the officer or servant of the successor Board who corresponds as nearly as may be to the first-mentioned officer or servant, and
- (d) where the agreement relates to property, rights or liabilities which under the principal sections fall to be apportioned or divided or distributed between two or more Boards, as if the agreement constituted two or more separate agreements separately enforceable by and against each of the respective Boards as regards the part of the property, rights and liabilities vesting in that Board and not as regards the other part,

6TH SCH. and paragraph (d) of this sub-paragraph shall apply in particular to the covenants, stipulations and conditions of any lease by or to the Commission.

(2) Save as otherwise provided by any provision in this Act (whether expressly or by necessary implication), the foregoing sub-paragraph (except paragraph (a)) shall apply in relation to any statutory provision, any provision of any agreement to which the Commission were not a party, and any provision of any other document not being an agreement, as it applies in relation to an agreement to which the Commission were a party, and, in relation to any such statutory or other provision as aforesaid, references in paragraphs (b) and (c) of that sub-paragraph to the Commission and to any officers or servants of the Commission include references made by means of a general reference to a class of persons of which the Commission are one, without the Commission themselves being specifically referred to.

(3) On and after the vesting date any statutory provision passed or made, and any agreement or other instrument executed, before the date of transfer under Part II of the Transport Act, 1947, which by virtue of that Act contains a reference to the Commission instead of a reference to some other body shall have effect as if—

(a) for any reference (however worded and whether express or implied) which before the said date of transfer was a reference to the directors or any director of the body were, as respects anything falling to be done on or after the vesting date, a reference to such person as the successor Board may appoint, and

(b) subject to the foregoing provisions of this paragraph, any reference (however worded and whether express or implied) which before the said date of transfer was a reference to the undertaking of the body were, as respects a period beginning with the vesting date, a reference to so much of the undertaking of the successor Board as corresponds to the undertaking of the first-mentioned body.

(4) Without prejudice to the generality of the foregoing provisions of this paragraph, where by the operation of this Act any right or liability becomes a right or liability of a Board, the Board and all other persons shall, as from the date when the right or liability is transferred, have the same rights, powers and remedies (and in particular the same rights and powers as to the taking or resisting of legal proceedings or the making or resisting of applications to any Authority) for ascertaining, perfecting or enforcing that right or liability as they would have had if it had at all times been a right or liability of the Board, and any legal proceedings or applications to any Authority pending on the said date by or against the Commission, in so far as they relate to any property, right or liability transferred to the Board under or in pursuance of this Act, or to any agreement or enactment to which this Act applies, shall be continued by or against the Board to the exclusion of the Commission.

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(5) If the effect of any agreement, and in particular any agreement under the Railway Road Transport Acts of 1928 mentioned in paragraph 1 of Part II of the Second Schedule to this Act, which was executed before the passing of this Act and to which any Board is by virtue of this Act a party depends on whether that Board has power to carry on any activity, it shall be assumed for the purposes of the agreement that any activity which requires the consent of the Minister under this Act has been authorised by such a consent.

(6) In this paragraph "the successor Board" means—

(a) so far as the relevant agreement, statutory provision or other document relates to property, rights or liabilities or functions transferred under or in pursuance of this Act to one of the Boards, that Board,

(b) so far as the agreement, statutory provision or other document relates to property, rights or liabilities or statutory functions transferred under or in pursuance of this Act to two or more of the Boards, those Boards, but taken as a reference to both or all of those bodies, or to either or any of them separately, as the context may require, and

(c) in any other case, such Board as the Minister may direct, and in this paragraph references to agreements to which the Commission were a party and to statutory provisions, include in particular references to agreements to which the Commission became a party by virtue of the Transport Act, 1947, and statutory provisions which applied to the Commission by virtue of that Act.

(7) In this paragraph references to the Boards include references to the Holding Company.

(8) The provisions of this paragraph shall have effect for the interpretation of agreements, statutory provisions and other instruments subject to the context, and shall not apply where the context otherwise requires.

(9) In this paragraph references to the Commission include references to any Executive of the Commission.

Third parties affected by vesting provisions

3.—(1) Without prejudice to the provisions of the last foregoing paragraph, any transaction effected between the Boards in pursuance of paragraph 1 of this Schedule not more than five years after the vesting date shall be binding on all other persons, and notwithstanding that it would, apart from this sub-paragraph, have required the consent or concurrence of any other person.

(2) It shall be the duty of the Boards who effect any transaction in pursuance of paragraph 1 of this Schedule to notify any person who has rights or liabilities which thereby become enforceable as

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to part by or against one Board and as to part by or against another Board, and if such a person applies to the Minister and satisfies him that the division or apportionment operated unfairly against him, the Minister may give such directions to the Boards as appear to him appropriate for varying the division or apportionment.

(3) It shall also be the duty of the Boards to notify any person who has rights or liabilities which become enforceable as to part by or against one Board and as to part by or against another Board in consequence of a direction given by the Minister under sub-paragraph (2) of paragraph 1 of this Schedule.

(4) If in consequence of the provisions of the principal sections and this Schedule, or of anything done in pursuance of those provisions, the rights or liabilities of any person other than a Board or the Holding Company or any subsidiary of a Board or of the Holding Company which were enforceable against or by the Commission become enforceable as to part against or by one Board and as to part against or by another Board, and the value of any property or interest of that person is thereby diminished, the Boards shall pay to that person such compensation as may be just, and any dispute as to whether and if so how much compensation is so payable, or as to the person to whom it shall be paid, shall be referred to and determined by an arbitrator appointed by the Lord Chancellor or, where the proceedings are to be held in Scotland, by an arbiter appointed by the Lord President of the Court of Session.

(5) A conveyance or transfer whereby a Board purport to transfer to some person other than a Board or the Holding Company for consideration any land or any other property which belonged to the Commission, or which is an interest in property which belonged to the Commission, shall be as effective as if all the other Boards had been parties to the conveyance or transfer and had thereby conveyed or transferred all their interest in the property conveyed or transferred.

(6) If at any stage of any court proceedings which have been instituted before the vesting date or later, but not more than five years after the vesting date, and which are proceedings to which a Board and a person other than a Board are parties, it appears to the court that the issues in the proceedings depend on any demarcation of boundaries or division or apportionment under the principal sections or this Schedule which the Boards have not yet effected, or raise a question of construction on those provisions which would not arise if all the Boards constituted a single person, the court may if it thinks fit on the application of a party to the proceedings other than a Board hear and determine the proceedings on the footing that the Board or Boards who are parties to the proceedings represent and are answerable for all the Boards, and that the Boards constitute a single person, and any judgment or order given by the court shall bind all the Boards accordingly.

(7) It shall be the duty of each Board to keep any other of the Boards informed of any case where that other Board may be prejudiced by sub-paragraph (5) or sub-paragraph (6) of this paragraph.

and if a Board claim that they have been so prejudiced and that some other Board ought to indemnify or make a payment to them on that account, and that the other Board have unreasonably failed to meet that claim, they may refer the matter to the Minister for determination by him.

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Minister's power to alter distribution of property and functions

4.—(1) The Minister shall have power—

- (a) for the purpose of removing any difficulties or uncertainties in the application of sections thirty-one and thirty-two of this Act, or of reconciling the operation of those sections, or
- (b) for the purpose of facilitating the discharge of the Boards' functions,

by order to direct that notwithstanding those sections any property, rights or liabilities of the Commission, and any functions of the Commission under any local enactments, shall be transferred to such Board or Boards as may be specified in the order.

(2) An order under this paragraph may adapt or modify any local enactment so far as appears to the Minister expedient for the purpose of regulating the manner in which functions of the Commission thereunder are distributed and may contain such other transitional and supplemental provisions as appear to the Minister expedient, including provisions which might be included in an agreement between the Boards under paragraph 1 of this Schedule and provisions having retrospective effect.

(3) An order under this paragraph shall by virtue of this Act have effect to vest any property, rights or liabilities transferred by the order without further assurance.

(4) An order under this paragraph shall not be made more than five years after the vesting date unless it is one which relates, and is expressed to relate, only to a local enactment which authorises the carrying out of works.

(5) An order made under this paragraph may be varied or revoked by a subsequent order so made, and unless the order relates, and is expressed to relate, only to a local enactment which authorises the carrying out of works, shall be made by statutory instrument.

(6) In the application of sub-paragraph (3) of this paragraph to Scotland, the words "without further assurance" shall be omitted.

Special provisions relating to transferred heritage in Scotland

5.—(1) This paragraph applies to any heritable property or right in Scotland which is transferred to any of the Boards by or under the principal sections or this Schedule; and in this paragraph "transferred heritage" means any property or right to which this paragraph applies, and "vesting provision", in relation to any transferred heritage, includes such of the provisions of the principal

6TH SCH. sections or of this Schedule, and such of the directions given and orders made thereunder and the agreements made in pursuance thereof as effect the transfer.

(2) In relation to any transferred heritage the vesting provision shall have effect for the purposes of any enactment relating to the completion of title to land or heritable rights as if it were a general disposition or assignation of the transferred heritage granted by the Commission in favour of the Board in question on the vesting date or, if the vesting provision takes effect on a subsequent date, on that subsequent date.

(3) Where any transferred heritage is immediately before the vesting date, or becomes at any time thereafter, the subject of a lease granted by the Commission, or, as the case may be, the Board to whom the heritage is transferred, the lease shall not be challengeable (notwithstanding any rule of law to the contrary effect) on the ground that the Commission, or, as the case may be, the Board, were not at the time of the granting of the lease infeft in the transferred heritage.

(4) This paragraph shall apply to any heritable property or right in Scotland transferred to two or more of the Boards jointly or to the Holding Company as it applies to any such property or right transferred to a Board, and references therein to a Board shall be construed accordingly.

Transitory protection for Boards affected by works carried out by another Board

6.—(1) This paragraph applies in relation to works which a Board are authorised to carry out by a local enactment passed or made before the vesting date, including works begun but not completed by the Commission.

(2) It shall be the duty of a Board who at any time begin or continue with works to which this paragraph applies to afford to any other Board such rights and safeguards in relation to the works and, where necessary, in relation to the carrying out of those works, as may be required in order to facilitate the proper discharge of their functions by that other Board; and it shall be the duty of any other Board to afford to the Board beginning or continuing with the works such rights and safeguards as may be required for the proper carrying out and operation of the works.

(3) A Board who claim that another Board should in pursuance of their duty under the last foregoing sub-paragraph afford to the claimant Board any rights or safeguards shall give particulars of their claim by notice in writing to the other Board, and if within three months the Boards fail to agree on the claim, the claim shall be referred to an arbitrator appointed by the Boards or, in default of appointment by them, appointed by the Minister.

(4) If it appears to a Board who are proposing to begin or continue with works to which this paragraph applies that another Board may wish to consider whether to make a claim under this

paragraph regarding the works, they shall not without the consent of that other Board begin or continue with the works— 6TH SCH.

- (a) until one month after they have served a notice on that other Board of their proposal with sufficient particulars of the works, and any necessary plans and specifications, and
- (b) if within one month of the service of the notice the other Board make a claim under this paragraph regarding the works, until the two Boards have agreed on the claim or the claim has been referred to an arbitrator appointed under sub-paragraph (3) of this paragraph and been finally determined:

Provided that the Minister may authorise a Board without compliance with paragraph (b) of this sub-paragraph to continue works begun by the Commission.

(5) Any agreement concluded between any of the Boards under this paragraph, and any award of an arbitrator under this paragraph, may itself provide for the reference of any issue to arbitration.

(6) In this paragraph references to affording rights and safeguards to a Board include references to granting to the Board interests in and rights over land, and undertaking to give to the Board appropriate notices.

SEVENTH SCHEDULE

Sections 36,
49, 56, 75 and
80.

TRANSITIONAL PROVISIONS

PART I

TRANSPORT STOCK

1. Any certificate issued or other thing done before the vesting date under or for the purposes of any provision in the British Transport Stock Regulations, 1947, shall continue to have effect on and after the vesting date in relation to the Stock, and shall be deemed to be issued or done under or for the purposes of the corresponding enactment, regulation or rule which for the time being applies to the Stock.

2.—(1) Any direction relating to the payment of interest to any particular person which, by virtue of paragraph (1) of regulation 19, paragraph (3) of regulation 25 and paragraph (2) of regulation 29 of the said Regulations of 1947 applied to Stock immediately before the vesting date shall continue to apply on and after the vesting date to that Stock and shall be taken to have effect under the regulations made under section four of the National Debt Act, 1889.

(2) Any stock or share certificate or similar document which by virtue of regulation 26 of the said Regulations of 1947 was treated as applicable to any Stock shall continue on and after the vesting date to be treated as so applicable and as equivalent to a stock

7TH SCH. certificate under the Government Stock Regulations, 1943, or any regulations replacing those regulations, until such time as a stock certificate is issued under such regulations.

(3) A stockholder in respect of whose holding any such stock or share certificate or similar document is outstanding shall be entitled under the said Regulations of 1943, or any regulations replacing those regulations, to a stock certificate, but that document shall be surrendered to the Bank of England before the issue of the stock certificate :

Provided that where the said document has been lost or for any other reason cannot be surrendered, the Bank may issue the stock certificate on such terms as to evidence and indemnity as the Bank may require.

3.—(1) If the vesting date does not fall at the end of a year for the purposes of regulation 6 of the British Transport Stock Regulations, 1947 (which relates to redemption funds), those regulations shall have effect as respects the year in which the vesting date falls subject to the provisions of this paragraph.

(2) In paragraph (1) of regulation 6 and in paragraph (3) of regulation 7 of the said regulations the references to a year shall be taken as references to the part of the year ending at the vesting date.

(3) The sum to be carried to redemption fund accounts under the said regulation 6 in the said period, and any sum to be carried to any such account under paragraph (3) of the said regulation 7, shall be calculated on the principles set out in paragraph (3) of regulation 6 and paragraph (3) of regulation 7 with the necessary modifications to take account of the period being shorter than one year.

4. If the vesting date does not fall at the end of a year for the purposes of regulation 9 of the said regulations (which relates to adjustments consequent on the purchase of stock), adjustments to be made under paragraph (1) of that regulation in the year in which the vesting date falls shall be made before the vesting date.

PART II

PASSENGER FARES IN LONDON

5. In the application of subsection (4) of section forty-five and subsection (4) of section forty-six of this Act to the Commission, references to subsection (1) of section eighteen of this Act and to directions by the Minister under this Act shall be construed as references to subsection (4) of section three of the Transport Act, 1947, and as references to directions by the Minister under that Act.

6.—(1) If immediately before the date when section forty-four of this Act comes into force there is in operation an order under subsection (2) of section twenty-three of the Transport Act, 1953 (which relates to special temporary increases in fares), amending

any part of the charges schemes under Part V of the Transport Act, 1947, which is continued in force by this Act, the Commission shall, within one month of the date of the order or such longer period as the Minister may allow, apply to the Transport Tribunal under section forty-six of this Act for the alteration of all or any of their fares subject to the London fares orders (whether or not all or any of those specified in the application were the fares affected by the order).

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(2) Any application by the Commission in compliance with subsection (5) of the said section twenty-three (which requires the Commission to apply within a prescribed time for confirmation of an order under subsection (2) of that section) which is pending before the Transport Tribunal when section forty-four of this Act comes into force shall be deemed to have been made in compliance with the foregoing sub-paragraph, and the proceedings on that application shall be continued in such manner as the Tribunal may direct as if they were proceedings under section forty-six of this Act.

7. Any application by the Commission under section forty-six of this Act which is pending on the vesting date, and any application required to be made by the Commission under section forty-eight of this Act which has not been made on the vesting date, shall be proceeded with, or made, by the London Board and the Railways Board jointly :

Provided that if the application under section forty-six or the notice under section forty-eight of this Act was concerned with charges for the services of one of the Boards exclusively, the application shall be proceeded with or made by that Board alone.

PART III

CONSULTATIVE COMMITTEES

Areas and members of existing Consultative Committees

8. The areas for which under section six of the Transport Act, 1947, there were Transport Users Consultative Committees immediately before the date on which section fifty-six of this Act (hereafter in this Part of this Schedule referred to as the principal section) comes into force shall, until the Minister otherwise directs, be the areas for which Area Committees are to be established under the principal section, and the persons who were immediately before that date chairmen and members of a Transport Users Consultative Committee for any such area shall, unless—

(a) they were appointed under paragraph (c) of subsection (4) of the said section six (which relates to persons nominated by the Commission), or

(b) the Minister otherwise directs,

constitute the Area Committee for that area under the principal section until the expiration of their appointments.

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Pending representations and recommendations about railway passenger closures

9. If immediately before the date on which the principal section comes into force—

(a) there is before the Central Transport Consultative Committee established under the said section six a representation with respect to any proposal by the Commission to discontinue all railway passenger services from any station or on any line (hereinafter referred to as a closure), or a recommendation from a Transport Users Consultative Committee for any area in respect of such a representation lodged with that committee ; or

(b) there is before the Transport Users Consultative Committee for any area such a representation as aforesaid, the Central Committee established under this Act, or the Area Committee for the corresponding area, as the case may be, shall forthwith inform the Minister and the Commission or the Board concerned, and the closure shall not be proceeded with until the committee has reported to the Minister and the Minister has given his consent ; and the provisions of subsections (9) to (11) and (13) of the principal section shall apply as if the committee were an Area Committee with whom an objection to the closure in question had been lodged under that section and as if the consent of the Minister to the closure were required under that section.

Other pending matters

10.—(1) If immediately before the date on which the principal section comes into force there is before the Central Transport Consultative Committee any matter, other than a matter to which the last foregoing paragraph applies, being a matter within the competence of the Central Committee, the Central Committee may deal with that matter as if it had come before the Committee under the principal section.

(2) If immediately before the date on which the principal section comes into force there is before the Transport Users Consultative Committee for any area, any matter, other than a matter to which the last foregoing paragraph applies, being a matter within the competence of the Area Committee for the corresponding area, that Committee may deal with that matter as if it had come before the committee under the principal section.

Directions

11.—(1) If when the principal section comes into force there is before the Minister a recommendation of the Central Transport Consultative Committee or the Transport Users Consultative Committee for Scotland or for Wales and Monmouthshire—

(a) with respect to any proposed closure, or

(b) with respect to any other matter,

the Minister may in connection with the closure, or with respect to the other matter dealt with in the recommendation, as the case may be, from time to time give to the Commission or to any Board such directions as he thinks fit.

(2) The principal section shall not apply to a closure in connection with which directions can be given under the foregoing sub-paragraph.

7TH SCH.

(3) If when the principal section comes into force the Commission are providing, or assisting in the provision of, alternative services in connection with a closure which has taken place before that date, the Minister may from time to time give to the Commission or the Board concerned such directions with respect to those services, or any other services in substitution for, or in addition to, those services, as he thinks fit.

(4) The Minister may refer to an Area Committee any matter relating to alternative services provided by or with the assistance of the Commission or a Board—

(a) in pursuance of a direction under this paragraph, or

(b) otherwise than in pursuance of such a direction, if a direction with respect to those services could have been given under this paragraph, or

(c) in connection with a closure which has taken place before the principal section comes into force,

and the Committee shall consider and report to the Minister on that matter.

PART IV

PENSIONS

Employees' rights to continue to participate in pension schemes after transfer

12.—(1) A person who at any time after the passing of this Act and before the vesting date ceases to be in the employment of the Commission and thereupon becomes an employee of a subsidiary of the Commission or an employee of a Board or of the Holding Company shall not in consequence cease to be eligible to participate in any pension scheme in which he was a participant immediately before he ceased to be in the employment of the Commission.

(2) A person who at any time after the passing of this Act and before the vesting date ceases to be in the employment of a subsidiary of the Commission and thereupon becomes an employee of the Commission or of another subsidiary of the Commission, or an employee of a Board or of the Holding Company, shall not in consequence cease to be eligible to participate in any pension scheme in which he was a participant immediately before he ceased to be in the employment of the first-mentioned subsidiary of the Commission.

(3) A person who on the vesting date ceases to be in the employment of the Commission and thereupon becomes an employee of a Board or a subsidiary of a Board, or of the Holding Company or of a subsidiary of the Holding Company, shall not in consequence cease to be eligible to participate in any pension scheme in which he was a participant immediately before he ceased to be in the employment of the Commission.

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(4) A person who on the vesting date ceases to be in the employment of a subsidiary of the Commission and thereupon becomes an employee of a Board or a subsidiary of a Board, or of the Holding Company or of a subsidiary of the Holding Company, shall not in consequence cease to be eligible to participate in any pension scheme in which he was a participant immediately before he ceased to be in the employment of the subsidiary of the Commission.

(5) In the application of this paragraph to a pension scheme the benefits under which are or will be receivable as of right, persons who have obtained pension rights under the scheme without having contributed under the scheme shall be regarded as participants in the scheme; and references to being eligible to participate in a pension scheme shall be construed accordingly.

13.—(1) The Minister may make orders with respect to the provision of pensions by a subsidiary of the Commission, or by a Board or the Holding Company, in the period before the vesting date, and shall in exercise of his power under this paragraph make such provision as appears to him expedient for ensuring that persons who become employees of the Hotel Company before the vesting date, whether previously in the employment of the Commission or not, are afforded such pension rights as they would have had if the Hotel Company's undertaking had formed part of the Commission's undertaking until the vesting date.

(2) Subsections (3) to (9) of section seventy-four of this Act shall apply to orders under this paragraph with any necessary modifications.

(3) An order under the said section seventy-four may amend or revoke an order under this paragraph.

Provisions to be included in orders about pensions

14.—(1) The Minister shall in exercise of the powers conferred on him by section seventy-four of this Act provide for the transfer on the vesting date of the rights, liabilities and functions of the Commission relating to pensions or pension schemes, and any securities held by the Commission on trust for a pension scheme, to the Boards and the Holding Company or, in such cases as appear to the Minister appropriate, to a subsidiary of a Board or a subsidiary of the Holding Company, or to trustees or to the persons administering a pension scheme, and, except so far as is provided by an order under the said section seventy-four, Part II of this Act shall not apply to any such rights, liabilities, functions or property.

(2) The Minister shall, in exercise of the powers conferred on him by section seventy-four of this Act, make such provision as appears to him expedient—

(a) with respect to persons who in consequence of the reorganisation effected by this Act leave the employment of the Commission at any time after the passing of this Act—

(i) so as to enable those who become employees of any of the Boards or the Holding Company, or of a subsidiary of any of the Boards or of the Holding Company, and who suffer any diminution of their emoluments or

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change in the nature or terms of their employment in consequence of the re-organisation effected by this Act, to avoid any corresponding diminution in, or consequent loss of, any pension, and

(ii) so as to preserve the rights under any pension scheme of those who do not become employees of any such body ; and

(b) for modifying contributory pension schemes so as to afford to persons who become employees of any such body after the vesting date opportunities for participation similar to those afforded to persons who are in comparable service with the body and who entered the employment of the body on or before the vesting date.

(3) Paragraph 12 of this Schedule shall have effect subject to any order under section seventy-four of this Act taking effect at any time after the vesting date.

Existing pensions payable by Commission as of grace

15.—(1) This paragraph applies to annual and other periodical payments which the Commission have been making in the period before the vesting date, but which the Commission are not by law obliged to make.

(2) The Commission shall as soon as practicable after the passing of this Act prepare a scheme for the distribution among the Boards and the Holding Company of responsibility for continuing to make the annual or other periodical payments to which this paragraph applies in accordance with the arrangements under which the Commission were making those payments.

(3) A scheme under this paragraph—

(a) may require the Boards and the Holding Company to give to the persons by whom payments will be receivable in accordance with the scheme information as to the effect of the scheme, and

(b) may provide for any of those bodies contributing to the expenses incurred by any other of them, and

(c) may contain such other supplementary, incidental and consequential provisions as appear to the Commission expedient.

(4) The Commission shall submit any such scheme to the Minister and, if the Minister is satisfied that responsibility for the payments is distributed among the said bodies in an appropriate manner and that the scheme contains sufficient particulars to enable them to discharge their duties under the scheme, he shall approve the scheme.

(5) Notice that the scheme has been so approved shall be published by the Commission in the London and Edinburgh Gazettes.

(6) The payments which the Boards and the Holding Company are respectively to make in accordance with a scheme approved under this paragraph shall be recoverable by proceedings in any court of competent jurisdiction.

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(7) An order under section seventy-four of this Act may vary the provisions of a scheme under this paragraph.

16.—(1) If it appears to the Minister, upon representations made to him by, or on behalf of, any person, or class of persons, affected, that any pensions for persons employed before, but retiring after, the vesting date, or any other pensions payable after the vesting date (other than by way of continuing periodical payments which the Commission have been making in the period before the vesting date) would be receivable, although not as of right, under arrangements made by or with the Commission before the vesting date and that they ought to be receivable as of right, he shall by order direct the Commission by a scheme under the last foregoing paragraph to distribute among the Boards and the Holding Company responsibility for making payments under the arrangements specified in the order as if those payments were payments which the Commission were making in the period before the vesting date.

(2) An order under this paragraph shall be made by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Continuation of existing pension regulations, etc.

17.—(1) Sections ninety-eight to one hundred of the Transport Act, 1947, and section twenty-seven of the Transport Act, 1953 (which relate to pensions), shall cease to have effect on the vesting date, but that shall not affect—

- (a) regulations made under the said section ninety-eight or the said section twenty-seven, or
- (b) any liability in relation to customary obligations arising by virtue of subsection (2) of the said section ninety-nine and transferred under this Part of this Schedule, or
- (c) the participation in any pension scheme of a person who became such a participant before the vesting date by virtue of subsection (3) of the said section ninety-nine, or
- (d) the provisions of subsections (3) and (4) of the said section ninety-nine and the said section one hundred as they apply to service before the vesting date.

(2) If at any time after the vesting date the Minister is satisfied, or it is determined under the next following sub-paragraph, that regulations under the said section ninety-eight have failed to secure the result mentioned in subsection (3) of that section (that is to say that certain persons having pension rights are not placed in any worse position by reason of provisions of the regulations), the Minister shall as soon as possible exercise the power conferred on him by section seventy-four of this Act to make the necessary amendments.

(3) If—

- (a) any dispute arises between the Minister and any persons as to whether the said result has been secured by any regulations under the said section ninety-eight, or
- (b) any question arises as to the existence or extent of any customary obligation arising by virtue of subsection (2) of

the said section ninety-nine and transferred under this Part of this Schedule, 7TH SCH.

the dispute or question shall, in default of agreement, be referred for determination to a referee or board of referees appointed by the Minister of Labour, after consultation with the Lord Chancellor or, where the proceedings are to be held in Scotland, after consultation with the Secretary of State ; and the Boards shall give effect to any determination under paragraph (b) of this sub-paragraph.

(4) The Minister of Labour may, with the consent of the Treasury, pay out of money provided by Parliament—

(a) to any referee or to the members of any board of referees appointed under the last foregoing sub-paragraph such fees and allowances as he may with the consent of the Treasury determine, and

(b) to persons giving evidence before any such referees or board such allowances as he may with the consent of the Treasury determine.

(5) Nothing in the Arbitration Act, 1950, shall be construed as applying to any proceedings before a referee or board of referees appointed under this paragraph.

(6) It is hereby declared that where actual service in the employment of the Commission immediately precedes or follows service which is treated as such by virtue of subsection (4) of section ninety-nine of the Transport Act, 1947, for the purposes of a pension scheme, the two periods of service shall be treated for those purposes as continuous.

PART V

CONSEQUENCES OF DISSOLUTION OF COMMISSION

Accounts, audit and report

18.—(1) The Railways Board shall prepare a statement of the Commission's accounts for the period from the end of that dealt with in the last annual statement of accounts published by the Commission down to the vesting date.

(2) The statement shall be in such form and contain such particulars, compiled in such manner, as the Minister may direct, with the approval of the Treasury, and the Minister may, if the said period exceeds twelve months, with the approval of the Treasury direct that parts of that period shall be dealt with in separate statements.

(3) Any such statement shall be so framed as to provide, as far as may be, separate information as respects the principal activities of the Commission, and in combination with the periodical statistics and returns rendered by the Commission to show, as far as may be, the financial and operating results of each such activity, and the Minister and the Treasury shall exercise their powers under this paragraph accordingly.

(4) Section three of the Transport (Railway Finances) Act, 1957 (which requires the Commission to keep a special account relating to deficits on revenue account), shall apply with the necessary modifications to any such statement as it applies to the annual statement of accounts of the Commission.

7TH SCH.

(5) In this Act the statement to be prepared under this paragraph, or if separate statements are prepared for parts of the said period, the statement relating to the later part of the period, is referred to as "the final accounts of the Commission".

19.—(1) The Minister shall arrange that auditors are appointed under subsection (3) of section ninety-four of the Transport Act, 1947, for a final period, whether of twelve months or of more or less than twelve months, ending on the vesting date, and the auditors so appointed shall, if the audit is not completed on the vesting date, continue and complete the audit after the vesting date.

(2) Any liability to pay the remuneration of the auditors so appointed outstanding on the vesting date shall be transferred to the Railways Board.

20. The Railways Board shall send a copy of any statement of accounts prepared under paragraph 18 of this Schedule, together with a copy of the report made by the auditor or auditors on that statement, to the Minister.

21. The Railways Board shall be given by the other Boards and the Holding Company all such facilities and information as the Railways Board may require for the purpose of discharging their duty under this Part of this Schedule, and of enabling the auditors to complete any audit after the vesting date.

22.—(1) The Railways Board shall as soon as possible after the vesting date make to the Minister a report on the exercise and performance by the Commission of their functions during any period not dealt with in the reports made by the Commission under subsection (7) of section four of the Transport Act, 1947, and that report shall set out any direction given by the Minister to the Commission during that time, unless the Minister has notified to the Commission or the Railways Board his opinion that it is against the interests of national security to do so, and shall include a statement of the salary or fees and of the emoluments of each of the members of the Commission during the period.

(2) A copy of any statement prepared under paragraph 18 of this Schedule, and of the report made by the auditor or auditors on that statement, shall be included in the said report; and the Minister shall lay a copy of the report before each House of Parliament.

Pensions and other payments to members of the Commission

23.—(1) Part II of this Act shall not apply to any liability of the Commission to make any payment by way of pension or otherwise to a member of the Commission, but all such liabilities shall be transferred on the vesting date to the Railways Board.

(2) The Minister may after the vesting date with the approval of the Treasury make any such determination with respect to the payment by the Railways Board of any pension in respect of a member of the Commission as he might have made under paragraph (b) of subsection (7) of section one of the Transport Act, 1947, before the vesting date for the making of a payment by the Commission.

(3) On the vesting date there shall be transferred to the Railways Board any liability of the Commission under section seventy-nine of this Act as regards a member of the Commission.

24. The London Board, the Docks Board, the British Waterways Board and the Holding Company shall pay to the Railways Board such amounts as may be just having regard to the liabilities assumed by the Railways Board under the last foregoing paragraph, and any dispute as to what ought to be paid under this paragraph shall be referred to and determined by the Minister.

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EIGHTH SCHEDULE
TRANSPORT CHARGES AND FACILITIES
ENACTMENTS CEASING TO HAVE EFFECT

Sections 43
and 52.

Section	Subject Matter
	THE RAILWAYS CLAUSES CONSOLIDATION ACT, 1845 (8 & 9 Vict. c. 20)
76	Duty to afford facilities for the connection of private sidings.
	THE RAILWAYS CLAUSES CONSOLIDATION (SCOTLAND) ACT, 1845 (8 & 9 Vict. c. 33)
69	Duty to afford facilities for the connection of private sidings.
	THE RAILWAY AND CANAL TRAFFIC ACT, 1854 (17 & 18 Vict. c. 31)
2	Duty to afford reasonable facilities on railways and canals.
7	Liability for negligence in carriage by railway and canal.
	THE RAILWAYS ACT, 1921 (11 & 12 Geo. 5. c. 55)
16	Power to make orders as to working of railways.
39	Rights of canal undertakings and (as extended by section twenty-one of the Transport Act, 1953) canal carriers to apply to Transport Tribunal concerning competitive freight charges on railways.
	THE LONDON PASSENGER TRANSPORT ACT, 1933 (23 & 24 Geo. 5. c. 14)
30	Power to require Transport Commission to provide services and facilities for the transport of passengers by road and railway in London.
	THE ROAD AND RAIL TRAFFIC ACT, 1933 (23 & 24 Geo. 5. c. 53)
39	Rights of those engaged in coastwise shipping and (as extended by section twenty-one of the Transport Act, 1953) harbour authorities to apply to Transport Tribunal concerning competitive freight charges on railways.
	THE TRANSPORT ACT, 1953 (1 & 2 Eliz. 2. c. 13)
22	Protection of traders against unreasonable or unfair treatment as to freight charges on railways.

Sections 50
and 51.

NINTH SCHEDULE

PORT CHARGES

Ship, passenger and merchandise dues

1.—(1) The ship, passenger and merchandise dues chargeable by the Docks Board at the harbours at Hull (including Salt End), Fleetwood, Grimsby and Lowestoft shall not exceed the maximum charges in force immediately before this Schedule comes into force, that is to say those authorised by the British Transport Commission (Hull Harbour) Charges Scheme, 1960, the British Transport Commission (Fleetwood Harbour) Charges Scheme, 1960, the British Transport Commission (Grimsby Harbour) Charges Scheme, 1960, and the British Transport Commission (Lowestoft Harbour) Charges Scheme, 1960.

(2) The charges authorised by the said Charges Schemes in respect of such ship dues as are charges made in respect of marking and lighting the harbour in question, shall, for the purposes of this paragraph, be deemed to be the charges in operation at that harbour immediately before this Schedule comes into force.

2.—(1) This paragraph applies to ship, passenger and merchandise dues chargeable by the Docks Board and the Railways Board, at the following harbours—

Harbours vesting in Docks Board

Ayr
Barrow
Barry
Bo'ness
Burntisland
Cardiff
Garston
Goole
Grangemouth
Hartlepool
Immingham
King's Lynn
Lydney
Methil
Middlesbrough
Newport (Mon.)
Penarth
Plymouth (Millbay)
Port Talbot
Silloth
Southampton
Swansea
Troon

Harbours vesting in Railways Board

Dunston Staiths
Folkestone
Harwich
Heysham
Holyhead
Newhaven
Parkeston Quay
Stranraer (East Pier)

(2) The said dues shall not exceed the charges in operation at the harbour in question on the first day of September, nineteen hundred and fifty-seven, increased by twenty-five per cent.

(3) Where any merchandise shipped or unshipped into or from a ship entering, using or leaving the harbour is not described in any list or classification of merchandise by reference to which the charges in operation at that harbour on the first day of September,

nineteen hundred and fifty-seven, were calculated, the maximum dues chargeable in respect thereof shall be the maximum dues chargeable in the case of whatever merchandise described in the said list or classification most nearly resembles it in its nature, packing and quality.

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3.—(1) This paragraph applies to the ship, passenger and merchandise dues chargeable by the Docks Board and the British Waterways Board at the following harbours—

*Harbours vesting in
Docks Board*

Alloa
Burry Port
Charlestown
Lower Ouse Improvement
Tayport

*Harbours vesting in British
Waterways Board*

Ardishaig Dock
Ellesmere Port Docks
Gloucester Docks
Regent's Canal Dock
Sharpness Docks
Weston Point Docks

and by the Railways Board at Fishguard harbour (which is managed by them under an agreement confirmed by section fifty-nine of the Fishguard and Rosslare Railways and Harbours Act, 1899) and at any harbour which is vested in the Railways Board by this Act except a harbour to which paragraph 2 of this Schedule applies.

(2) The said dues shall not exceed the charges, if any, in operation at the harbour in question on the second day of November, nineteen hundred and sixty-one, increased by twenty-five per cent.

(3) The said dues shall, in any case in which no corresponding charges were in operation at the harbour in question on the second day of November, nineteen hundred and sixty-one, be such as may be reasonable.

4. In calculating any maximum charge for the purposes of paragraphs 2 and 3 of this Schedule, fractions of a halfpenny amounting to a farthing or more shall be reckoned as a halfpenny and fractions amounting to less than a farthing shall be disregarded.

Other port charges

5. The port charges, other than ship, passenger and merchandise dues, made by the Docks Board, the Railways Board and the British Waterways Board at any of the harbours to which paragraphs 1, 2 and 3 of this Schedule apply shall be such as may be reasonable.

General

6.—(1) A list showing the port charges for the time being payable to a Board at any harbour to which paragraph 1, 2 or 3 of this Schedule applies shall be open during reasonable hours for inspection by any person without charge at the harbour office of the Board, and copies of the list shall be kept for sale at that office at a price not exceeding one shilling for each copy.

(2) The provisions of sections twenty-seven to forty-six and section forty-eight of the Harbours, Docks and Piers Clauses Act, 1847, as incorporated with or applied by any enactment relating to any of the harbours for which the charges are regulated by this Schedule, and the provisions of any similar enactment, shall apply to the charges authorised under this Act as if they were rates payable under any such enactment.

Section 57.

TENTH SCHEDULE

CONSTITUTION, POWERS AND PROCEEDINGS OF THE TRANSPORT
TRIBUNAL*Constitution*

1. The Transport Tribunal shall be a court of record and have an official seal which shall be judicially noticed.

2.—(1) The tribunal shall consist of a president who shall be an experienced lawyer and four other members of whom two shall be persons of experience in transport business, one a person of experience in commercial affairs and one a person of experience in financial matters or economics.

(2) The president shall direct, either generally or for the purpose of a particular case, which of the members qualified as having experience in transport business is to serve in the London Fares and Miscellaneous Charges Division and the Road Haulage Appeals Division respectively.

3. The members of the tribunal shall be appointed by Her Majesty on the joint recommendation of the Lord Chancellor and the Minister.

Tenure of office

4.—(1) The president shall hold office during good behaviour, but shall vacate office at the end of the completed year of service in the course of which he attains the age of seventy-two years:

Provided that—

(a) where the Lord Chancellor and the Minister concur in considering it desirable in the public interest to retain the president in his office after he attains that age, they may, with the approval of the Treasury, authorise his continuance in office up to such greater age not exceeding seventy-five years as they think fit; and

(b) the power of Her Majesty to remove the president from his office on account of misbehaviour shall be exercisable on the joint recommendation of the two persons aforesaid; and Her Majesty, on a like recommendation, shall have power to remove him from his office on account of inability to perform the duties thereof.

(2) The other members of the tribunal shall hold office for such term not exceeding seven years from the date of their appointment as may be determined at the time of appointment and then retire, but a retiring member shall be eligible for re-appointment.

(3) A person shall not be appointed under the last foregoing sub-paragraph for a term extending beyond the end of the completed year of service in the course of which he attains the age of seventy years, except that, where the Lord Chancellor and the Minister concur in considering it to be desirable in the public interest that a person should be appointed for a term extending beyond that date, that person may, with the approval of the Treasury, be appointed for such term not extending beyond the date on which he attains the age of seventy-five years, as the Lord Chancellor and the Minister think fit.

Vacancies and temporary absence

10TH SCH.

5.—(1) The tribunal may act notwithstanding any vacancy, but if a vacancy occurs among the members of the tribunal or if any member is unable to attend because of illness or for any other cause, then pending the filling up of such vacancy or during such absence—

- (a) in the case of the president, the Lord Chancellor may appoint a person to act in his place ; and
- (b) in the case of any other member, the Minister may appoint a person of the like qualifications to act in his place.

(2) A person shall not be appointed to act under paragraph (a) of the last foregoing sub-paragraph after he attains the age of seventy-two years, or under paragraph (b) of that sub-paragraph after he attains the age of seventy years, except where the Lord Chancellor or the Minister, as the case may be, think it desirable in the public interest, but no person shall be appointed to act after he attains the age of seventy-five years.

(3) Any person appointed under this paragraph shall, for the purposes of any proceedings in respect of which he may be so appointed, be a member of the tribunal and shall, subject to the provisions of this Act and to the rules made thereunder, exercise all the powers and functions of a member of the tribunal.

(4) Any person appointed under this paragraph in place of a member of the Road Haulage Appeals Division shall be regarded as a member of that Division for the purposes of subsection (5) of section fifty-seven of this Act.

The special panel

6.—(1) For the purposes of the tribunal's jurisdiction under Part IV of the Road Traffic Act, 1960, there shall be a special panel consisting of such number of persons nominated by the Lord Chancellor, such number of persons nominated by the Secretary of State and such number of persons nominated by the Minister, as the Minister may direct.

(2) A member of the special panel shall hold office for such term, not exceeding three years from the date of his appointment, as may be determined at the time of the appointment, and then retire, but shall be eligible for re-appointment.

(3) A person shall not be appointed under this paragraph for a term extending beyond the end of the completed year of service in the course of which he attains the age of seventy years, except that where the Lord Chancellor, the Secretary of State or the Minister, as the case may be, consider it to be desirable in the public interest that a person should be appointed for a term extending beyond that date, that person may, with the approval of the Treasury, be appointed for such term not extending beyond the date on which he attains the age of seventy-five years, as the Lord Chancellor, the Secretary of State or the Minister, as the case may be, thinks fit.

(4) Sub-paragraph (3) of the last foregoing paragraph shall apply in relation to a person appointed under this paragraph as it applies in relation to a person appointed under that paragraph.

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Officers and servants

7. The tribunal may appoint a clerk and such other officers and servants (subject to the consent of the Treasury as to number) as they may consider necessary for assisting them in the proper execution of their duties.

Remuneration and expenses

8.—(1) There shall be paid to the members of the tribunal, to any person appointed under paragraph 5 of this Schedule, to any person appointed from the special panel and to the clerk, officers and servants of the tribunal such remuneration (including, in the case of the clerk, officers and servants, superannuation allowances or gratuities on retirement) as the Minister, with the approval of the Treasury, may determine, and for the reference in Part I of the Schedule to the Superannuation (Various Services) Act, 1938, to subsection (1) of section twenty-one of the Railways Act, 1921, there shall be substituted a reference to this paragraph.

(2) There may be granted to the president such a superannuation allowance as may under subsection (1) of section one hundred and twenty-eight of the Supreme Court of Judicature (Consolidation) Act, 1925, be granted to a person holding one of the offices specified in Part I of the Third Schedule to that Act.

(3) For the purpose of computing a superannuation allowance granted to the president account shall be taken of any service which is relevant service within the meaning of the Administration of Justice (Pensions) Act, 1950, in any office other than that of president, as well as of service as president, but not of any other service.

(4) Any such superannuation allowance shall be defrayed as part of the expenses of the tribunal except that if, in computing the superannuation allowance, account is taken under the last foregoing sub-paragraph of any service in an office other than that of president of the tribunal, the allowance shall be defrayed only as to a proportion as part of the expenses of the tribunal, and as to the balance out of money provided by Parliament; and the said proportion shall be determined by the Treasury, regard being had to the relevant length of service and rate of remuneration in the relevant offices.

(5) In subsection (4) of section twenty-one of the Administration of Justice (Pensions) Act, 1950 (which relates to benefits under that Act payable in respect of a president of the tribunal), the reference to the foregoing provisions of that section shall include a reference to this paragraph, and in paragraph 4 of the Third Schedule to that Act, for the reference to subsection (2) of section three of the Chairmen of Traffic Commissioners &c. (Tenure of Office) Act, 1937, there shall be substituted a reference to this paragraph.

9. Any remuneration payable under the last foregoing paragraph and any other expenses of the tribunal shall be paid by the Minister out of money provided by Parliament, but any such expenses except so far as—

(a) they are met out of the payment of fees, and

- (b) they may be apportioned by the tribunal to the exercise of the tribunal's jurisdiction under Part IV of the Road Traffic Act, 1960, 10TH SCH.

shall be repaid on demand to the Minister by the Commission or, after the vesting date, by the Railways Board and the London Board in such proportions as they may agree or as the Minister may in default of agreement determine.

Powers and proceedings

10.—(1) The tribunal shall, for the purposes of the exercise of any of their functions, have full jurisdiction to hear and determine all matters whether of law or of fact, and shall, as respects the attendance and examination of witnesses, the production and inspection of documents, the enforcement of their orders, the entry on and inspection of property and other matters necessary or proper for the due exercise of their jurisdiction, have, in England, all such powers, rights and privileges as are vested in the High Court, and, in Scotland, all such powers, rights and privileges as are vested in the Court of Session.

(2) Execution may be had in England of any order of the tribunal as if it were an order of the High Court, and any order of the tribunal may be recorded for execution in the books of council and session in Scotland, and shall be enforceable accordingly.

11.—(1) The tribunal may, from time to time, with the approval of the Lord Chancellor, the Secretary of State and the Minister, make general rules governing their procedure and practice and generally for carrying into effect their duties and powers, and such rules may, among other things, provide for—

- (a) the awarding of costs by the tribunal ;
- (b) the reference of any question to a member or officer of the tribunal, or any other person appointed by them, for report after holding a local inquiry ;
- (c) the review by the tribunal of decisions previously given by them ;
- (d) the number of members of the tribunal to constitute a quorum (including the quorum of either Division of the tribunal) ;
- (e) enabling the tribunal to dispose of any proceedings notwithstanding that in the course of those proceedings there has been a change in the persons sitting as members of the tribunal ;
- (f) the right of audience before the tribunal ;

and may, subject to the consent of the Treasury, prescribe the scale of fees for and in connection with the proceedings before the tribunal.

(2) Any rules under subsection (1) of section twenty-two of the Railways Act, 1921 (which is replaced by this paragraph), which are in operation immediately before this Schedule comes into force shall have effect as if they were made under this paragraph.

12.—(1) The Minister shall give to the tribunal such assistance as the tribunal may require.

10TH SCH. (2) The Minister shall place at the disposal of the tribunal any information in his possession which he considers will be of assistance to the tribunal in connection with any matter before them, and shall be entitled to appear and be heard in any proceedings before the tribunal.

13. Subject to this Act and to any rules made thereunder, the tribunal may hold sittings in any part of Great Britain in such place or places as may be convenient for the determination of the proceedings before them.

The central office of the tribunal shall be in London.

14. The decisions of the tribunal shall be by a majority of the members sitting.

Appeals

15.—(1) An appeal shall lie, in accordance with rules made by the tribunal, from the tribunal to the Court of Appeal or to the Court of Session:

Provided that no appeal shall lie from the tribunal upon a question of fact or locus standi.

(2) An appeal shall not be brought except in conformity with such rules of court as may from time to time be made in relation to such appeals by the authority having power to make rules of court for the Court of Appeal or the Court of Session as the case may be.

(3) On the hearing of an appeal the Court of Appeal and the Court of Session may draw all such inferences as are not inconsistent with the facts expressly found and are necessary for determining the question of law, and may make any order which the tribunal could have made, and also any such further or other order as may be just; and the costs of and incidental to an appeal shall be at the discretion of the Court but neither the tribunal nor any member of the tribunal shall be liable to any costs by reason or in respect of any appeal.

(4) The decision of the Court of Appeal or the Court of Session, as the case may be, shall be final:

Provided that where there has been a difference of opinion between those Courts, either of those Courts in which a matter affected by such a difference of opinion is pending may give leave to appeal to the House of Lords on such terms as to costs as that Court shall determine.

Annual report

16. The tribunal shall annually make a report to the Minister of all their proceedings, and the report shall be laid before Parliament.

ELEVENTH SCHEDULE

Section 93.

APPLICATION TO NORTHERN IRELAND

PART I

PROVISIONS EXTENDING TO NORTHERN IRELAND

Part I except sections twelve, fifteen and twenty-six.

Part II except section forty-one.

In Part III, section forty-three, section fifty-three and section fifty-four.

In Part IV, sections fifty-five and fifty-six ; section sixty-seven, so far as it relates to bylaws in relation to passengers and goods conveyed in or on ships operated by the Railways Board and as to their embarkation and disembarkation ; sections seventy-two to seventy-seven ; sections seventy-nine to eighty-one ; section eighty-five ; sections eighty-eight to ninety ; section ninety-three ; sections ninety-two and ninety-four to ninety-six, so far as they relate to provisions of this Act extending to Northern Ireland.

The First to the Eighth Schedules.

This Schedule.

The Twelfth Schedule so far as it relates to the Transport Act, 1947, sections sixteen, seventeen and twenty-five of the Transport Act, 1953, and the House of Commons Disqualification Act, 1957.

PART II

MODIFICATIONS

1. In subsection (5) of section two and in paragraph 15 of the Seventh Schedule, the references to the London and Edinburgh Gazettes shall include a reference to the Belfast Gazette.

2. In section seventeen, references to Bills in Parliament shall include references to Bills in the Parliament of Northern Ireland.

3. In subsection (8) of section thirty-four, for references to the Minister of Labour and the industrial court there shall be substituted, in relation to service in Northern Ireland, references to the Ministry of Labour and National Insurance for Northern Ireland and to an industrial court established in Northern Ireland under the Industrial Courts Act, 1919.

4. In subsection (2) of section seventy-two, the reference to the Minister of Labour shall, in relation to agreements affecting persons employed by the Board or the Holding Company in Northern Ireland, include a reference to the Ministry of Labour and National Insurance for Northern Ireland.

5. In subsection (5) of section seventy-four, the reference to the Truck Acts, 1831 to 1940, and the Shop Clubs Act, 1902, shall include a reference to any corresponding enactments for the time being in force in Northern Ireland.

6. A referee or board of referees for the purposes of section seventy-four, section eighty-one or paragraph 17 of the Seventh Schedule shall, where the proceedings are to be held in Northern

11TH SCH. Ireland, be appointed by the Ministry of Labour and National Insurance for Northern Ireland after consultation with the Lord Chief Justice of Northern Ireland.

7. In subsection (6) of section seventy-four, subsection (7) of section eighty-one, and paragraph 17 of the Seventh Schedule, for references to the Arbitration Act, 1950, there shall be substituted references to the Arbitration Act (Northern Ireland), 1937.

8. In subsection (9) of section seventy-four, for the reference to subsection (4) of section sixty-nine of the National Insurance Act, 1946, there shall be substituted a reference to subsection (4) of section sixty-six of the National Insurance Act (Northern Ireland), 1946.

9. In sub-paragraph (3) of paragraph 1 of the Sixth Schedule, for the reference to section sixty-four of the Law of Property Act, 1925, there shall be substituted a reference to section nine of the Conveyancing Act, 1881.

10. An arbitrator for the purposes of paragraph 3 of the Sixth Schedule shall, where the proceedings are to be held in Northern Ireland, be appointed by the Lord Chief Justice of Northern Ireland.

11. References to enactments or statutory provisions include references to enactments of the Parliament of Northern Ireland and provisions, whether of a general or a special nature, contained in, or in any document made or issued under, any Act of the Parliament of Northern Ireland, whether of a general or a special nature.

Section 95.

TWELFTH SCHEDULE

REPEALS

PART I

TRANSPORT CHARGES AND FACILITIES

Session and Chapter	Short Title	Extent of Repeal
3 & 4 Vict. c. 97.	The Railway Regulation Act, 1840.	Sections eighteen and nineteen.
8 & 9 Vict. c. 20.	The Railways Clauses Consolidation Act, 1845.	In section three the amendment made by the Sixth Schedule to the Railways Act, 1921. Section seventy-six.
8 & 9 Vict. c. 28.	The Canal Tolls Act, 1845.	Section two.
8 & 9 Vict. c. 33.	The Railways Clauses Consolidation (Scotland) Act, 1845.	In section three the amendment made by the Sixth Schedule to the Railways Act, 1921. Section sixty-nine.
8 & 9 Vict. c. 42.	The Canal Carriers Act, 1845.	Section four.

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Session and Chapter	Short Title	Extent of Repeal
17 & 18 Vict. c. 31. 34 & 35 Vict. c. 78. 51 & 52 Vict. c. 25.	The Railway and Canal Traffic Act, 1854. The Regulation of Railways Act, 1871. The Railway and Canal Traffic Act, 1888.	The whole Act. Section twelve. Sections nine to eleven. In section sixteen, in subsection (1), the words "or the Commissioners," "or the Commissioners, as the case may be," and the words "or Commissioners" in both places where they occur. Sections twenty-five to thirty-seven. In section forty-three, subsection (2). In section fifty-five, from the words "the term 'undue'" to the end of the section.
4 Edw. 7. c. 19. 11 & 12 Geo. 5. c. 55.	The Railways (Private Sidings) Act, 1904. The Railways Act, 1921.	The whole Act. Sections sixteen and seventeen. Section thirty-nine. Section seventy-eight. In the Sixth Schedule the amendments of section three of the Railways Clauses Consolidation Act, 1845, section three of the Railways Clauses Consolidation (Scotland) Act, 1845, and section seven of the Railway and Canal Traffic Act, 1854.
23 & 24 Geo. 5. c. 14.	The London Passenger Transport Act, 1933.	In section twenty-six, in subsection (2), the words from "so, however" to the end of the subsection. Sections twenty-eight to thirty. In section thirty-six, subsection (2). In section one hundred and seven, in subsection (1), the definition of "Rates Tribunal", and subsection (3). The Ninth Schedule. Section thirty-seven. Section thirty-nine. In section forty-five the definitions of "Agreed charge", "Merchandise", "Trader", "Tribunal" and "Undue preference".
23 & 24 Geo. 5. c. 53.	The Road and Rail Traffic Act, 1933.	The Ninth Schedule. Section thirty-seven. Section thirty-nine. In section forty-five the definitions of "Agreed charge", "Merchandise", "Trader", "Tribunal" and "Undue preference".
10 & 11 Geo. 6. c. 49.	The Transport Act, 1947.	In section thirty-three, subsection (2). Part V except for sections seventy-two and seventy-five.

12TH SCH.

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Eliz. 2. c. 13.	The Transport Act, 1953.	Sections twenty to twenty-three. In section thirty-five, in subsection (1), the words from "and in this Act" to "section seventy-six of that Act". The Fourth Schedule.
2 & 3 Eliz. 2. c. 64.	The Transport Charges &c. (Miscellaneous Provisions) Act, 1954.	In section two, subsection (6). Sections three to five. In section six, in subsection (1), in paragraph (b), the words from "so, however" to "limits of the harbour". In section thirteen, in subsection (1), the words from "and 1888 Act charges" to the end of the definition. In section fourteen, in subsection (4), the words from the beginning to "1888 Act charges".

TRANSPORT TRIBUNAL REPEALS

Session and Chapter	Short Title	Extent of Repeal
26 & 27 Vict. c. 92.	The Railways Clauses Act, 1863.	Part III.
36 & 37 Vict. c. 48.	The Regulation of Railways Act, 1873.	Sections six to ten. Sections thirty-five and thirty-six.
37 & 38 Vict. c. 40.	The Board of Trade Arbitrations &c. Act, 1874.	Sections six to eight.
51 & 52 Vict. c. 25.	The Railway and Canal Traffic Act, 1888.	Sections seven and eight. Section twelve. Sections fourteen and fifteen. In section fifty-two, the words "Commissioners or" in both places where they occur. In section fifty-four, in subsection (1), the words "to make or oppose any complaint to the Commissioners or the Board of Trade or" and the words "the Commissioners or", and in subsection (4), the words "or Commissioners".

12TH SCH.

Session and Chapter	Short Title	Extent of Repeal
52 & 53 Vict. c. 57.	The Regulation of Railways Act, 1889.	Section two.
62 & 63 Vict. c. 14.	The London Government Act, 1899.	Section five.
63 & 64 Vict. c. 27.	The Railway Employment (Prevention of Accidents) Act, 1900.	In the Second Schedule, Part II. Section six. In section eleven, the word "or" at the end of paragraph (a), and paragraph (b). In section fifteen, in subsection (4), the words "instead of to the Railway and Canal Commissioners".
11 & 12 Geo. 5. c. 55.	The Railways Act, 1921	Sections twenty to twenty-six.
1 Edw. 8 & 1 Geo. 6. c. 52.	The Chairmen of Traffic Commissioners &c. (Tenure of Office) Act, 1937.	The whole Act.
10 & 11 Geo. 6. c. 49.	The Transport Act, 1947	Section seventy-two. Section seventy-five. The Tenth and Eleventh Schedules.
14 & 15 Geo. 6. c. 11.	The Administration of Justice (Pensions) Act, 1950.	In section twenty-one, subsection (1).
1 & 2 Eliz. 2. c. 13.	The Transport Act, 1953	Section thirty-one.
6 & 7 Eliz. 2. c. 66.	The Tribunals and Inquiries Act, 1958.	In the First Schedule, in paragraph 22, in the second column, the words "established under subsection (1) of section twenty of the Railways Act, 1921".
8 & 9 Eliz. 2. c. 16.	The Road Traffic Act, 1960.	In the Seventeenth Schedule, under the heading "The Transport Act, 1947", the paragraph beginning "In paragraph 5 of the Tenth Schedule".

SPENT AND OBSOLETE ENACTMENTS

Session and Chapter	Short Title	Extent of Repeal
3 & 4 Vict. c. 97.	The Railway Regulation Act, 1840.	Sections thirteen and fourteen.
5 & 6 Vict. c. 55.	The Railway Regulation Act, 1842.	Sections eleven to thirteen. Section sixteen. Section twenty-two.
7 & 8 Vict. c. 85.	The Railway Regulation Act, 1844.	The whole Act.

12TH SCH.

Session and Chapter	Short Title	Extent of Repeal
8 & 9 Vict. c. 20.	The Railways Clauses Consolidation Act, 1845.	Section forty-five. Section eighty-nine. Section ninety-six. Sections ninety-eight to one hundred and two. Sections one hundred and six and one hundred and seven. Sections one hundred and twenty-five to one hundred and thirty-seven. Section one hundred and forty-one. Sections one hundred and fifty-seven to one hundred and fifty-nine.
8 & 9 Vict. c. 28.	The Canal Tolls Act, 1845	The whole Act except section two.
8 & 9 Vict. c. 33.	The Railways Clauses Consolidation (Scotland) Act, 1845.	Section thirty-eight. Section eighty-two. Section eighty-nine. Sections ninety-one to ninety-five. Sections ninety-nine and one hundred. Sections one hundred and eighteen to one hundred and twenty-nine. Section one hundred and thirty-three.
& 9 Vict. c. 42.	The Canal Carriers Act, 1845.	Section twelve.
8 & 9 Vict. c. 96.	The Railway (Sales and Leases) Act, 1845.	The whole Act.
13 & 14 Vict. c. 83.	The Abandonment of Railways Act, 1850.	The whole Act.
14 & 15 Vict. c. 64.	The Railway Regulation Act, 1851.	The whole Act, except as it applies to any local Act.
22 & 23 Vict. c. 59.	The Railway Companies Arbitration Act, 1859.	The whole Act.
26 & 27 Vict. c. 92.	The Railways Clauses Act, 1863.	Sections eight to eleven. Section thirty-five.
29 & 30 Vict. c. 108.	The Railway Companies Securities Act, 1866.	The whole Act.
30 & 31 Vict. c. 126.	The Railway Companies (Scotland) Act, 1867.	Sections six to thirty-seven.
30 & 31 Vict. c. 127.	The Railway Companies Act, 1867.	Sections six to thirty-six.
31 & 32 Vict. c. 119.	The Regulation of Railways Act, 1868.	Part I. Section twenty-nine. Part VI. Section thirty-four. Sections forty-one to forty-four. The whole Act.
32 & 33 Vict. c. 114.	The Abandonment of Railways Act, 1869.	
51 & 52 Vict. c. 25.	The Railway and Canal Traffic Act, 1888.	Section forty-four. Section forty-eight.

12TH SCH.

Session and Chapter	Short Title	Extent of Repeal
59 & 60 Vict. c. 48.	The Light Railways Act, 1896.	In the Second Schedule, in the third column opposite to the words "The Regulation of Railways Act, 1868," the words "and twenty-nine".
62 & 63 Vict. c. 14.	The London Government Act, 1899.	In section twenty-eight, in subsection (3), the words from "and if" to the end of the subsection.
1 & 2 Geo. 5. c. 34.	The Railway Companies (Accounts and Returns) Act, 1911.	In section two, subsection (3).
11 & 12 Geo. 5. c. 55.	The Railways Act, 1921...	Section eighteen. Section fifty-six. Section seventy-six. The Sixth Schedule.
11 & 12 Geo. 6. c. 38.	The Companies Act, 1948	In section three hundred and ninety-eight, in paragraph (a) the words from "except" to the end of the paragraph. In section three hundred and ninety-nine, subsection (7).
1 & 2 Eliz. 2. c. 36.	The Post Office Act, 1953	In section forty, the words from "either" to "or" at the end of paragraph (a).

OTHER REPEALS

Session and Chapter	Short Title	Extent of Repeal
59 & 60 Vict. c. 48.	The Light Railways Act, 1896.	In section fifteen, subsection (5).
10 & 11 Geo. 6. c. 49.	The Transport Act, 1947	In section one, in subsection (2), the words from "and of whom" to the end of the subsection. Section six. Sections thirty-five and thirty-six. Section seventy-one.
1 & 2 Eliz. 2. c. 13.	The Transport Act, 1953	In section eighteen, subsection (8). Sections twenty-nine and thirty.

12TH SCH.

PART II
PUBLIC ACTS

Session and Chapter	Short Title	Extent of Repeal
3 & 4 Vict. c. 97.	The Railway Regulation Act, 1840.	Sections seven to nine.
8 & 9 Vict. c. 20.	The Railways Clauses Consolidation Act, 1845.	Sections one hundred and eight to one hundred and eleven, but not so as to affect any byelaw made under those sections. Section one hundred and forty-three. In section one hundred and forty-five, the words "or by any byelaw made in pursuance thereof".
8 & 9 Vict. c. 33.	The Railways Clauses Consolidation (Scotland) Act, 1845.	Sections one hundred and one to one hundred and four, but not so as to affect any byelaw made under those sections. Section one hundred and thirty-five. In section one hundred and thirty-seven, the words "or by any byelaw made in pursuance thereof".
26 & 27 Vict. c. 92.	The Railways Clauses Act, 1863.	Section thirty-two.
52 & 53 Vict. c. 57.	The Regulation of Railways Act, 1889.	Section seven.
11 & 12 Geo. 5. c. 55.	The Railways Act, 1921...	Part IV. Sections eighty to eighty-two. In section eighty-three, paragraph (b). Section eighty-five. The First Schedule. The Seventh Schedule.
23 & 24 Geo. 5. c. 14.	The London Passenger Transport Act, 1933.	Part I. Part II, except sections five, sixteen, seventeen, nineteen, twenty-three, twenty-four, twenty-five and twenty-six. Part VI. In section eighty, subsection (15). Sections ninety-seven, one hundred and one and one hundred and three. The First Schedule.
10 & 11 Geo. 6. c. 49.	The Transport Act, 1947	Section one, but not so as to affect any pension or other payment to be made as determined before the vesting date by the Minister under subsection (7).

12TH SCH.

Session and Chapter	Short Title	Extent of Repeal
10 & 11 Geo. 6. c. 49— <i>cont.</i>	The Transport Act, 1947 — <i>cont.</i>	From section two onwards to the end of Part I. Sections fifteen to nineteen. Section twenty-five except so far as relates to any payments to be made to a local authority after the vesting date. Section thirty-three. Section thirty-eight but not so as to affect any order made under that section before the vesting date. Section seventy. Part VI. Sections ninety-five and ninety-six. Section ninety-seven, but not so as to affect any arrangements made under that section before the vesting date. Section ninety-eight, but not so as to affect any regulations made under that section before the vesting date. Section ninety-nine, but not so as to affect any liability arising under subsection (2) of that section before the vesting date or any person who became a participant in a pension scheme before the vesting date by virtue of subsection (3) of that section, or the application of subsections (3) and (4) to service before the vesting date. Section one hundred, but not so as to affect the application of that section to service before the vesting date. Sections one hundred and one and one hundred and two, but not so as to affect regulations made under those sections before the vesting date. Sections one hundred and three and one hundred and four, except as they apply in relation to referees appointed under regulations. Part VIII. From the beginning of Part IX to the end of section one hundred and sixteen.

12TH SCH.

Session and Chapter	Short Title	Extent of Repeal
10 & 11 Geo. 6. c. 49— <i>cont.</i>	The Transport Act, 1947 — <i>cont.</i>	Section one hundred and eighteen but not so as to affect any regulations made under that section before the vesting date. Section one hundred and nineteen, but not so as to affect regulations under paragraph (c) of that section. Sections one hundred and twenty to one hundred and twenty-four. In section one hundred and twenty-five, in subsection (1), all the definitions except that of the Minister, and subsections (2) to (6). Section one hundred and twenty-six, except subsection (5). Section one hundred and twenty-seven. In section one hundred and twenty-eight, subsection (2). The First Schedule. The Second Schedule, but not so as to affect any pension or other payment to be made as determined before the vesting date by the Commission with the approval of the Minister and the Treasury under paragraph 2 (1). All the other Schedules except the Third.
11 & 12 Geo. 6. c. 26.	The Local Government Act, 1948.	In section eighty-five, in subsection (1), the words "and the British Transport Commission". Section ninety-three as from the beginning of the rating year following that in which the vesting date falls. In section ninety-four, subsection (1) and in subsection (4) the words "referred to in subsection (1) of this section" as from the beginning of the rating year following that in which the vesting date falls. Section ninety-five as from the beginning of the rating year following that in which the vesting date falls.

12TH SCH.

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Eliz. 2. c. 13.	The Transport Act, 1953	The whole Act except section twenty-four but not so as to affect regulations made under section twenty-seven or section twenty-eight before the vesting date or to apply the Arbitration Act, 1950, to proceedings under those regulations.
2 & 3 Eliz. 2. c. 13.	The Local Government (Financial Provisions) (Scotland) Act, 1954.	In section ten, in subsection (2), the words "the British Transport Commission" as from the beginning of the rating year following that in which the vesting date falls.
2 & 3 Eliz. 2. c. 64.	The Transport Charges &c. (Miscellaneous Provisions) Act, 1954.	In section thirteen, in subsection (1), the definition of the Commission, and in subsection (3) the words "and the Transport Act, 1953".
2 & 3 Eliz. 2. c. 70.	The Mines and Quarries Act, 1954.	In section one hundred and eighty-two, in subsection (1), in the definition of "railway company" the words "and includes the British Transport Commission".
3 & 4 Eliz. 2. c. 10.	The Transport (Borrowing Powers) Act, 1955.	The whole Act.
4 & 5 Eliz. 2. c. 54.	The Finance Act, 1956.	In section forty-two, in paragraph (b) of subsection (2), the words "the British Transport Commission".
4 & 5 Eliz. 2. c. 56.	The Transport (Disposal of Road Haulage Property) Act, 1956.	The whole Act.
5 & 6 Eliz. 2. c. 9.	The Transport (Railway Finances) Act, 1957.	The whole Act.
5 & 6 Eliz. 2. c. 17.	The Rating and Valuation Act, 1957.	Section two as from the beginning of the rating year following that in which the vesting date falls.
5 & 6 Eliz. 2. c. 20.	The House of Commons Disqualification Act, 1957.	In Part II of the First Schedule and in the Part substituted for the said Part II by the Third Schedule, the words "An Area Railway Authority constituted under the British Transport Commission (Organization) Scheme Order, 1954," the words "the British Transport Commission" and the words "An Executive constituted under section five of the Transport Act, 1947".
7 & 8 Eliz. 2. c. 16.	The Transport (Borrowing Powers) Act, 1959.	The whole Act

12TH SCH.

Session and Chapter	Short Title	Extent of Repeal
8 & 9 Eliz. 2. c. 16.	The Road Traffic Act, 1960.	In the Seventeenth Schedule, the amendments of the Transport Act, 1947, and of the Transport Act, 1953.
9 & 10 Eliz. 2. c. 34.	The Factories Act, 1961	In section one hundred and seventy-six, in subsection (1), in the definition of "railway company" the words "the British Transport Commission and".
10 & 11 Eliz. 2. c. 9.	The Local Government (Financial Provisions etc.) (Scotland) Act, 1962.	In the Second Schedule, paragraph 1, as from the beginning of the rating year following that in which the vesting date falls.

LOCAL ACTS RELATING TO DEVELOPMENT OF LAND

Session and Chapter	Short Title	Extent of Repeal
2 Edw. 7. c. cxlv.	The Central London Railway Act, 1902.	Section seven.
3 Edw. 7. c. cxxvi.	The Metropolitan District Railway Act, 1903.	Section ninety-five.
3 Edw. 7. c. clxxxvi.	The Great Northern, Piccadilly and Brompton Railway (Various Powers) Act, 1903.	Section thirteen.
6 Edw. 7. c. lxxi.	The Metropolitan Railway Act, 1906.	Section thirty-eight.
10 Edw. 7 & 1 Geo. 5. c. xlii.	The Metropolitan Railway Act, 1910.	Section seventeen.
13 & 14 Geo. 5. c. xxx.	The Great Western Railway (Additional Powers) Act, 1923.	Sections forty-six and forty-seven. In sections fifty-one and fifty-two the words "respectively 'powers as to building on or over lands etc. of Company,' and".
14 & 15 Geo. 5. c. liii.	The London and North Eastern Railway Act, 1924.	Section seventy-one.
14 & 15 Geo. 5. c. liv.	The London, Midland and Scottish Railway Act, 1924.	Sections fifty-four and fifty-five.
14 & 15 Geo. 5. c. lxvi.	The Southern Railway Act, 1924.	Sections ninety-one and ninety-two.
15 & 16 Geo. 5. c. lxx.	The London and North Eastern Railway Order Confirmation Act, 1925.	In the Schedule, section eight.
21 Geo. 5. c. xx	The London, Midland and Scottish Railway Order Confirmation Act, 1931.	In the Schedule, section twelve.

12TH SCH.

Session and Chapter	Short Title	Extent of Repeal
23 & 24 Geo. 5. c. xii.	The London and North Eastern Railway Act, 1933.	Sections sixteen and nineteen.
23 & 24 Geo. 5. c. xx.	The Great Western Railway Act, 1933.	Sections thirty-eight and thirty-nine.
23 & 24 Geo. 5. c. xxxiii.	The London, Midland and Scottish Railway Act, 1933.	Sections thirty, thirty-one and thirty-two.
23 & 24 Geo. 5. c. xlvii.	The Southern Railway Act, 1933.	Sections thirty-four, thirty-five and thirty-six.
23 & 24 Geo. 5. c. lv.	The London, Midland and Scottish Railway Order Confirmation Act, 1933.	In the Schedule, section seven.
24 & 25 Geo. 5. c. xxxv.	The Southern Railway Act, 1934.	Section forty-six.
25 & 26 Geo. 5. c. xlvii.	The London and North Eastern Railway Act, 1935.	Sections eight and nine.
26 Geo. 5 & 1 Edw. 8. c. xlv.	The London and North Eastern Railway Order Confirmation Act, 1936.	In the Schedule, sections fourteen and fifteen.
26 Geo. 5 & 1 Edw. 8 c. ci.	The Great Western Railway (Additional Powers) Act, 1936.	Section fifty-three.

LOCAL ACTS RELATING TO RAILWAY HOTELS

Session and Chapter	Short Title	Extent of Repeal
14 & 15 Vict. c. xlviii.	The Great Western Railway Act, 1851.	Section twenty-four.
24 & 25 Vict. c. cvi.	The Midland Railway (Additional Powers) Act, 1861.	Sections twenty-one to twenty-five.
35 & 36 Vict. c. cxvi.	The Lancashire and Yorkshire Railway (New Works and Additional Powers) Act, 1872.	Section thirty-five.
37 Vict. c. xiii	The Lynn and Hunstanton and West Norfolk Junction Railway Act, 1874.	Section twenty-nine.
40 & 41 Vict. c. lii.	The Midland Railway (New Works &c.) Act, 1877.	Section thirty-nine.
40 & 41 Vict. c. xci.	The London and North-western Railway (Joint and Various Powers) Act, 1877.	Section twenty.

12TH SCH.

Session and Chapter	Short Title	Extent of Repeal
41 & 42 Vict. c. cli.	The Great Northern Railway (Further Powers) Act, 1878.	Section twenty-three.
41 & 42 Vict. c. ccxviii.	The Rosebush and Fishguard Railway Act, 1878.	Section forty-eight.
43 & 44 Vict. c. cxli.	The Great Western Railway Act, 1880.	Section forty-one.
44 & 45 Vict. c. cxix.	The Caledonian Railway (Additional Powers) Act, 1881.	Section ten.
44 & 45 Vict. c. cxxxv.	The Lancashire and Yorkshire Railway Act, 1881.	Sections thirty and thirty-two.
45 Vict. c. 1	The North-eastern Railway Company's (Additional Powers) Act, 1882.	Section twenty-five.
45 & 46 Vict. c. clxvi.	The Great Eastern Railway Act, 1882.	Section sixty-six.
46 & 47 Vict. c. liv.	The Cambrian Railways Act, 1883.	Section thirty.
54 & 55 Vict. c. cxiv.	The Manchester, Sheffield and Lincolnshire Railway (Various Powers) Act, 1891.	Sections forty-five and forty-six.
56 Vict. c. lii	The Great Eastern Railway (General Powers) Act, 1893.	Section fifty-seven.
56 & 57 Vict. c. xci.	The Highland Railway Act, 1893.	Section fourteen.
56 & 57 Vict. c. xcvi.	The Great Northern Railway Act, 1893.	Section thirty-two.
59 & 60 Vict. c. lxx.	The Cambrian Railways Act, 1896.	Section thirteen.
60 & 61 Vict. c. cxxxv.	The Great North of Scotland Railway Act, 1897.	Section four.
4 Edw. 7. c. xxvi.	The Cambrian Railways (Mid Wales Railway Amalgamation &c.) Act, 1904.	Section twenty-nine.
4 Edward 7. c. xlv.	The North Staffordshire Railway Act, 1904.	Section twenty-nine.
4 Edward 7. c. cxlix.	The Lancashire and Yorkshire Railway (Various Powers) Act, 1904.	Section forty-eight.
10 Edward 7. c. viii.	The Stratford-upon-Avon and Midland Junction Railway (Various Powers) Act, 1910.	Section forty-three.

12TH SCH.

Session and Chapter	Short Title	Extent of Repeal
3 & 4 Geo. 5. c. xxix.	The Caledonian Railway Order Confirmation Act, 1913.	In the Schedule, section twenty-nine.
10 & 11 Geo. 5. c. xv.	The Great Eastern Railway Act, 1920.	In section three, subsection (2).
13 & 14 Geo. 5. c. xxii.	The Caledonian Railway Act, 1923.	Section twelve.
19 & 20 Geo. 5. c. xliii.	The Great Western Railway Act, 1929.	Section fifty-one.
23 & 24 Geo. 5. c. xxxiii.	The London, Midland and Scottish Railway Act, 1933.	Section twenty-nine.
10 & 11 Geo. 6. c. vii.	The Southern Railway Act, 1947.	Section seven.
10 & 11 Geo. 6. c. xlii.	The London and North Eastern Railway Act, 1947.	Section seventy-six.

LOCAL ACTS RELATING TO RAILWAY SAVINGS BANKS

Session and Chapter	Short Title	Extent of Repeal
36 & 37 Vict. c. clxxxi.	The Metropolitan Railway Act, 1873.	In section twenty-three the words from "from any officers" to "families, respectively" and the words from "which money" to "borrowed by them".
48 & 49 Vict. c. cxlvii.	The Great Western Railway Act, 1885.	In section forty-five, in paragraph (1) the words from "from any officers" to "apprentices" where it last occurs, in paragraph (3) sub-paragraph (b) and in sub-paragraph (h) the words "and of the appointment of any new trustees", and in paragraph (8) the words "or a majority of the trustees".
58 & 59 Vict. c. cxxii.	The Taff Vale Railway Act, 1895.	In section eighteen, in paragraph (1) the words from "from any of their officers" to "apprentices" where it last occurs, paragraph (2), in paragraph (4) sub-paragraph (B) and in sub-paragraph (H) the words "and of the appointment of any new trustees", and in paragraph (10) the words "or a majority of the trustees".

12TH SCH.

Session and Chapter	Short Title	Extent of Repeal
14 & 15 Geo. 5. c. liv.	The London Midland and Scottish Railway Act, 1924.	In section sixty-one, the words from "and shall extend and apply" to "persons aforesaid", in paragraph (1) the words from "from any of the persons" to the end of the paragraph, paragraph (2), and in paragraph (4) subparagraph (b).
14 & 15 Geo. 5. c. lxvi.	The Southern Railway Act, 1924.	In section ninety-nine, in subsection (1), the words from "from any person" to the end of the subsection, subsections (2) and (3), and in subsection (5) paragraph (b).
7 & 8 Geo. 6. c. x.	The London and North Eastern Railway Act, 1944.	In section three, in subsection (1), the words from "from any person" to the end of the subsection, in subsection (2) the words from "shall be a charge" to "interest thereon; and" and paragraph (b), subsection (3), in subsection (5) paragraph (b) and subsection (10).

OTHER REPEALS IN LOCAL ACTS

Session and Chapter	Short Title	Extent of Repeal
14 & 15 Geo. 5. c. li.	The London, Midland and Scottish Railway (Superannuation Fund) Act, 1924.	Section eight.
17 & 18 Geo. 5. c. xi.	The Southern Railway (Superannuation Fund) Act, 1927.	Section eleven.
2 & 3 Geo. 6. c. xxii.	The London and North Eastern Railway (Superannuation Fund) Act, 1939.	Section fifteen.
4 & 5 Geo. 6. c. ii.	The Great Western Railway (Superannuation Fund) Act, 1941.	Section ten.
11 & 12 Geo. 6. c. xxi.	The British Transport Commission Order Confirmation Act, 1948.	In the Schedule, section twenty-eight.
12 & 13 Geo. 6. c. xxix.	The British Transport Commission Act, 1949.	Section fifty-eight.
14 Geo. 6. c. liii.	The British Transport Commission Act, 1950.	Section forty. In section forty-one, subsection (1).

Session and Chapter	Short Title	Extent of Repeal	12TH SCH.
4 & 5 Eliz. 2. c. xxx.	The British Transport Commission Act, 1955.	Section sixty-eight.	
4 & 5 Eliz. 2. c. lxxiv.	The British Transport Commission Act, 1956.	As from the passing of this Act— sections sixteen and seventeen; in section twenty the words “and during the interim period the Kennet waterways” and the words “or of the Kennet waterways”; in section twenty-one in subsection (1) the words “and during the interim period the Kennet waterways” and subsection (2).	
5 & 6 Eliz. 2. c. xxxiii.	The British Transport Commission Act, 1957.	Section twenty-two.	
7 & 8 Eliz. 2. c. xlv.	The British Transport Commission Act, 1959.	Section twenty-one. Section seventy-eight.	

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Railways Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 20.
Railways Clauses Consolidation (Scotland) Act, 1845...	8 & 9 Vict. c. 33.
Harbours, Docks and Piers Clauses Act, 1847 ...	10 & 11 Vict. c. 27.
Railway and Canal Traffic Act, 1854 ...	17 & 18 Vict. c. 31.
River Lee Water Act, 1855 ...	18 & 19 Vict. c. cxcvi.
Tweed Fisheries Act, 1857 ...	20 & 21 Vict. c. cxlviii.
Salmon Fisheries (Scotland) Act, 1862 ...	25 & 26 Vict. c. 97.
Railways Clauses Act, 1863 ...	26 & 27 Vict. c. 92.
Regulation of Railways Act, 1873 ...	36 & 37 Vict. c. 48.
Metropolitan Railway Act, 1873 ...	36 & 37 Vict. c. clxxxi.
Conveyancing Act, 1881 ...	44 & 45 Vict. c. 41.
Ouse (Lower) Improvement Act, 1884 ...	47 & 48 Vict. c. clxi.
Great Western Railway Act, 1885 ...	48 & 49 Vict. c. cxlvii.
Railway and Canal Traffic Act, 1888 ...	51 & 52 Vict. c. 25.
National Debt Act, 1889 ...	52 & 53 Vict. c. 6.
Regulation of Railways Act, 1889 ...	52 & 53 Vict. c. 57.
Interpretation Act, 1889 ...	52 & 53 Vict. c. 63.
Stamp Act, 1891 ...	54 & 55 Vict. c. 39.
Merchant Shipping Act, 1894 ...	57 & 58 Vict. c. 60.
Finance Act, 1895 ...	58 & 59 Vict. c. 16.
Taff Vale Railway Act, 1895 ...	58 & 59 Vict. c. cxxii.
Light Railways Act, 1896 ...	59 & 60 Vict. c. 48.
Fishguard and Rosslare Railways and Harbours Act, 1899	62 & 63 Vict. c. clxxxvi.
Railway Employment (Prevention of Accidents) Act, 1900	63 & 64 Vict. c. 27.
Lee Conservancy Act, 1900 ...	63 & 64 Vict. c. cxvii.
Shop Clubs Act, 1902 ...	2 Edw. 7. c. 21.
Railway Companies (Accounts and Returns) Act, 1911	1 & 2 Geo. 5. c. 34.
Ministry of Transport Act, 1919 ...	9 & 10 Geo. 5. c. 50.
Industrial Courts Act, 1919 ...	9 & 10 Geo. 5. c. 69.

Short Title	Session and Chapter
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Railways Act, 1921	11 & 12 Geo. 5. c. 55.
London, Midland and Scottish Railway Act, 1924 ...	14 & 15 Geo. 5. c. liv.
Southern Railway Act, 1924	14 & 15 Geo. 5. c. lxvi.
Law of Property Act, 1925	15 & 16 Geo. 5. c. 20.
Supreme Court of Judicature (Consolidation) Act, 1925	15 & 16 Geo. 5. c. 49.
London, Midland and Scottish Railway (Road Transport) Act, 1928	18 & 19 Geo. 5. c. ci.
Great Western Railway (Road Transport) Act, 1928 ...	18 & 19 Geo. 5. c. cii.
London and North Eastern Railway (Road Transport) Act, 1928	18 & 19 Geo. 5. c. ciii.
Southern Railway (Road Transport) Act, 1928	18 & 19 Geo. 5. c. civ.
Great Western Railway (Air Transport) Act, 1929 ...	19 & 20 Geo. 5. c. liv.
London and North Eastern Railway (Air Transport) Act, 1929	19 & 20 Geo. 5. c. lv.
London, Midland and Scottish (Air Transport) Act, 1929	19 & 20 Geo. 5. c. lvi.
Southern Railway (Air Transport) Act, 1929	19 & 20 Geo. 5. c. lvii.
Finance Act, 1930	20 & 21 Geo. 5. c. 28.
London Passenger Transport Act, 1933	23 & 24 Geo. 5. c. 14.
Road and Rail Traffic Act, 1933	23 & 24 Geo. 5. c. 53.
London Passenger Transport Act, 1935	25 & 26 Geo. 5. c. cx.
Public Health Act, 1936	26 Geo. 5 & 1 Edw. 8. c. 49.
Public Health (London) Act, 1936	26 Geo. 5 & 1 Edw. 8. c. 50.
Private Legislation Procedure (Scotland) Act, 1936 ...	26 Geo. 5 & 1 Edw. 8. c. 52.
Chairmen of Traffic Commissioners (Tenure of Office, etc.) Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 52.
Superannuation (Various Services) Act, 1938	1 & 2 Geo. 6. c. 13.
Road Haulage Wages Act, 1938	1 & 2 Geo. 6. c. 44.
National Loans Act, 1939	2 & 3 Geo. 6. c. 117.
London and North Eastern Railway Act, 1944	7 & 8 Geo. 6. c. x.
Water Act, 1945	8 & 9 Geo. 6. c. 42.
Water (Scotland) Act, 1946	9 & 10 Geo. 6. c. 42.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6. c. 49.
Finance Act, 1946	9 & 10 Geo. 6. c. 64.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
Transport Act, 1947	10 & 11 Geo. 6. c. 26.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
British Transport Commission Act, 1949	12, 13 & 14 Geo. 6. c. xxix.
Coast Protection Act, 1949	12, 13 & 14 Geo. 6. c. 74.
Arbitration Act, 1950	14 Geo. 6. c. 27.
Diseases of Animals Act, 1950	14 Geo. 6. c. 36.
British Transport Commission Act, 1950	14 Geo. 6. c. liii.
Administration of Justice (Pensions) Act, 1950 ...	14 & 15 Geo. 6. c. 11.
Rivers (Prevention of Pollution) (Scotland) Act, 1951	14 & 15 Geo. 6. c. 66.
Income Tax Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 10.
Transport Act, 1953	1 & 2 Eliz. 2. c. 13.
British Transport Commission Order Confirmation Act, 1953	1 & 2 Eliz. 2. c. xx.
Post Office Act, 1953	1 & 2 Eliz. 2. c. 36.
British Transport Commission Act, 1953	1 & 2 Eliz. 2. c. xlii.
British Transport Commission Act, 1954	2 & 3 Eliz. 2. c. lv.
Transport Charges &c. (Miscellaneous Provisions) Act, 1954	2 & 3 Eliz. 2. c. 64.
Miscellaneous Financial Provisions Act, 1955	4 & 5 Eliz. 2. c. 6.
Rating and Valuation (Miscellaneous Provisions) Act, 1955	4 & 5 Eliz. 2. c. 9.

Short Title	Session and Chapter
Food and Drugs Act, 1955	4 & 5 Eliz. 2. c. 16.
Food and Drugs (Scotland) Act, 1956	4 & 5 Eliz. 2. c. 30.
Finance Act, 1956	4 & 5 Eliz. 2. c. 54.
Transport (Disposal of Road Haulage Property) Act, 1956	4 & 5 Eliz. 2. c. 56.
British Transport Commission Act, 1956	4 & 5 Eliz. 2. c. lxxiv.
Transport (Railway Finances) Act, 1957	5 & 6 Eliz. 2. c. 9.
Rating and Valuation Act, 1957	5 & 6 Eliz. 2. c. 17.
House of Commons Disqualification Act, 1957... ..	5 & 6 Eliz. 2. c. 20.
British Transport Commission Act, 1957	5 & 6 Eliz. 2. c. xxxiii.
British Transport Commission Act, 1958	6 & 7 Eliz. 2. c. xlv.
Local Government Act, 1958	6 & 7 Eliz. 2. c. 55.
Tribunals and Inquiries Act, 1958	6 & 7 Eliz. 2. c. 66.
Highways Act, 1959	7 & 8 Eliz. 2. c. 25.
British Transport Commission Order Confirmation Act, 1959	7 & 8 Eliz. 2. c. xxxvi.
British Transport Commission Act, 1959	7 & 8 Eliz. 2. c. xlv.
Wages Councils Act, 1959... ..	7 & 8 Eliz. 2. c. 69.
Road Traffic Act, 1960	8 & 9 Eliz. 2. c. 16.
British Transport Commission Act, 1961	9 & 10 Eliz. 2. c. xxxvi.
Local Government (Financial Provisions, etc.) (Scotland) Act, 1962	10 & 11 Eliz. 2. c. 9.

CHAPTER 47

Education (Scotland) Act, 1962

ARRANGEMENT OF SECTIONS

PART I

PROVISION OF EDUCATION BY EDUCATION AUTHORITIES

Primary, Secondary and Further Education

Section

1. Provision of educational facilities by education authorities
2. Primary education.
3. Secondary education.
4. Further education.
5. Special educational treatment.
6. Recreation and social and physical training.
7. Provision of educational facilities to be in accordance with schemes.
8. Religious instruction.
9. Conscience clause.
10. Safeguards for religious beliefs.
11. Provision of books, materials and special clothing free of charge.
12. County library service.
13. Provision of hostels.
14. Power to provide education elsewhere than at an educational establishment.

Transference of Schools to Education Authorities

15. Transference of endowed schools to education authorities.
16. Transference of denominational schools to education authorities.